Request for Proposal
BD2732 Fire Suppression 2027

TO BE CONSIDERED, PROPOSALS MUST BE RECEIVED PRIOR TO THE PROPOSAL DEADLINE

LATE PROPOSALS WILL NOT BE ACCEPTED

Proposers are advised that from the date this RFP is issued until the award of the Contract, no contact with Denver Public Schools (DPS) personnel related to this solicitation is permitted, except as authorized by the Purchasing Director. **Inquiries regarding this RFP must be submitted via BidNet.** Any contact with other DPS personnel may deem the Supplier disqualified, and the proposal will not be accepted for review.

RETURN TO:

BidNet - BD2732

Denver Public Schools

RFP SCHEDULE OF ACTIVITIES (subject to change)

EVENT	DATE
Issuance of RFP	October 12, 2026
MANDATORY In Person Site Visit *See Mandatory Project Walk in See Section IV. Scope of Work for address*	October 21, 2026 at 10:00 am MT October 22, 2026 at 10:00 am MT
Questions Deadline via BidNet	October 29, 2026 by 10:00am MT
Proposal Deadline via BidNet	**November 12, 2026 by 10:00 am MT**
Round 2 - (if necessary)	TBD

REQUEST FOR PROPOSAL BD2732
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EXHIBIT A: Specifications

EXHIBIT B: Pricing Form

EXHIBIT C: Diverse Business Inclusion Commitment Form

EXHIBIT D: Payment and Performance Bond

EXHIBIT E: Construction Safety Standards Acknowledgement Form

EXHIBIT F: Sample Agreement

If any of the Documents listed above are missing from this package, please contact the Purchasing official at ConstructionBids@dpsk12.org.

REQUEST FOR PROPOSAL BD2732
SECTION I: SUPPLIER ACKNOWLEDGEMENT

Does your offer comply with all the terms and conditions? If no, indicate exceptions	Yes_____ No_____
Does your offer meet or exceed all specifications? If no, indicate exceptions	Yes_____ No_____
Will the Supplier have access to or collect any student data?	Yes_____ No_____
Do you qualify as a certified MWBE?	Yes_____ No_____
Do you qualify as a certified SBE under the SBA guidelines?	Yes_____ No_____
Do you have any proposed modifications to the Contract? If yes, indicate modifications and provide an explanation	Yes_____ No_____

If a redacted version of your proposal is not received, we will share your master response in the event of a CORA Request. By signing this acknowledgment, you are confirming that you understand.

The undersigned hereby affirms that (1) he/she is a duly authorized agent of the Supplier, (2) he/she has read all terms and conditions and specifications which were made available in conjunction with this Solicitation and fully understands and accepts them unless specific variations have been expressly listed in his/her offer, (3) that the offer is being submitted on behalf of the Supplier in accordance with any terms and conditions set forth in this document, and (4) that the Supplier will accept any awards made to it as a result of the offer submitted herein for a minimum of ninety calendar days following the date of submission and (5) **Supplier must acknowledge any and all addendum(a) below by initialing a box with the addenda number in it.** (6) Section V. Code of Conduct and Conflict of Interest Certification shall be signed and returned with the Offer.

Name of Company: _____ Address: _____

City/State: _____ Zip: _____ Contact Person: _____

Title: _____ Phone: _____ Email Address:_____

Authorized Representative's Signature: _____

(Offers must contain signature of an authorized agent of the Supplier)

Printed Name: _____ Title: _____ Date: _____

Email Address: _____ Phone: _____

Addendum(s) Acknowledged												

REQUEST FOR PROPOSAL BD2732
SECTION II: GENERAL TERMS AND CONDITIONS

1. **APPLICABILITY**. These General Terms and Conditions apply, but are not limited to, all bids, proposals, qualifications and quotations (hereinafter referred to as "Offers" or "Responses") made to the Denver Public Schools (hereinafter referred to as "District") by all prospective suppliers (hereinafter referred to as "Suppliers") in response, but not limited, to Invitations to Bid, Requests for Proposals, Requests for Qualifications, and Requests for Quotations (hereinafter referred to as "Solicitations").

2. **CONTENTS OF OFFER**

   A. General Conditions. Suppliers are required to submit their Offers in accordance with the following expressed conditions:

   1) Suppliers shall make all investigations necessary to thoroughly inform themselves regarding the plant and facilities affected by the delivery of materials and services as required by the conditions of the Solicitation. No plea of ignorance by the Supplier of conditions that exist or that may hereafter exist as a result of failure to fulfill the requirements of the contract documents will be accepted as the basis for varying the requirements of the District or the compensation to the Supplier.

   2) Suppliers are advised that all District contracts are subject to all legal requirements contained in the District Board policies, the Purchasing Department's procedures, and state and federal statutes. When conflicts between the Solicitation and these legal documents occur, the highest authority will prevail.

   3) Submission of an Offer is deemed as acceptance of all terms, conditions and specifications contained in the District's Solicitations. Any proposed modification must be accepted in writing by the District prior to award of the Contract or Purchase Order.

   4) The District reserves the right to reject any and all Offers or any part thereof, to waive any irregularities or informalities, and to award the Solicitation to the Supplier as deemed in the best interest of the District.

   5) All Offers and other materials submitted in response to this Solicitation shall become the property of the District.

   6) The Supplier certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any Federal department or agency. The Supplier shall comply with the regulations found within 45 CFR Part 620, "Government Debarment and Suspension (Non-procurement)."

   7) The Supplier is required to carry the following insurance: **Insurance Requirements**.

   B. Open Records – Disclosure of Information to the District. The Supplier understands that all material provided or produced by the Supplier in response to this Solicitation may be subject to the Colorado Open Records Act ("CORA"), C.R.S. § 24-72-201, et seq. (2006). In the event of the filing of a lawsuit to compel such disclosure, the District will tender all such material to the court for judicial determination of the issue of disclosure and the Supplier agrees to intervene in such lawsuit to protect and assert its claims of privilege and against disclosure of such material or waive the same. The Supplier further agrees to defend, indemnify and save and hold harmless the District, its officers, agents and employees, from any claims, damages, expenses, losses or costs arising out of the Supplier's intervention to protect and assert its claim of privilege against disclosure under this Article including, but not limited to, prompt reimbursement to the District of all reasonable attorney fees, costs and damages that the District may incur directly or may be ordered to pay by such court.

C. Clarification and Modifications in Terms and Conditions

1) Where there appear to be variances or conflicts between the General Terms and Conditions, the Special Terms and Conditions and the Specifications outlined in this Solicitation, the Specifications then the Special Terms and Conditions will prevail.

2) If any Supplier contemplating submitting an Offer under this Solicitation is in doubt as to the true meaning of the specifications, the Supplier must submit a **written request** (either via email or BidNet as determined on the Question Deadline on the RFP Schedule of Activities on page 1) for clarification to the District's Contact person as stated in the Special Terms and Conditions.

Any official interpretation of this Solicitation must be made, in writing, by an agent of the District's Purchasing Department who is authorized to act on behalf of the District. The District shall not be responsible for interpretations offered by employees of the District who are not agents of the District's Purchasing Department.

The District shall issue a written addendum if substantial changes which impact the technical submission of Offers are required. Denver Public Schools utilizes Rocky Mountain E-Purchasing System (RMEPS/BidNet) at https://www.bidnetdirect.com/colorado to distribute official copies of the Solicitations, and any addenda for use in preparing Offers. Suppliers are responsible for checking BidNet to retrieve any addendum (a). Supplier shall certify its acknowledgment of the addendum (a) on the Supplier Acknowledgement Form and return it with its Offer. In the event of conflict with the original contract documents, addenda shall govern all other contract documents to the extent specified. Subsequent addenda shall govern over prior addenda only to the extent specified.

D. Prices Contained in Offer--Discounts, Taxes, Collusion

1) Suppliers shall not include federal, state, or local excise or sales taxes in prices offered, as the District is exempt from payment of such taxes.

2) The Supplier, by affixing its signature to this Solicitation, certifies that its Offer is made without previous understanding, agreement, or connection either with any persons, firms or corporations making an Offer for the same items, or with the District. The Supplier also certifies that its Offer is in all respects fair, without outside control, collusion, fraud, or otherwise illegal action. To insure integrity of the District's public procurement process, all Suppliers are hereby placed on notice that any and all Suppliers who falsify the certifications required in conjunction with this section will be prosecuted to the fullest extent of the law.

3. PREPARATION AND SUBMISSION OF OFFER

A. **Preparation**

1) The Offer must be typed or legibly printed in ink. All corrections made by the Supplier must be initialed by the authorized agent of the Supplier.

2) Offers must contain a signature of an authorized agent of the Supplier in the space provided on the Solicitation Supplier Acknowledgement Form. **The original acknowledgement form of this Solicitation must be included in all Offers. If the Supplier's authorized agent fails to sign and return the original acknowledgement form of the Solicitation, its Offer shall be invalid and shall not be considered.**

3) Unit prices shall be provided by the Supplier on the Solicitation's Specification and Pricing Form when required in conjunction with the prescribed method of award and **shall be for the unit of measure requested.** Prices that are not in accordance with the measurements and descriptions requested may be considered non-responsive and may not be considered. Where there is a discrepancy between the unit price and the extension of prices, the unit price shall prevail.

4) Alternate Offers will not be considered unless expressly permitted in the Specifications Special Terms and Conditions.

5) The accuracy of the Offer is the sole responsibility of the Supplier. No changes in the Offer shall be allowed after the date and time that the Offers are due.

6) The proposal shall be formatted based on the requirements listed in Section IV and shall be numbered and combined into one single file.

B. **Submission**

1) **In person submittals will not be accepted.** Proposals must be uploaded and submitted through Rocky Mountain E Purchasing (BidNet) by or before the due date and time. Please ensure that this copy is complete and accurate and includes all proposal content, descriptions and pricing.

2) In the event that there is a CORA request the District asks that each Supplier submit one (1) separate redacted version of their proposal. Be sure to clearly mark each proposal file as "Master" or "Redacted". The District will not be responsible for evaluating the incorrect proposal if they are not clearly labeled.

3) Unless otherwise specified, when a Specification and Pricing form is included as a part of the Solicitation, it must be used when the Supplier is submitting its Offer. The Supplier shall not alter this form (e.g. add or modify categories for posting prices offered) unless expressly permitted in the addendum duly issued by the District. No other form shall be accepted.

3) Offers submitted via facsimile machines or email will not be accepted.

C. **Late Offers**. Offers received after the date and time set for the opening shall be considered non-responsive.

4. MODIFICATION OR WITHDRAWAL OF OFFERS

A. BidNet allows users to modify Offers prior to the time and date set for the Offers to be opened.

B. Withdrawal of Offers

1) Offers may be withdrawn prior to the time and date set for the opening. On BidNet, users may withdraw their Offer up until the deadline.

2) In accordance with the Uniform Commercial Code, Offers may not be withdrawn after the time and date set for the opening for a period of ninety calendar days. Such requests must be made in writing on company letterhead. If an Offer is withdrawn by the Supplier during this ninety day period, the District may, at its option, suspend the Supplier from the bid list and may not accept any Offer from the Supplier for a six month period following the withdrawal.

5. REJECTION OF OFFERS

A. Rejection of Offers. The District may, at its sole and absolute discretion:

1) Reject any and all, or parts of any or all, Offers submitted by prospective Suppliers;

2) Re-advertise this Solicitation;

3) Postpone or cancel the process;

4) Waive any irregularities in the Offers received in conjunction with this Solicitation to accept an offer(s) which has additional value or function and/or is determined to be more advantageous to the District; and/or

5) Determine the criteria and process whereby Offers are evaluated and awarded. No damages shall be recoverable by any Supplier or challenger as a result of these determinations or decisions by the District.

B. Rejection of a Particular Offer. The District may, at its sole and absolute discretion, reject an Offer under any of the following conditions:

1) The Supplier misstates or conceals any material fact in its Offer;

2) The Supplier's Offer does not strictly conform to the law or the requirements of the Solicitation;

3) The Offer expressly requires or implies a conditional award that conflicts with the method of award stipulated in the Solicitation's Special Terms and Conditions;

4) The Offer does not include documents, including, but not limited to, certificates, licenses, and/or samples, which are required for submission with the Offer in conjunction with the Solicitation's Special Terms and Conditions and/or Technical Specifications;

5) The Offer has not been executed by the Supplier through an authorized signature on the Specifications Supplier Acknowledgement.

C. Elimination From Consideration

1) An Offer may not be accepted from, nor any contract be awarded to, any person or firm which is in arrears to the District upon any debt or contract or which is a defaulter as surety or otherwise upon any obligation to the District.

2) An Offer may not be accepted from, nor any contract awarded to, any person or firm which has failed to faithfully perform any previous contract with the District, state or federal government, for a minimum period of three years after this previous contract was terminated for cause.

3) An Offer may not be accepted from, nor any contract awarded to, any person related to any District employee and such a relationship would create a material financial interest or result in the violation of DPS Board Policy GBEA by either Supplier or the District employee.

D. Right to Waive Bids. The District reserves the right to waive any technical or formal errors or omissions and to reject any and all bids, or to award contract for the items hereon, either in part or whole, if it is deemed to be in the best interest of the District to do so.

6. EVALUATION CRITERIA. Offers received will be evaluated based on the criteria identified in Section IV. These criteria will form the basis for review of the written proposals.

7. AWARD OF CONTRACT. The District shall award a contract to a supplier through the issuance of a Contract and Purchase Order. The Contract shall be an AIA contract with amendments, a copy of which is attached hereto. Submission of an Offer is deemed acceptance of all terms, conditions and specifications contained in the Contract and Purchase Order. Any proposed modifications to the terms, conditions and specifications of the Contract or Purchase Order must be submitted with the Offer and an explanation provided in writing for any proposed modifications. The District reserves the right to deem an Offer as non-responsive if a Supplier makes a large number of proposed modifications to the Contract or Purchase Order.

8. **APPEAL OF AWARD**. Suppliers may appeal by submitting, **in writing**, a detailed request for reconsideration to the District's Director of Purchasing within 72 hours after the recommendation of award is posted on BidNet, provided that the appeal is sought by the Supplier prior to the District finalizing a contract with the selected Supplier.

9. **NEGOTIATIONS**. The District reserves the right to conduct negotiations with Suppliers and to accept revisions of proposals. During this negotiation period, the District will not disclose any information derived from proposals submitted, or from discussions with other Suppliers in response to CORA requests. Once an award is made, the solicitation file and the proposals contained therein are in the public record.

10. **CONTRACTUAL OBLIGATIONS**

A. **Local, State and Federal Compliance Requirements.** Successful Suppliers shall be familiar and comply with all local, state, and federal directives, ordinances, rules, orders, and laws applicable to, and affected by, this contract including, but not limited to, Equal Employment Opportunity (EEO) regulations, Occupational Safety and Health Act (OSHA), and Title II of the Americans with Disabilities Act (ADA).

B. **Disposition**. The Supplier shall not assign, transfer, convey, sublet, or otherwise dispose of this contract, including any or all of its right, title or interest therein, or its power to execute such contract to any person, company or corporation, without prior written consent of the District.

C. **Employees**. All employees of the Supplier shall be considered to be, at all times, employees of the Supplier, under its sole direction, and not an employee or agent of the District.

1) The District may require the Supplier to remove an employee it deems careless, incompetent, insubordinate or otherwise objectionable, and whose continued employment on District property is not in the best interest of the District.

2) The Supplier shall not employ, retain, hire or use any individual that has been convicted of any felony charges as the same is defined under the laws of the State of Colorado in the performance of the services to be rendered and materials to be provided to the District pursuant to this Solicitation unless the Supplier receives prior written permission.

3) In accordance with the District's policy regarding the use of tobacco and marijuana products, no employee of the Supplier shall be permitted to use tobacco and marijuana products when performing work on District property.

4) To protect the staff and program against undue invasion of the school or work day, sales representatives shall not be permitted in schools or other departments for the purpose of making sales unless authorized to do so by the Director of Purchasing or his/her/their designee. If special or technical details concerning goods or services to be purchased are required, the involvement of Suppliers should be coordinated through the Purchasing Department.

5) **Background Checks.** The Supplier and every person, including any subcontractor or agent of the Supplier, who provides direct services to students, or who has access to student data, shall be required to have a criminal background check that meets the requirements of § 22-32-109.7, C.R.S. and other District requirements, including a fingerprint-based conviction investigation. A Colorado Bureau of Investigation criminal history check and Name Check investigation for any person providing services under this Contract do not meet District requirements. The costs associated with the background checks are solely the Supplier's responsibility. Thereafter, any personnel, subcontractor, volunteer or agent hired or added during the term of this Contract shall satisfy the requirements set forth in this Section before performing services on Supplier's behalf. The Supplier shall make the background check results available upon request of the District in compliance with the provisions of § 24-72-305.3, C.R.S. The District also reserves the right to conduct its own criminal background check of every person before Services begin.

a. Notwithstanding the criminal background check requirement as set forth above, Supplier hereby certifies that no employee, subcontractor, volunteer or agent of the Supplier performing the Services has been convicted in Colorado or in any other State of a criminal offense involving: (i) the abuse, abduction, sexual molestation, physical or sexual assault on, or rape of a minor; or (ii) any crime involving exploitation of minors, including but not limited to, child pornography offenses or any crime of violence. Supplier shall notify the District immediately upon the discovery or receipt of any information that any person performing services on Supplier's behalf has been detained or arrested by a law enforcement agency of the aforementioned crimes. Supplier understands that allowing any employee, subcontractor, volunteer or agent of the Supplier performing the Services who has been arrested or convicted of the aforementioned crimes to: (i) provide direct services to students, (ii) access student data, or (iii) enter onto District property, constitutes a material breach of this Contract and may result in the immediate termination of this Contract and referral to law enforcement for possible criminal charges, or additional civil sanctions pursuant to federal and state law. Misdemeanor conviction(s) may not necessarily result in the immediate termination of this Contract. Misdemeanor convictions are evaluated on a case-by-case basis, considering the nature and gravity of the offense, time elapsed since the offense, conviction, or time served, and the nature of the Services. Upon the District's request, the Supplier shall provide documentation of every person performing the Services to substantiate the basis for this certification.

b. Denver Public Schools may issue identification badges for Suppliers. Every person who receives a Denver Public Schools identification badge or an electronic access card from the District's Department of Climate and Safety shall be required to have a criminal background check that meets the requirements of § 22-32-109.7, C.R.S. and other District requirements, including a fingerprint-based conviction investigation. In addition, every person who receives a Denver Public Schools identification badge will be scanned through the Raptor Visitor Management System on District property prior to issuance of the identification badge. Prior to issuance of an electronic access card, Supplier shall provide documentation to the District's Department of Climate and Safety to substantiate completion of a successful background check pursuant to the terms of the Agreement for Use of Electronic Access Card. Use of Denver Public Schools electronic access cards are subject to the terms of the Denver Public Schools Access Control Policy and Procedures

E. Delivery. Prices, quotes and deliveries are to be **FOB destination, freight prepaid**, and shall require inside delivery unless otherwise specified in the Solicitation's Special Terms and Conditions. Title and risk of loss shall pass to the District upon inspection and acceptance by the District at its designated point of delivery, unless otherwise specified in the Special Terms and Conditions. In the event that the Supplier defaults on its contract or the contract is terminated for cause due to performance, the District reserves the right to re-procure the materials or services from the next lowest Supplier or from other sources during the remaining term of the terminated/defaulted contract. Under this arrangement, the District shall charge the Supplier any difference between the Supplier's price and the price to be paid to the next lowest Supplier, as well as any costs associated with the re-solicitation effort

F. Material Priced Incorrectly. As part of any award resulting from this process, Supplier(s) will discount all transactions as agreed. In the event the District discovers, through its contract monitoring process or formal audit process, that material was priced incorrectly, the Supplier(s) agree to promptly refund all overpayments and to pay all reasonable audit expenses incurred as a result of the non-compliance.

11. MODIFICATIONS TO EXISTING CONTRACT.

Terms and conditions may be added, modified, and deleted upon mutual agreement between agents of the District and the Supplier provided that such terms and conditions remain within the scope and original intent of the Solicitation. Said terms and conditions may include, but are not limited to, additions or deletions of service levels and/or commodities and/or increases or decreases in the time limits for an existing contract. Any and all modifications to the existing contract must be expressed in writing through an Amendment to the contract and executed by authorized agents of the District and the Supplier prior to the enactment of such modifications.

12. TERMINATION OF CONTRACT

A. The District may, by written notice to the successful Supplier, terminate the contract if the Supplier has been found to have failed to perform its service in a manner satisfactory to the District as per specifications, including delivery as specified. The date of termination shall be stated in the notice. The District shall be the sole judge of non-performance.

B. The District may cancel the contract, without penalty, upon thirty days written notice for reason other than cause. This may include the District's inability to continue with the contract due to the elimination or reduction of funding.

13. ELECTRONIC SIGNATURES AND ELECTRONIC RECORD

A. Supplier consents to the use of electronic signatures by the District. This Agreement, and any other documents requiring a signature under this Agreement, may be signed electronically by the Owner in the manner specified by the Owner. The Parties agree not to deny the legal effect or enforceability of this Agreement solely because it is in electronic form or because an electronic record was used in its formation. The Parties agree not to object to the admissibility of the Agreement in the form of an electronic record, or a paper copy of an electronic document, or a paper copy of a document bearing an electronic signature, on the ground that it is an electronic record or electronic signature or that it is not in its original form or is not an original.

14. FORCE MAJEURE

A. Neither the Supplier nor the District shall be liable to the other for any delay in, or failure of performance of, any covenant or promise contained in this contract, nor shall any delay or failure constitute default or give rise to any liability for damages if, and only to the extent that, such delay or failure is caused by "force majeure". As used in this contract "force majeure" means acts of God; acts of the public enemy; acts of the District and any governmental entity in its sovereign or contractual capacity; fires; floods; epidemics; quarantine restrictions; strikes or other labor disputes, freight embargoes; illegality, or unusually severe weather.

REQUEST FOR PROPOSAL BD2732
SECTION III: SPECIAL TERMS AND CONDITIONS

1. **PURPOSE:** To obtain a Design Build supplier to complete the scope of work listed in the RFP.

2. **CONTACT PERSON:** For questions/issues relating to the composition of this solicitation (i.e. broken links), please contact ConstructionBids@dpsk12.org. Unauthorized contact with a District employee other than the Purchasing Agent regarding this RFP may result in disqualification.

3. **LOCATION(S) OF WORK:** The work described in this RFP shall be performed at the follow location(s) and address(es):
   Locations listed below in Section IV. Scope of Work

4. **SUBSTANTIAL COMPLETION DATE:** See Section IV. Scope of Work

5. **FINAL COMPLETION DATE:** See Section IV. Scope of Work

6. **LIQUIDATED DAMAGES:** The liquidated damages amount applied per the AIA Agreement for delays in substantial completion are listed in Section IV. Scope of Work.

7. **DESIGN AND CONSTRUCTION STANDARDS:** The Supplier shall comply with the District's Educational Specifications and Design and Construction Standards (the "Standards"), available here:
   https://facilities.dpsk12.org/o/facilities/page/construction-standards

8. **SUSTAINABLE MEASURES:** In April of 2022, the District adopted a climate action policy. As the District is working toward establishing sustainable goals, standards and solutions, suppliers may be asked to work with the District, the District's consultants, and the Supplier's consultants to discuss potential Sustainable Measures; examine strategies for implementation of the Sustainable Measures; and discuss the potential impact of the Sustainable Measures on the Project schedule, the District's program, and the District's budget for the Cost of the Work. This includes system options that contribute to decarbonization of buildings such as beneficial electrification for heating, renewable energy generation, and energy efficiency measures that reduce consumption.

9. **SUBCONTRACTOR UTILIZATION:** The supplier to whom the work is awarded will be required to input information into the Office of Business Diversity Contract Management System (OBE-CM) 72 hours after notification of award. This will include scope of work to be performed by each subcontractor, including non-certified subcontractors. Identify if each subcontractor is a minority, women business enterprise. The OBD–CM system may be reached by typing https://denverpublicschools.diversitycompliance.com/ in your internet browser address line. Failure to comply with this requirement may be grounds for termination of award. Your account username is the email address on file with The Office of Business Diversity. We request that you take this opportunity to review your contact information in the management system, if you have not done so already. Updating this information will ensure that OBD is able to communicate with the awarded supplier effectively. If you have any questions, please contact the Office of Business Diversity, businessdiversity@dpsk12.org.

10. **LOCAL OFFICE MAY BE REQUIRED.** Due to the service level required in conjunction with this solicitation, the supplier shall maintain an office within Colorado. This office shall be staffed by a competent company representative(s) who can be contacted during normal business hours and who is authorized to discuss matters pertaining to the contract.

11. **RESPONSE TO QUESTIONS:** Questions which arise during the Response preparation period regarding issues around this Solicitation, purchasing and/or award should be directed, via BidNet. The Supplier submitting the question shall be responsible for ensuring that the question is received by the Purchasing Agent on BidNet by the question deadline stated on the cover page of this solicitation.

Any official interpretation of this Solicitation must be made by an agent of the District's Purchasing Department who is authorized to act on behalf of the District. The District shall not be responsible for interpretations offered by employees of the District who are not agents of the District's Purchasing Department.

12. **METHOD OF AWARD:** It is the intent of the District to award this Contract to the highest scoring Supplier based on the criteria laid out in Section IV. Notwithstanding, the District reserves the right to alter this method of award if such alteration results in a cost savings to the District. Proposals will be reviewed and scored by an evaluation committee as well as scored by formula:
    Pricing - Lowest Contract Amount will be awarded full points for the category and then all other pricing proposals will receive a percentage of the points based on their comparison to the lowest Contract Amount.
    Formula: ((Budget - Preconstruction Fee - Design Fee) x Construction Fee) + Preconstruction Fee + Design Fee = Contract Amount
    Diverse Business Commitment - If a Supplier meets or exceeds the diversity goal the full amount of points as listed in Section IV will be given. If a Supplier commits to a lower goal, a percentage of the points will be given. For example, a Supplier commits to a 15% goal on a project that has listed a 20% goal, they will be awarded 75% of the points.
    Evaluation Criteria - The evaluation team will be provided a scoring scale of 1-5 (sample provided below). Evaluators are instructed to evaluate only on the criteria listed in Section IV of the RFP but the comments can be about any part of the RFP. Scores are then weighted based on the amount of points allocated in the RFP. For example, a RFP may have the criteria of Project Team listed with 20 points possible, the average Evaluator score is 3 making the weighted score given to that Supplier 18.
        Sample Scoring Scale
        1 - Missing some information
        2 - Included all information but unclear if it meets the requirements in RFP
        3 - Included all information and meets the requirements in the RFP
        4 - Included all information and meets the requirements in the RFP and is a good approach for the project
        5 - Included all information and exceeds the requirements in the RFP and is a good approach for the project

13. **METHOD OF PAYMENT:** The work cannot begin without an executed AIA contract and DPS issued Purchase Order. Details listed in the AIA Agreement.

14. **SALES TAX:** The District is exempt from paying State or Local Sales Taxes. Notwithstanding, Suppliers should be aware of the fact that all materials and supplies which are purchased directly by the Supplier in conjunction with this contract will be subject to applicable state and local sales taxes and these taxes shall be borne by the Supplier.

15. **CONFLICTS WITHIN THE CONTRACT DOCUMENTS:** In the event that conflicts exist within the Contract Documents, the policies stated in the following paragraphs shall govern: A. Addenda shall supersede all other Contract Documents to the extent specified. Subsequent addenda shall supersede prior addenda only to the extent specified. B. Drawings and Specifications are intended to agree and be mutually explanatory and shall be accepted and used as a whole and not separately. Should any item be omitted from either the drawings or Specifications as specified, it shall be implied that such omissions are contained in both the drawings and the Specifications as necessary for the proper construction of the work herein specified. Should any error or disagreement between the Specifications and drawings exist or appear to exist, the Supplier shall not avail itself of such manifestly unintentional error or omission, but must have the same explained or adjusted by the District's Project Manager before proceeding with the work in question.

16. **COOPERATIVE PURCHASING EFFORTS:** Denver Public Schools encourages and participates in cooperative purchasing endeavors undertaken by or on behalf of other governmental jurisdictions, to the extent, other governmental jurisdictions are legally able to participate in cooperative purchasing, the District supports such cooperative activities. (Examples of these cooperative efforts include: MAPO - Multiple Assembly of Procurement Officials, CEPC - Cooperative Educational Procurement Council). We hereby request that any member of other governmental jurisdictions be permitted to avail itself of this contract and purchase any and all items specified herein from the successful Supplier(s) at the contract price(s) established herein. Each governmental entity which uses a contract(s) resulting therefrom would establish its own contract, issue its own orders, schedule deliveries, be invoiced therefrom, make its own payments, and issue its own exemption certificates as required by the Supplier. It is understood and agreed that the District is not a legally binding party to any contractual agreement made

between another governmental entity and the Supplier as a result of this Solicitation. The District shall not be liable for any costs or damages incurred by any other entity.

17. **INDEMNIFICATION**: The successful Supplier shall indemnify and hold the District harmless from any and all claims, liabilities, losses and causes of action which may arise out of the fulfillment of the Supplier's contractual obligations as outlined in this Solicitation. The Supplier or its insurer(s) shall pay all claims and losses of any nature whatever in connection therewith, and shall defend all suits, in the name of the District when applicable, and shall pay all costs and judgments which may issue thereon.

18. **EQUAL OPPORTUNITY:** Denver Public Schools intends and expects that the contracting processes of the District and its Suppliers provide equal opportunity without regard to gender, race, ethnicity, religion, age or disability and that its Suppliers make available equal opportunities to the extent third parties are engaged to provide goods and services to the District as subcontractors, Suppliers, or otherwise. Accordingly, the Supplier shall not discriminate on any of the foregoing grounds in the performance of the contract, and shall make available equal opportunities to the extent third parties are engaged to provide goods and services in connection with performance of the contract **(joint ventures are encouraged)**. The Supplier shall disseminate information regarding all subcontracting opportunities under this contract in a manner reasonably calculated to reach all qualified potential subcontractors who may be interested. The Supplier shall maintain records demonstrating its compliance with this article and shall make such records available to the District upon the District's request.

19. **AMERICANS WITH DISABILITIES ACT:** Supplier(s) shall use commercially reasonable efforts to ensure that, to the extent directly affecting the intended daily use by end users of the system and services provided to Subscriber under this Agreement, such system and services will, at a minimum, conform with all laws, regulations and guidance that apply to accessibility pursuant to the Americans with Disabilities Act ("ADA"), Section 504 of the Rehabilitation Act of 1973, and Web Content Accessibility Guidelines (WCAG) 2.0 Level AA guidelines, provided, however, that Supplier(s) will have no obligations with respect to such compliance to the extent relating to any portion of the system and services provided or developed by Subscriber including Subscriber content.

20. **ACCESSIBILITY:** Supplier shall comply with and all Services provided under this Agreement shall be in compliance with all applicable provisions of §§24-85-101, et seq., C.R.S., and the Accessibility Standards for Individuals with a Disability, as established by the State of Colorado Governor's Office of Information Technology (OIT) pursuant to Section §24-85-103 (2.5), C.R.S. Suppliers shall also comply with all State of Colorado technology standards related to technology accessibility and with Level AA of the most current version of the Web Content Accessibility Guidelines (WCAG), incorporated in the State of Colorado technology standards. Supplier shall indemnify, save, and hold harmless the District against any and all costs, expenses, claims, damages, liabilities, court awards and other amounts (including attorneys' fees and related costs) incurred by the District in relation to Supplier's failure to comply with §§24-85-101, et seq., C.R.S., or the Accessibility Standards for Individuals with a Disability as established by OIT pursuant to Section §24-85-103 (2.5), C.R.S.

21. **WORK PRODUCT:** Intellectual Property. Any software, research, reports, studies, data, photographs, negatives or other documents, drawings or materials (collectively "materials") delivered by Supplier in performance of its obligations under this contract shall be the exclusive property of Denver Public Schools. Ownership rights shall include, but not be limited to, the right to copy, publish, display, transfer, prepare derivative works, or otherwise use the materials. Supplier shall comply with all applicable Cyber Security Policies of the State of Colorado (the "State"), or Denver Public Schools, as applicable, and all confidentiality and non-disclosure agreements, security controls, and reporting requirements.

22. **WARRANTY:** Supplier shall comply with all warranty requirements - Warranty

23. **DAVIS BACON ACT**: In the event that federal funds are being utilized by Denver Public Schools, the Supplier must comply with the Davis-Bacon Act (40 U.S.C. 3141-3144, and 3146-3148) as supplemented by Department of Labor regulations (29 CFR Part 5, "Labor Standards Provisions Applicable to Contracts Covering Federally Financed and Assisted Construction"), and all other laws applicable to federally-assisted construction projects. In accordance with the statute, Supplier must pay wages to laborers and mechanics at a rate not less than the prevailing wages specified in a wage determination made by the Secretary of Labor. In addition, Supplier must pay wages not less than once a week. The current prevailing wage determination issued

by the Department of Labor that applies to this Project will be attached to the Agreement. Supplier must comply with the Copeland "Anti-Kickback" Act (40 U.S.C. 3145), as supplemented by Department of Labor regulations (29 CFR Part 3, "Suppliers and Subcontractors on Public Building or Public Work Financed in Whole or in Part by Loans or Grants from the United States"). The Act provides that each Supplier must be prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public work, to give up any part of the compensation to which he/she/they is otherwise entitled. The non-Federal entity must report all suspected or reported violations to the Federal awarding agency.

REQUEST FOR PROPOSAL BD2732
SECTION IV: SCOPE OF WORK/EVALUATION CRITERIA

1. OVERVIEW

A. The District is the largest school district in Colorado. It employs approximately 10,000 employees, and serves over 88,000 students. The District is unique in that the city, county and school district, as established by the state constitution, have the same geographical boundaries. The school district covers approximately 200 square miles. Established as a school district in 1902, Denver is one of the finest urban school districts in the nation. The District operates approximately – (4) ECE-K, (95) elementary schools, (17) ECE-8, (3) ECE-12, (32) middle schools, (13) 6-12, (43) high schools, (1) adult education center, and participates in the Rocky Mountain School of Expeditionary Learning. The District is housed in approximately 250 buildings, within the Denver Metro Area.

B. Prepare a complete set of design development and construction documents in accordance with updated DPS Educational Specifications and Design & Construction Standards (the "Standards"), and all applicable codes and regulations.

C. School Work and Building Hours: After Hours: Starting 30 minutes after school is released. Work shifts will currently be 8 hours with applicable breaks. Alternate working hours shall be approved by DPS based on school schedule.

D. School Work and Building Hours: After Hours: Starting 30 minutes after school is released. Work shifts will currently be 8 hours with applicable breaks. Alternate working hours shall be approved by DPS based on school schedule.

2. SCOPE OF WORK

a. Project Scope:

i. Denver Public School intends to contract a Design-Builder for a fixed price for the design, new installation and renovation of current Fire Sprinkler Systems to meet 2019 NFPA 13. Complete 100% fire suppression coverage of schools is required, as stated by State/City code.. All related construction including but not limited to, new soffits, painting, piping and fire/smoke protection according to 2021 International Building Code of the school noted above. The Design-Builder shall conform to all current code requirements of the State of Colorado, City and County of Denver, IFC and NFPA. The State of Colorado and Denver Fire Department is the Authority Having Jurisdiction (AHJ).

ii. Contractor shall retrofit, replace or repair existing sprinkler system to 2019 NFPA 13 in accordance with the DPS Design and Construction Standards. Additionally, the Contractor shall install new sprinklers in the existing systems and make all modifications to the existing system for compliance with NPFA 13. Contractor shall verify the function of all existing materials and equipment in accordance with 2019 NFPA 13 and DPS Design and Construction Standards.

1. Existing Fire Sprinkler
    a. Entire system shall be hydraulic flushed for a minimum of 15 minutes. Existing sprinklers shall remain for flushing
    b. New and existing sprinkler system shall be hydraulically calculated using update water supply

iii. All floors and stairwell walls shall be fire caulked according to the 2021 International Building Code

iv. 2027 Projects

1. College View - 2675 S. Decatur St. - No current fire suppression
2. Columbian - 2925 W 40th Ave - Add system components for 100% coverage
3. Fallis - 6700 E Virginia Ave. - Add system to cottage building.
4. Ford - 14500 Maxwell Place - Add system components for 100% coverage
5. Marrama - 19100 E. 40th Ave. - Add system components for 100% coverage
6. Esclante Biggs - 5300 Crown Blvd - Add system components for 100% coverage

b. MANDATORY PROJECT WALK

October 21, 2026 - 10:00 am Will start at College View
College View - 2675 S. Decatur Street
Columbian - 2925 W. 40th Ave

October 22, 2026 - 10:00 am Will Start at Ford
Ford - 14500 Maxwell Place
Escalante Biggs - 5300 Crown Blvd.
Marrama - 19100 E. 40th Ave
Fallis - 6700 E. Virginia

c. Project will include, but not be limited to, all required permitting, site work, utilities, building construction, and project closeout activities.
d. Important Dates: TBD
e. Project Objectives: The Design-Build services will include design services, preconstruction services, construction services, and a warranty phase. During design and pre-construction, the Design-Builder will work collaboratively with the owner to ensure all project goals are maintained. Preconstruction services of the Design-Builder will include responsibility for pricing, value engineering, scheduling, maintainability, and constructability issues. The Design-Builder shall competitively select all construction subcontracts and other work appropriate for competitive selection using cost and other factors. The successful Design-Builder shall be eligible to bid, and if successful, subcontract for portions of the construction or other services on the project. For all work proposed as "self-performed" the Design-Builder must present a minimum of three bids inclusive of the "self-performance" bid. Due to the schedule constraints, it is anticipated that several bid packages will be released. In selecting a firm, the owner will place emphasis on the experience of the firm and assigned personnel in successful completion of projects of similar magnitude and complexity as the proposed project. Emphasis will be placed on firms oriented to the "K-12" and "fast track new" construction fields having depth, knowledge, and resources in principles of general contracting, phasing, scheduling, contract coordination and compliance, budget control, familiarity with State, County and City laws, ordinances and codes.

3. PROPOSAL PREPARATION, SUBMISSION REQUIREMENTS AND EVALUATION CRITERIA

To enable the District to conduct a uniform review of all proposals submitted in response to this solicitation, components of the proposal shall be submitted as set forth below and in Section II. With the exception of the redacted copy, **the proposal shall be in one combined file**. The District reserves the right to reject submittals that do not follow the requested format.

SECTION	TITLE	DESCRIPTION/REQUIREMENTS	POINTS POSSIBLE
ENVELOPE 1			
SECTION A	Required Forms	• Completed and signed Vendor Acknowledgement • Completed and signed Code of Conduct • Completed and signed Construction Safety Standards • Completed Bid Bond	Responsive/Non-Responsive
SECTION B	Pricing	• Completed Pricing Forms ○ One complete form for EACH project	80 pts possible
SECTION C	Diverse Business Commitment	• Submit a completed and signed Diverse Business Commitment form. • Suppliers will get points based on the commitment to the goal. ○ See more details in Section III 12. Method of Award in this RFP.	20 pts possible

4. EVALUATION AND AWARD PROCESS

This RFP will be scored by formula

REQUEST FOR PROPOSAL BD2732
SECTION V: CODE OF CONDUCT AND CONFLICT OF INTEREST CERTIFICATION

I, _____, certify as an authorized representative of [_____], that I have read the District's ethical and purchasing policies, as listed below[1], related to my company conducting business with the District. I understand that the District's policies and regulations shall operate as a Code of Conduct. I agree to follow the District's Code of Conduct, and any legal and regulatory requirements applicable to my company's performance, work or contract, and that violating the District's Code of Conduct may result in immediate sanctions up to, and including the termination of my business relationship with the District. I understand that if I have questions concerning the meaning or application of the Code of Conduct or relevant legal and regulatory requirements, I will contact the appropriate District representative. I understand it is my responsibility to disclose any situation that might reasonably appear to be a violation of the Code of Conduct. I understand the absence of a specific guideline, practice or policy covering a particular situation does not relieve me from exercising the highest ethical standards applicable to the circumstances.

I have read the Code of Conduct, as listed below, which among other things, restates the District's policies prohibiting certain activities deemed illegal, unethical or against the best interest of the District. I accept and agree to the restrictions stated in the Code of Conduct. I hereby certify that I will comply with the Code of Conduct and to the best of my knowledge, all of my employees, subcontractors, and personnel under my supervision are aware of the Code of Conduct and will comply with its terms. I know and agree that it is incumbent upon me, and my employees to perform satisfactorily and to follow and comply with the District policies and rules as they are issued or modified from time to time.

I understand the District's Code of Conduct is a general guide to acceptable and appropriate behavior, and that I am expected to comply with it even though it may not contain all of the details and information needed during the course of my performance and work with the District.

During the period of time of my business relationship with the District, at no time will I, or any employee of mine: (i) engage in human trafficking or procure a commercial sex act; or (ii) use forced labor in the performance of my company's performance, work or contract with the District, including but not limited to, prison labor, indentured or slave labor, or bonded labor. I understand that if I, or any employee of mine, engage in any such activities my company's performance, work or contract may be immediately terminated by the District without penalty.

Further, when dealing with District employees, I will adhere to the highest ethical standards of business conduct. When seeking the resolution of regulatory or ethical issues affecting my company's interests I will do so solely on the basis of merit and pursuant to proper procedures in dealing with the District and its employees. At no time will I, or any employee of mine offer, provide or solicit, directly or indirectly, any special treatment or favor in return for anything of economic value, or the promise or expectation of future value or gain. In addition, there shall be no entertaining of District employees with the expectation of receiving any future value or gain.

I will not accept or offer gifts, employ any person who is working for the District, nor do I have any close,[2] or immediate family[3] relationships with the District. If I do, I will immediately disclose the name and relationship of that person or persons and any existing potential conflict of interest with that District employee or any employee who may make decisions in their jobs that would allow him or her to give or receive preferential or favorable consideration in exchange for anything of a personal benefit to themselves or their friends and families. I understand that such situations could interfere with an employee's ability to make judgments solely in the District's best interest.

Accordingly, I have listed below all relationships and outside activities, which may require disclosure under the policy. I have also listed names, addresses and the nature of the relationships of all persons or entities doing business with the District from whom I, or any member of my immediate family, have received, may receive in the future, directly or indirectly, cash or a gift of more than nominal value ($25.00). Finally, to ensure there is no perceived conflict of interest, I have listed the name of all individuals employed by the District that are related to me or anyone in my business regardless of his or her position.

Printed Name	Signature	Date

[1] **GP11** Board Member Conduct Policy; **GP9** Board Member Conflict of Interest Policy; **DJ** Purchasing Policy; **DJA** Purchasing Authority Policy and regulation; **DJB** Purchasing Procedures Policy; **DJE** Bidding Practices Policy; **DJG** Supplier Relations Policy; **DJGA** Sales Calls and Demonstrations Policy; **DK** Stewardship of Funds Policy; **GBEA** Conflict of Interest Policy; and **GBEBC** Gifts To and Solicitations by Staff Policy.[2] Close relationships means all persons, whether family or not, you may have a personal or business relation with performing work for, or

on behalf of the District. [3] Immediate family means… spouse, partner in a civil union, children, siblings, parents, and in-laws (mother, father, brother, sister, daughter and son). See, Board Policy GBEA.



DPS's mission is to provide all students the opportunity to achieve the knowledge and skills necessary to become contributing citizens in our society.

With this purpose comes responsibility: we must ensure that we fulfill DPS's commitments while upholding a high standard of integrity and ethical business conduct. We are proactively taking steps to assist in that aim by implementing IntegraReport.

Letter from the CFO

To **anonymously** submit information on potential fraud, waste, or abuse of District property, assets, and resources, please visit:

IntegraReport.com

DPS Subscriber Code: **DPSK12**

You can also call our automated phone hotline 24 hours a day, seven days a week

855-858-3344

EXHIBIT A

SPECIFICATIONS

All project specifications and Architect technical documents can be found at this URL address

(If you are having difficulty with the link(s), please copy the link address and paste it into your browser's address bar.)

https://drive.google.com/drive/folders/1KxQIKBAhFQ3Bu5fmqtHRWIsx3zKOlsMb?usp=sharing

EXHIBIT B

PRICING FORM

Design-Builder Stipulated Sum

PROJECT:
SUPPLIER NAME:

PROJECT/SCHOOL*	LUMP SUM
College View	
Columbian	
Fallis	
Ford	
Marrama	
Escalante Biggs	

***If not bidding on all schools, please put N/A in the Lump Sum column**

EXHIBIT C

REQUEST FOR PROPOSAL BD2732
Diverse Business Inclusion Commitment

Pursuant to Board of Education Policy ACE: Equitable and Inclusive Contracting, the District has set a project goal that certified minority and women owned business enterprises ("Certified MWBEs") shall compete for and perform **See Section IV. Scope of Work** of the project's total work subject to availability and practicality, as calculated by the percentage of the project's total payments that are made to certified MWBEs.

Work performed on the project by certified MWBEs will count towards the project goal. This will include work performed by the general contractor or prime vendor, subcontractors, and joint ventures that include a certified MWBE. Work performed by joint ventures that include certified MWBE firms will count towards the project goal according to the percentage of ownership and control that the certified MWBE holds in the joint venture.

Certified MWBE firms are defined as businesses: (i) owned or controlled by Native Americans, Asian Americans, African Americans, Hispanics, or women; (ii) located in the Denver-Aurora-Boulder Combined Statistical Area (as defined by the U.S. Office of Management and Budget); and (iii) holding a certification from the City and County of Denver, the Mountain Plains Minority Supplier Development Council (NSMDC), the Women's Business Enterprise National Council West (WBENC). A business is deemed owned by whoever holds at least 51% of the equity interest in the enterprise. A business is deemed controlled by its chief executive officer (if the business is a corporation), its managing partner (if business is a partnership), the proprietor (if the business is a sole proprietorship), and in all cases by the person or persons with ultimate decision-making authority in the ongoing, day-to-day operation of the business. A business is deemed located in the Denver-Aurora-Boulder Combined Statistical Area if its headquarters or a local office is located within the area.

Bid applicants must state their commitment to the project goal by executing and submitting the following Affirmation of Diverse Business Inclusion Commitment. The vendor to whom the work is awarded will be required to input information into the Office of Business Diversity Contract Management System 72 hours after notification of award. This will include scope of work to be performed by each subcontractors, including non-certified subcontractors. Identify if subcontractor is a minority, women business enterprise and include their certification letter. If work performed by the general contractor/vendor or a joint venture are to be counted towards the project goal, then current MWBE certifications for the general contractor/vendor or the member of the joint venture must be included. The OBD–CM system may be reached by typing denverpublicschools.diversitycompliance.com/ in your internet browser address line. Failure to comply with this requirement maybe be grounds for termination of award.

During the project and upon conclusion, vendor shall provide information to the owner demonstrating its use of certified MWBEs. If vendor cannot demonstrate that it fulfilled its Diverse Business Inclusion Commitment, then vendor is subject to, among other things, being prohibited from applying for future contracts with owner for a period of at least six months after conclusion of the project. At the conclusion of the suspension period, vendor must, to the satisfaction of owner, provide in writing an explanation for its failure to meet its commitment and a description of its plan to ensure that it achieves future commitments made to the District.

Diverse Business Inclusion Commitment (Include This Page Only)

I,_____have read and understand this Diverse Business Inclusion Commitment, I am
Signatory's name

authorized to act on behalf of _____which includes the authorization to commit to
Companies Name

meeting a Diverse Business Inclusion Commitment, and I hereby commit that _____
Companies Name

will meet the project goal that certified MWBEs will perform_____% of the project's total work, as calculated by

the percentage of the project's total payments that are made to certified MWBEs..

_____ _____
Signature Date

_____
Name (print)

_____
RFP/Project Number and Name

EXHIBIT D

Denver Public Schools, Denver Colorado
PERFORMANCE AND PAYMENT BOND

Bond No._____ (the "Bond")

KNOW ALL MEN BY THESE PRESENTS that _____
_____, as Principal (the "Principal"), and _____
_____
_____, a corporation organized and existing under the laws of the State of _____, and authorized to transact business in the State of Colorado, as Surety (the "Surety"), jointly and severally, bind themselves, their heirs, personal representatives, successors, and assigns to the SCHOOL DISTRICT NO.1 IN THE CITY AND COUNTY OF DENVER AND STATE OF COLORADO (the "Owner"), in the principal amount of _____ ($_____) as adjusted by approved change orders (not to exceed ten (10) percent of the principal amount of this Bond unless expressly approved by the Surety, which approval shall not be unreasonably withheld) and interest as provided by law (collectively referred to herein as the "Penal Sum"), for the performance of and payment of all amounts due under the agreement between the Principal and the Owner, dated _____, 20__, (the "Agreement") for the following project:
_____ (the "Project"), together with the obligations of the Contract Documents, as defined in the Agreement, all of the documents are incorporated by this reference and shall be, collectively, referred to as, the "Contract".

The condition of this obligation is such that, if the Principal shall at all times duly, promptly, and properly perform all the terms and conditions of the Contract and any authorized modifications thereof during the original term of the Contract, any extensions thereof that may be granted by the Owner, and during the term of any guarantee or warranty required under the Contract; and promptly make payment of all amounts, claims, or demands lawfully due to all persons, firms, associations, or corporations supplying or furnishing to the Principal or its subcontractors labor or materials, supplies, or equipment which are used, provided, or performed in the prosecution of the work provided for in the Contract and any and all duly authorized modifications of the Contract that may hereafter be made, then the Principal and Surety shall have no obligation under this Bond, otherwise, it shall remain in full force and effect and the Surety shall pay the full value of all payment amounts, claims or demands lawfully due and shall indemnify and hold the Owner harmless from all payments which the Owner may be required to make under the Contract or applicable law in excess of the Contract price not exceeding the amount of this obligation, together with interest as provided by law, as well as attorneys' fees and costs incurred by the Owner in the resolution of any claim.

Whenever the Owner terminates the Contract in accordance with the terms thereof, the Surety shall, within fifteen (15) calendar days after written notice of such termination, notify the Owner in writing of its election to complete the Contract in accordance with its terms, or notify the Owner that the Surety elects not to complete the Contract. If the Surety fails to give the written notice so required within such time period, then it will be deemed to have elected not to complete the Contract. Should the Surety elect to complete the Contract, it shall, within fifteen (15) additional calendar days following the date of receipt of the written notice of such election and with the Owner's written approval, obtain a contractor to complete the work in accordance with the original Contract's terms and conditions and thereafter proceed to work with due diligence and as the work progresses make available sufficient funds to pay the cost of completion less the balance of the Contract price. The Surety may not engage the Principal to complete the Contract, without the prior written consent of the Owner, which consent may be withheld at the sole and absolute discretion of the Owner.

If the Surety elects to complete the Contract, then it shall be entitled to receive the balance of the Contract price, less (i) any amounts paid by the Owner to the Principal; (ii) costs incurred by the Owner in correcting any defective work; (III) any additional legal, design professional, and other costs incurred by the Owner resulting from the Principal's default; and (iv) liquidated damages caused by delayed performance or nonperformance of the Principal. Any progress payments, less retainage, due but not paid at the date of termination shall be paid to Surety so long as the Surety has agreed to indemnify the Owner for the amount thereof and no other claims have been made to such funds by subcontractors or suppliers in accordance with the Contract or applicable law.

In the event the Surety elects not to complete the Contract, the Owner may then have the work completed by such means and in such manner, by contract with or without public bidding, or otherwise, as it may deem advisable. The Surety in such event shall at all times make available, sufficient funds, which at no time shall exceed the Penal Sum, as work progresses under the Contract between the Owner and its new contractor, and will pay the cost of the completion of the Contract pursuant to its terms, together with the other amounts set forth in sections (i) through (iv) above, but in no event shall the Surety be responsible for the payment of any sums to the Owner until the Owner has agreed to pay its total obligation according to the terms of the Contract, plus change orders, less deductions and claims chargeable by law or by the Contract, if any, and less the retainage which will be disbursed as proved by the Contract Documents and applicable law.

The procedures set forth herein shall apply should there be a default and termination or a succession of defaults and terminations in fulfilling the terms and conditions of the work under the Contract.

Any judgment recovered hereunder by the Owner shall include interest at the legal rate, together with reasonable attorneys' fees and costs.

IN WITNESS WHEREOF said Principal and Surety have executed this Bond, this _____ day of _____A.D., 20_____.

Principal:

(PRINCIPAL'S CORPORATE SEAL)

ATTEST:

By: _____ Date: _____
Print Name: _____
Title: _____

By: _____ Date: _____
Print Name: _____
Title: _____

Surety:

(SURETY'S CORPORATE SEAL)

By: _____ Date: _____
Print Name: _____
Attorney-in-fact

THIS BOND MUST BE ACCOMPANIED BY A POWER OF ATTORNEY

Best's Rating: _____
Best's Financial Rating: _____
Date: _____

EXHIBIT E

Denver Public Schools Construction Safety Standards Acknowledgement Form

FACILITY: _____

PROJECT: _____

PROJECT MANAGER: _____

I have been informed that the Construction Safety Standards have been made available to me and that it is an OSHA and U.S. Department of Labor requirement that I must provide a safe workplace environment free from safety hazards. The DPS Construction Safety Standards may be found at the DPS website:

2017 Bond Construction – Construction Safety Standards

I am aware that the terms of the Construction Agreement provide that all Vendors shall have a written Safety and Health Program Plan that complies with current laws regarding worker health and safety and the prevention of accidents or injury to persons on or about the site (including the Occupational Safety and Health Act of 1970 as amended, the standards issued by the Secretary of Labor at 29 CFR Part 1926 and 29 CFR Part 1910 as amended, safety laws of the State of Colorado, and other safety laws and regulations). These written plans shall be available for Owner's review at each worksite.

Each Vendor's employee is responsible for complying with applicable safety and occupational health requirements, wearing prescribed safety and health equipment, reporting unsafe conditions/activities, preventing avoidable accidents, and working in a safe manner.

Vendor's employees are required to wear the following minimum Personal Protective Equipment (PPE) while on Owner's worksite:
A. Hard Hat
B. Safety Glasses
C. Safety Vest
D. Safety Shoes
E. Safety Gloves if activity requires hand protection
F. Other PPE as appropriate for work activity

The Prime Contractor/ Vendor is responsible for ensuring subcontractor and subcontractor compliance with the safety and occupational health requirements as contained within the vendor's written Safety and Health Program Plan.

Vendor agrees to inform DPS Construction Services Safety Manager of all "lost day" work accidents immediately, and submit total vendor and subcontractor work hours at the completion of the project.

DATE:_____

SIGNATURE:_____

NAME:_____

SUPPLIER:_____

ADDITIONS AND DELETIONS:
The author of this document may have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

Consultation with an attorney is also encouraged with respect to professional licensing requirements in the jurisdiction where the Project is located.

AIA® Document A141® – 2024

Standard Form of Agreement Between Owner and Design-Builder for a Traditional Design-Build Project

AGREEMENT

BETWEEN the Owner:

School District No. 1 in the City and County of Denver and State of Colorado
1860 Lincoln Street
Denver, CO 80203

and the Design-Builder:
(Name, legal status, address, and other information)

for the following Project:
(Name, location, and detailed description)

The Owner and Design-Builder agree as follows.

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ARTICLE 1 GENERAL PROVISIONS

§ 1.1 Owner's Criteria

This Agreement is based on the Owner's Criteria set forth in this Section 1.1.

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User Notes: (67076cde8f3b74144f35bd01)

§ 1.1.1 Omitted.

§ 1.1.2 The Owner's design requirements for the Project:

§ 1.1.3 Omitted.

§ 1.1.4 The Owner's anticipated Sustainable Objective for the Project, if any:
e The Owner's goal is to incorporate Sustainable Measures into the design, construction, maintenance and operations of the Project to achieve a benefit to the environment, enhance the health and well-being of building occupants, and work towards the Owner's goal of reaching an energy use intensity (EUI) of 48 kBTU/sqft/year for renovated buildings and 19 for new buildings. This goal includes, but is not limited to:

- Utilizing electrification options to remove natural gas and/or steam
- Implementing energy modeling and life-cycle cost analysis of existing and proposed designs to evaluate cost and EUI differences
- Implementation of SMART building characteristics as defined by DPS in this one-pager

The Design-Builder shall work with the Owner, the Owner's consultants, and the Design-Builder's consultants to discuss potential Sustainable Measures; examine strategies for implementation of the Sustainable Measures; and discuss the potential impact of the Sustainable Measures on the Project schedule, the Owner's program, the Owner's budget for the Cost of the Work, and the Owner's Climate Action Policy and subsequent Plan.

§ 1.1.4.1 If the Owner identifies a Sustainable Objective, the Owner and Design-Builder shall complete and incorporate AIA Document E204™–2017, Sustainable Projects Exhibit, into this Agreement to define the terms, conditions and services related to the Owner's Sustainable Objective. If E204–2017 is incorporated into this agreement, the Owner and Architect shall incorporate the completed E204–2017 into the agreements with the consultants and contractors performing services or Work in any way associated with the Sustainable Objective.

§ 1.1.5 Omitted.

§ 1.1.6 The Owner's budget for the Work to be provided by the Design-Builder is set forth below:
(Provide the Owner's total budget for the Design Services, Construction Work, related services, and reasonable contingencies, required to fulfill the Design-Builder's obligations under the Design-Build Documents following execution of the Design Build Amendment. If known, include a line-item breakdown of costs.)

§ 1.1.7 The Owner's anticipated design and construction milestones:

.1 Design Builder's Proposal submission date:

.2 Construction commencement date:

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.3 Substantial Completion date or dates:

.4 Other milestone dates:
(Include other dates, such as milestones for Evaluation of the Owner's Criteria, Preliminary Design, the anticipated start of construction, or phased completion dates.)

Schematic Design Phase milestone date:

« »
Design Development Phase milestone date:
50% Construction Documents Phase milestone date:
Construction Documents Phase milestone date:
Design-Builder Procurement Phase milestone date:
Construction Phase milestone date:
Closeout Phase milestone date:

§ 1.1.8 Omitted.

§ 1.1.9 Additional Owner's Criteria upon which this Agreement is based:
(Identify below, or in an attached exhibit, special characteristics or needs of the Project not identified elsewhere.)

§ 1.1.10 The Design-Builder shall confirm that the information included in the Owner's Criteria complies with applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities.

§ 1.1.10.1 If the Owner's Criteria conflicts with applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, the Design-Builder shall notify the Owner of the conflict.

§ 1.1.11 If there is a change in the Owner's Criteria, the Owner and the Design-Builder shall execute a Modification in accordance with Article 6.

§ 1.2 Project Team
§ 1.2.1 The Owner identifies the following representative in accordance with Section 7.1.1:
(List name, address, and other information.)

§ 1.2.2 Omitted.

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§ 1.2.3 The Design-Builder identifies the following representative in accordance with Section 3.1.2:
(List name, address and other information.)

§ 1.2.4 In addition to those persons or entities identified in Section 1.1.8, the Design-Builder shall retain the Architect, Consultants, Subcontractors, and suppliers, identified below:
(List name, discipline, address, and other information.)

§ 1.2.5 The Design-Builder shall employ a competent superintendent who shall be in attendance at the Project site at all times during performance of the Work. In addition, the Design-Builder may employ a project manager and necessary assistants who may supervise several Project sites. The superintendent shall represent the Contractor, and communications given to the superintendent shall be as binding as if given to the Contractor. Important communications shall be similarly confirmed in writing. Other communications shall be similarly confirmed on written request in each case. Contractor's selection of project manager or superintendent(s) shall be approved by Owner, and Contractor shall not replace the project manager or superintendent(s) without Owner's consent or until a replacement project manager or superintendent(s) has been selected in accordance with this Section. The Owner may reject or require removal of any job superintendent, project manager or employee of the Contractor, Subcontractor or Sub-Subcontractor involved in the Project. Contractor shall provide an adequate staff for the proper coordination and expedition of the Work. Owner reserves the right to require Contractor to dismiss from the Work any employee or employees that Owner may deem incompetent, careless, insubordinate, or in violation of any provision in these Contract Documents. This provision is applicable to Subcontractors, Sub-Subcontractors and their employees.

§ 1.2.6 The Design-Builder's representative shall be changed without ten days' notice to the other party.

§ 1.3 Binding Dispute Resolution. For any Claim subject to, but not resolved by, mediation pursuant to Section 15.3, the method of binding dispute resolution shall be litigation in a court of competent jurisdiction. Venue shall exclusively be in the state or federal courts located in the State of Colorado.

§ 1.4 Definitions

§ 1.4.1 Architect. The Architect is a person or entity providing Design Services for the Design-Builder for all or a portion of the Work and is lawfully licensed to practice architecture in the applicable jurisdiction. The Architect is referred to throughout the Design-Build Documents as if singular in number.

§ 1.4.2 Confidential Information. Confidential Information is information containing confidential or business proprietary information that is designated as "confidential."

§ 1.4.3 Consultant. A Consultant is a person or entity providing services for the Design-Builder for all or a portion of the Work and is referred to throughout the Design-Build Documents as if singular in number. If the Consultant provides professional services, the Consultant shall be lawfully licensed to provide such services, as required by the applicable jurisdiction.

§ 1.4.4 The Contract. The Design-Build Documents form the Contract. The Contract represents the entire and integrated agreement between the parties and supersedes prior negotiations, representations or agreements, either written or oral. The

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Contract may be amended or modified only by a Modification. The Design-Build Documents shall not be construed to create a contractual relationship of any kind between any persons or entities other than the Owner and the Design-Builder. To be effective, all Design-Build Documents requiring signatures must be signed first by the Design-Builder and then by the Owner's Board of Education or designee as identified in Owner's Board of Education Regulation DJA-R. If an approved Design-Build Document requiring signature has not been signed, then the missing signature shall be provided within a reasonable period of time. Failure to sign an approved Design-Build Document after notice and a reasonable opportunity to sign shall be considered a material breach of the Contract.

§ 1.4.4 To be effective, all Design-Build Documents requiring signatures must be signed first by the Design Builder and then by the Owner's Board of Education or designee as identified in Owner's Board of Education Regulation DJA-R. If an approved Design-Build Document requiring a signature has not been signed, then the missing signature shall be provided within a reasonable period of time. Failure to sign an approved Design Build Document after notice and a reasonable opportunity to sign shall be considered a material breach of the Contract.

§ 1.4.5 Contract Sum. The Contract Sum is the amount to be paid to the Design-Builder for performance of the Work after execution of the Design-Build Amendment, as set forth in the Design-Build Amendment.

§ 1.4.6 Contract Time. The Contract Time is the period of time identified in the Design-Build Amendment, measured from the date for commencement of the Construction Work, including authorized adjustments, established as the period for the Design-Builder to achieve Substantial Completion of the Work.

§ 1.4.7 Subcontractor. A Subcontractor is a person or entity performing all or a portion of the construction, required in connection with the Work, for the Design-Builder. Each Subcontractor shall be lawfully licensed, if required in the jurisdiction where the Project is located.

§ 1.4.8 Cost of the Work. The Cost of the Work includes all costs reasonably incurred by the Design-Builder in the proper performance of the Work as described in Article B.6 of the Design-Build Amendment.

§ 1.4.9 Day. The term "day" as used in the Design-Build Documents shall mean calendar day unless otherwise specifically defined.

§ 1.4.10 Design-Build Documents. The Design-Build Documents consist of this Agreement between Owner and Design-Builder (hereinafter, this Agreement), other documents listed in this Agreement, and Modifications issued after execution of this Agreement, all of which form the Contract and are as fully a part of the Contract as if attached to this Agreement or repeated herein. A Modification is (1) a written amendment to the Contract signed by both parties, including the Design-Build Amendment, (2) a Change Order, or (3) a Change Directive. The Design-Build Documents will also include the Drawings, Specifications, and other documents listed in the Design-Build Amendment. If anything in the other Design-Build Documents, other than a Modification, is inconsistent with this Agreement, this Agreement shall govern.

§ 1.4.11 Design-Builder. The Design-Builder is the person or entity identified as such in this Agreement and is referred to throughout the Design-Build Documents as if singular in number. The term "Design-Builder" means the Design-Builder or the Design-Builder's authorized representative.

§ 1.4.12 Work. "Work" means the (a) services required of the Design-Builder prior to the execution of the Design-Build Amendment, (b) Design Services, and (c) Construction Work.

§ 1.4.12.1 Design Services. "Design Services" are the professional services, including those services that are rendered by architects and engineers, which are required to fulfill the Design-Builder's obligations under the Design-Build Documents. Design Services do not include professional or other services necessary to support Construction Work which are provided by Subcontractors engaged by the Design-Builder.

§ 1.4.12.2 Construction Work. "Construction Work" is the construction, and services to support construction, required by the Design-Build Documents, whether completed or partially completed, and includes all other labor, materials, equipment, and

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services provided, or to be provided, by the Design-Builder to fulfill the Design-Builder's obligations under the Design-Build Documents.

§ 1.4.13 Early Release Work. "Early Release Work" is a limited, predetermined portion of the Project or scope of the Work that the Owner authorizes the Design-Builder to commence before the parties execute the Design-Build Amendment.

§ 1.4.14 Instruments of Service. Instruments of Service are representations, in any medium of expression now known or later developed, of the tangible and intangible creative work performed by the Design-Builder, Subcontractors, Architect, or Consultants under their respective agreements. Instruments of Service may include, without limitation, studies, surveys, models, sketches, drawings, specifications, and other similar materials.

§ 1.4.15 Notice

§ 1.4.15.1 Except as otherwise provided in Section 1.4.15.2, where the Design-Build Documents require one party to notify or give notice to the other party, such notice shall be provided in writing to the designated representative of the party to whom the notice is addressed and shall be deemed to have been duly served if delivered in person, by mail, by courier, or by electronic transmission as set forth below:
(Insert requirements for delivering notice in electronic format such as name, title, and email address of the recipient and whether and how the system will be required to generate a read receipt for the transmission. If the parties agree upon protocols for electronic transmission of notice, identify and attach that document.)

§ 1.4.15.2 Notice of Claims as provided in Section 15.1.3 shall be provided in writing and shall be deemed to have been duly served only if delivered to the designated representative of the party to whom the notice is addressed by certified or registered mail, or by courier providing proof of delivery.

§ 1.4.16 Owner. The Owner is the person or entity identified as such in this Agreement and is referred to throughout the Design-Build Documents as if singular in number. The term "Owner" means the Owner or the Owner's authorized representative.

§ 1.4.17 The Project. The Project is comprised of all design and construction, of which the Work performed under the Design-Build Documents may be the whole or a part, and may include design and construction by the Owner and by Separate Contractors.

§ 1.5 The Owner and Design-Builder may rely on the Owner's Criteria set forth in Article 1. If the Owner's Criteria materially changes after execution of this Agreement, the Owner and the Design-Builder shall execute a Modification to adjust the Project schedule, the Design-Builder's services, and the Design Builder's compensation. The Owner shall adjust the Owner's budget in Section 1.1.6 and the Owner's anticipated design and construction milestones, as necessary, to accommodate material changes in the Owner's Criteria.

ARTICLE 2 COMPENSATION AND PROGRESS PAYMENTS

§ 2.1 Compensation for Work Prior To Execution of Design-Build Amendment

§ 2.1.1 For the Design-Builder's performance of Work prior to the execution of the Design-Build Amendment, the Owner shall compensate the Design-Builder as follows:
(Insert amount of, or basis for, compensation, or indicate the exhibit in which the information is provided. If there will be a limit on the total amount of compensation for Work performed prior to the execution of the Design-Build Amendment, state the amount of the limit.)

§ 2.1.2 The hourly billing rates for services of the Design-Builder and the Design-Builder's Architect, Consultants, and Subcontractors, if any, are set forth below. The rates shall be adjusted in accordance with the Design-Builder's, Architect's, Consultants', and Subcontractors' normal review practices.

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(If applicable, attach an exhibit of hourly billing rates or insert them below.)

Individual or Position	Rate

§ 2.1.3 Omitted.
§ 2.1.3.2 Omitted.
§ 2.1.4 Additional Services. Omitted.
§ 2.1.4.5 Omitted.
§ 2.1.5 Payments to the Design-Builder Prior To Execution of Design-Build Amendment
§ 2.1.5.1 Unless otherwise agreed, payments for Work prior to execution of the Design-Build Amendment shall be made monthly upon presentation of the Design-Builder's invoice.

§ 2.1.5.1.1 Omitted.

§ 2.1.5.2 Omitted.

§ 2.2 Payment for Early Release Work
For the Design-Builder's performance of Early Release Work, the Owner shall pay the Design-Builder in accordance with the authorization for the Early Release Work, unless otherwise agreed to by the parties.

§ 2.3 Compensation for Work Performed After Execution of Design-Build Amendment
§ 2.3.1 For the Design-Builder's performance of Work after execution of the Design-Build Amendment, the Owner shall pay to the Design-Builder the Contract Sum as set forth in Article 9 and the Design-Build Amendment.

§ 2.3.2 Liquidated Damages
The Design-Builder's liability for liquidated damages resulting from the Design-Builder's failure to achieve Substantial Completion within the Contract Time shall be as follows:
(For each item in Section 2.3.2.1 through 2.3.2.4, insert the information or a statement such as "not applicable".)

.1 Insert the monetary amount of liquidated damages, if any, to be assessed:
(Identify the monetary amount of liquidated damages, the incremental period of time for each assessment, and whether that amount is uniform or variable over time.)

.2 Insert the date(s) or event(s), if any, that triggers the commencement of the assessment of liquidated damages, if other than the date of Substantial Completion of the entire Project:

.3 Insert the limit, if any, on the total amount of liquidated damages:

.4 Insert any other terms for liquidated damages:

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ARTICLE 3 GENERAL REQUIREMENTS OF THE WORK OF THE DESIGN-BUILD CONTRACT

§ 3.1 General

§ 3.1.1 The Design-Builder shall comply with any applicable licensing requirements in the State of Colorado and the City and County of Denver.

§ 3.1.2 The Design-Builder shall designate in writing a representative who shall have express authority to bind the Design-Builder with respect to all matters under this Agreement.

§ 3.1.3 The Design-Builder shall perform the Work in accordance with the Design-Build Documents. The Design-Builder shall not be relieved of its obligations to perform the Work in accordance with the Design-Build Documents by the activities, tests, inspections, or approvals of the Owner.

§ 3.1.4 If the Design-Builder performs Work contrary to applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, the Design-Builder shall assume responsibility for such Work and shall bear the costs attributable to correction.

The Design-Builder shall, at all times, comply with, and ensure that all Work provided under this Agreement are in full compliance with the following standards, as they may be amended or updated: (1) all applicable provisions of §§ 24-85-101, *et seq.*, C.R.S.; (2) all accessibility standards for individuals with disabilities adopted by the State of Colorado Governor's Office of Information Technology (OIT) pursuant to Section § 24-85-103, C.R.S.; (3) all other State of Colorado technology standards related to technology accessibility; and (4) Levels A and AA of the most current version of the Web Content Accessibility Guidelines (WCAG). The Design-Builder shall indemnify, hold harmless, and defend the Owner, and its board members, employees, and agents, from all costs, expenses, claims, damages, liabilities, attorney fees and related costs, and any other amounts (collectively, "Losses"), incurred by the Owner arising from or relating to the Contractor's noncompliance with accessibility standards for individuals with disabilities adopted by OIT pursuant to Section §§ 24-85-103, *et seq.*, C.R.S.

§ 3.1.4.1 Neither the Design-Builder nor any Subcontractor, Consultant, or Architect shall be obligated to perform any act which they believe will violate any applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities. If the Design-Builder determines that implementation of any instruction received from the Owner, including those in the Owner's Criteria, would cause a violation of any applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, the Design-Builder shall notify the Owner in writing. Upon confirmation by the Owner that a change to the Owner's Criteria is required to remedy the violation, the Owner and the Design-Builder shall execute a Modification.

§ 3.1.5 The Design-Builder represents and warrants the following to the Owner (in addition to the other representations and warranties contained in the Design-Build Documents), as an inducement to the Owner to execute this Contract, which representations and warranties shall survive the execution and delivery of the Contract and the Substantial Completion of the Work:

.1 that it is financially solvent, able to pay its debts as they mature, and possessed of sufficient working capital to complete the Work and perform its obligations under the Design-Build Documents;

.2 that it is able to furnish the tools, materials, supplies, equipment and labor required to timely complete the Work and perform its obligations hereunder and has sufficient experience and competence to do so;

.3 that it is authorized to do business in the State of Colorado and properly licensed by all necessary governmental, public, and quasi- public authorities having jurisdiction over it, the Work, or the site of the Project; and

.4 that the execution of the Contract and its performance thereof are within its duly-authorized powers.

§ 3.1.6 The Design-Builder shall be responsible to the Owner for acts and omissions of the Design-Builder's employees, Architect, Consultants, Subcontractors, and their agents and employees, and any other persons or entities performing portions of the Work for, or on behalf of, the Design-Builder.

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§ 3.1.7 The Design-Builder shall schedule and conduct periodic meetings with the Owner to review matters such as procedures, progress, coordination, and scheduling of the Work.

§ 3.1.8 The Design-Builder shall furnish the services of Architects, Consultants, Subcontractors, and suppliers identified in Article 1 or otherwise required to fulfill its obligations under the Design-Build Documents. The Owner understands and agrees that the services of such parties are performed in the sole interest of, and for the exclusive benefit of, the Design-Builder. When applicable law requires that services be performed by licensed professionals, the Design-Builder shall provide those services through qualified and licensed professionals.

§ 3.1.9 The Design-Builder, with the assistance of the Owner, shall prepare and file documents required to obtain necessary approvals of authorities having jurisdiction over the Project.

§3.1.10 Conflict of Interest. The Design-Builder cannot be related to any employee of the Owner if such a relationship would create a material financial interest or result in the violation of DPS Board Policy GBEA by either Design-Builder or the employee of the Owner. The Design-Builder agrees to abide by the Code of Conduct and Conflict of Interest Certification attached to this Agreement and incorporated herein as **Exhibit D**.

§ 3.1.9 Progress Reports

§ 3.1.9.1 The Design-Builder shall keep the Owner informed of the progress and quality of the Work. On a weekly basis, or otherwise as agreed to by the Owner and Design-Builder, the Design-Builder shall submit written progress reports to the Owner, showing estimated percentages of completion and other information identified below:

- **.1** Work completed for the period;
- **.2** Project schedule status;
- **.3** Submittal schedule and status report, including a summary of outstanding Submittals;
- **.4** Requests for information to be provided by the Owner, including those that are outstanding;
- **.5** Approved Change Orders and Change Directives;
- **.6** Pending Change Order and Change Directive status reports;
- **.7** Tests and inspection reports;
- **.8** Status report of Work rejected by the Owner;
- **.9** Status of submissions and approvals required by authorities having jurisdiction over the Project;
- **.10** Status of Claims previously submitted in accordance with Article 15;
- **.11** Cumulative total of the Cost of the Work to date including the Design-Builder's compensation, if any;
- **.12** Current Project cash-flow and forecast reports;
- **.13** A cost summary, comparing actual costs to updated cost estimates, if the Contract Sum is the Cost of the Work with or without a Guaranteed Maximum Price; and
- **.14** Design milestones and milestone cost estimates; and
- **.15** Additional information as agreed to by the Owner and Design-Builder.

§ 3.1.8.2 In addition, where the Contract Sum is the Cost of the Work with or without a Guaranteed Maximum Price, the Design-Builder shall include the following additional information in its progress reports:

- **.1** Design-Builder's work force report;
- **.2** Equipment utilization report; and
- **.3** Cost summary, comparing actual costs to updated cost estimates.

§ 3.1.10 Design-Builder's Schedule

§ 3.1.10.1 The Design-Builder, as part of the Design-Builder's evaluation of the Owner's Criteria, shall prepare and submit for the Owner's acceptance a Project schedule, which shall provide for expeditious and practicable execution of the Work. The Project schedule shall (1) include the time required for design and construction, (2) not exceed time limits set forth under the Design-Build Documents, (3) be revised at appropriate intervals as required by the conditions of the Work and the Design-Build Documents, (4) include allowances for periods of time required for the Owner's review, and (5) include allowances for approval of submissions by authorities having jurisdiction over the Project.

§ 3.1.10.2 The Design-Builder shall perform the Work in general accordance with the most recent Project schedule accepted by

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the Owner.

§ 3.1.11 Standard of Care

The Design-Builder shall perform (a) services required of the Design-Builder prior to the execution of the Design-Build Amendment, and (b) Design Services consistent with the degree of skill and care ordinarily provided by Design-Builders performing the same services in the same or similar locality under the same or similar circumstances.

§ 3.1.12 Warranty

§ 3.1.12.1 The Design-Builder warrants to the Owner that: (1) materials and equipment furnished under the Design-Build Documents will be new and of good quality; (2) the Work will be free from defects not inherent in the quality required or permitted; and (3) the Work will conform to the requirements of the Design-Build Documents. If, within the period of twenty-four (24) months from the date of Substantial Completion ("Warranty Period"), any of the Services is found to be defective in workmanship or materials, Design-Builder shall correct it promptly after receipt of written notice from Owner to do so. Deficiencies that impair the safety or habitability of a building shall be considered emergencies, and work to correct the same shall be commenced immediately upon notification of the deficiency and promptly, continuously and diligently pursued to completion. The obligations of Design-Builder under this Section shall survive termination of this Contract.

In addition to the above, the Design-Builder warrants the following to the Owner (in addition to the other representations and warranties contained in the Design-Build Documents), as an inducement to the Owner to execute this Contract, which representations and warranties shall survive the execution and delivery of the Contract and the Substantial Completion of the Work:

.1 that it is financially solvent, able to pay its debts as they mature, and possessed of sufficient working capital to complete the Work and perform its obligations under the Design-Build Documents;

.2 that it is able to furnish the tools, materials, supplies, equipment and labor required to timely complete the Work and perform its obligations hereunder and has sufficient experience and competence to do so;

.3 that it is authorized to do business in the State of Colorado and properly licensed by all necessary governmental, public, and quasi- public authorities having jurisdiction over it, the Work, or the site of the Project; and

.4 that the execution of the Contract and its performance thereof are within its duly-authorized powers.

§ 3.1.12.2 Warranty Inspections. The Design-Builder and Owner may make at least three (3) complete inspections of the Project after Final Completion. One such inspection shall be made approximately three (3) months after Final Completion of the Project, the second at eleven (11) months and the third at twenty-three (23) months after Final Completion. Owner shall be responsible to coordinate such inspections. At each such inspection, Design-Builder and Owner shall thoroughly examine the Project to confirm that all portions thereof are in accordance with the Design-Build Documents.

§ 3.1.12.3 Notwithstanding anything in the Design-Build Documents to the contrary, Owner and Design-Builder expressly agree that the Design-Builder shall provide in writing the warranties specified in the Specifications SECTION 01 78 23 Operation, Maintenance and Warranty Data.

§ 3.1.12.4 All material, equipment, or other special warranties required by the Design-Build Documents shall be issued in the name of the Owner, or shall be transferable to the Owner, and shall commence in accordance with Section 9.8.5.

§ 3.1.12.5 Design-Builder shall certify that the Project has been constructed in general conformance with the Architect's or Engineer's plans and specifications, as modified from time to time pursuant to the terms of the Design-Build Documents. Design-Builder shall fully complete a Certification of Substantial Completion.

§ 3.1.12.6 In the event of failure of materials, products, or workmanship, either during construction or the warranty period, the Design-Builder shall take appropriate measures to ensure correction of defective Work or replacement of the defective items, without cost to the Owner. Such warranty shall be maintained notwithstanding that certain systems may be activated prior to Substantial Completion as required for the satisfactory completion of the Project. Upon written notice from the Owner or Architect, the Design-Builder shall promptly remedy defects as covered by Design-Builder's warranty. If Design-Builder does not respond to the written notice, either by beginning corrective work or notifying Owner in writing regarding when corrective

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work will begin, within ten days of Design-Builder's receipt of the written notice, then the Owner may take measures to correct the Work and Design-Builder will be obligated to reimburse Owner's costs. The provisions of this subparagraph shall be in addition to, and not in lieu of, any other rights and remedies available to the Owner.

§ 3.1.12.7 When deemed necessary by the Owner and prior to installation of any item specifically made subject to a performance standard or regulatory agency standard under any provision of the Design-Build Documents, Design-Builder shall furnish proof of conformance to the Architect. Proof of conformance shall be in the form of:

.1 an affidavit from the manufacturer certifying that the item is in conformance with the applicable standards; or

.2 an affidavit from a testing laboratory certifying that the product has been tested within the past year and is in conformance with the applicable standards; or

.3 such further reasonable proof as is required by the Architect.

§ 3.1.12.8 The Design-Builder agrees to assign to the Owner at Substantial Completion of the Work, such assignment to be effective no later than Substantial Completion, any and all manufacturers' warranties relating to materials and labor used in the Work. Design-Builder further agrees to perform the Work in such manner so as to preserve any and all such manufacturers' warranties. All forms will be required to be submitted prior to Final Payment.

§ 3.1.12.9 The warranties of Design-Builder provided in Subparagraphs 3.1.12.1, 3.1.12.2, and 3.1.12.3 shall in no way limit or abridge the warranties of the suppliers of equipment and systems which are to comprise a portion of the Work and all such warranties shall be in form and substance as required by the Design-Build Documents. Design-Builder shall take no action or fail to act in any way which results in the termination or expiration of such third party warranties or which otherwise results in prejudice to the rights of Owner under such warranties. Design-Builder agrees to provide all notices required for the effectiveness of such warranties and shall include provisions in the contracts with the providers and manufacturers of such systems and equipment whereby Owner shall have a direct right, but not a duty, of enforcement of such warranty obligations.

§ 3.1.12.10 Design-Builder shall maintain a complete and accurate schedule of the date(s) of Substantial Completion and the dates upon which the warranty under section 11.2.2.1 herein on each phase or building will expire. Design-Builder shall provide a copy of such schedules to Owner and Architect. Prior to termination of the warranty period under Section 11.2.2.1 herein, Design-Builder shall accompany Owner and Architect on re-inspection of each Work in the Project and Design-Builder shall be responsible for correcting any warranty items which are observed or reported during the warranty period under Section 11.2.2.1 herein. Design-Builder shall prosecute such warranty work under Section 11.2.2.1 herein without interruption until accepted by Owner and Architect, even though such work should extend beyond the warranty period under Section 11.2.2.1 herein. If Design-Builder fails to provide the schedules to Owner and Architect, Design-Builder's warranty obligation described herein shall continue until such inspection is conducted and deficiencies are corrected.

§ 3.1.12.11 Prior to receipt of Final Payment, Design-Builder shall:

.1 Obtain original warranties, executed by all subcontractors, making the dates of beginning of the warranties the Date of Substantial Completion; and the warranties of suppliers and manufacturers, making the dates of beginning of the warranties no later than the Date of Substantial Completion;

.2 Verify that the documents are in proper form and contain full information;

.3 Co-sign warranties when required;

.4 Deliver warranties and bonds to the Architect who will review same prior to submission to the Owner.

§ 3.1.13 Royalties, Patents and Copyrights

§ 3.1.13.1 The Design-Builder shall pay all royalties and license fees for designs, processes, or products, required by the Design-Build Documents.

§ 3.1.13.2 The Design-Builder shall defend suits or claims for infringement of copyrights and patent rights and shall hold the Owner and its Separate Contractors and consultants harmless from loss on account thereof, but shall not be responsible for defense or loss when a particular design, process, or product of a particular manufacturer or manufacturers is required by the Owner, or where the copyright violations are contained in the Owner's Criteria. However, if an infringement of a copyright or patent is discovered by, or made known to, the Design-Builder, the Design-Builder shall be responsible for the loss unless

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such information is promptly furnished to the Owner. If the Owner receives notice from a patent or copyright owner of an alleged violation of a patent or copyright, attributable to the Design-Builder, the Owner shall give prompt notice to the Design-Builder.

§ 3.1.14 Indemnification

§ 3.1.14.1 To the fullest extent permitted by law, the Design-Builder shall indemnify and hold harmless the Owner, the Owner's consultants, and agents and employees of any of them, from and against third-party claims, damages, losses, and expenses, including but not limited to attorneys' fees, arising out of or resulting from performance of the Work, but only to the extent caused by the negligent acts or omissions of the Design-Builder, a Subcontractor, Architect, consultant, anyone directly or indirectly employed by them, or anyone for whose acts they may be liable, regardless of whether or not such claim, damage, loss, or expense is caused in part by a party indemnified hereunder. Such obligation shall not be construed to negate, abridge, or reduce other rights or obligations of indemnity that would otherwise exist as to a party or person described in this Section 3.1.14. The Design-Builder's obligation to indemnify and hold the Owner, the Owner's consultants, and agents and employees of any of them, harmless does not include a duty to defend.

§ 3.1.14.2 In claims against any person or entity indemnified under this Section 3.1.14 by an employee of the Design-Builder, a Subcontractor, anyone directly or indirectly employed by them, or anyone for whose acts they may be liable, the indemnification obligation under Section 3.1.14 shall not be limited by a limitation on amount or type of damages, compensation, or benefits payable by or for the Design-Builder or a Subcontractor under workers' compensation acts, disability benefit acts, or other employee benefit acts.

§ 3.1.15 Contingent Assignment of Agreements

§ 3.1.15.1 Each agreement for a portion of the Work is assigned by the Design-Builder to the Owner, provided that

.1 assignment is effective only after termination of the Contract by the Owner for cause pursuant to Sections 14.1.4 or 14.2.2 and only for those agreements that the Owner accepts by notifying the Design-Builder and the Architect, Consultants, and Subcontractors whose agreements are accepted for assignment; and

.2 assignment is subject to the prior rights of the surety, if any, obligated under bond relating to the Contract.

When the Owner accepts the assignment of an agreement, the Owner assumes the Design-Builder's rights and obligations under the agreement.

§ 3.1.15.2 Upon such assignment, if the Work has been suspended for more than 30 days, the compensation under the assigned agreement shall be equitably adjusted for increases in cost resulting from the suspension.

§ 3.1.15.3 Upon assignment to the Owner under this Section 3.1.15, the Owner may further assign the agreement to a successor design-builder or other entity. If the Owner assigns the agreement to a successor design-builder or other entity, the Owner shall nevertheless remain legally responsible for all of the successor design-builder's or other entity's obligations under the agreement.

§ 3.1.16 Design-Builder's Insurance and Bonds. The Design-Builder shall purchase and maintain insurance and provide bonds as set forth in Article 11 and AIA Document A141®–2024, Standard Form of Agreement Between Owner and Design-Builder for a Traditional Design-Build Project, Exhibit B, Insurance and Bonds.

ARTICLE 4 Omitted.

ARTICLE 5 WORK FOLLOWING EXECUTION OF THE DESIGN-BUILD AMENDMENT

§ 5.1 Construction Documents

§ 5.1.1 Upon the execution of the Design-Build Amendment, the Design-Builder shall prepare Construction Documents. The Construction Documents shall establish the quality levels of materials and systems required. The Construction Documents shall be consistent with the Design-Build Documents.

§ 5.1.2 The Design-Builder shall provide the Construction Documents to the Owner for the Owner's information. If the Owner discovers any deviations between the Construction Documents and the Design-Build Documents, the Owner shall promptly

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notify the Design-Builder of such deviations in writing. The Construction Documents shall not modify the Design-Build Documents unless the Owner and Design-Builder execute a Modification. The failure of the Owner to discover any such deviations shall not relieve the Design-Builder of the obligation to perform the Work in accordance with the Design-Build Documents.

§ 5.2 Construction Work

§ 5.2.1 Commencement. Except for any Early Release Work described in Section 5.2.2, the date of commencement of the Construction Work shall be the date identified in the Design-Build Amendment.

§ 5.2.2 Early Release Work

§ 5.2.2.1 The Design-Builder shall prepare, for the Owner's review and acceptance, a procurement proposal for Early Release Work which includes (a) portions of the Design Services or Construction Work that will be issued for procurement and construction in advance of the Design-Build Amendment, and (b) materials or equipment that must be procured prior to execution of the Design-Build Amendment.

§ 5.2.2.2 If the Owner accepts the Design-Builder's procurement proposal for Early Release Work, the Design-Builder shall prepare, for the Owner's review and acceptance, an authorization to proceed with Early Release Work describing the scope, schedule for performance, compensation, payments, retainage, insurance and bonds, and other terms and conditions applicable to procurement and performance of the Early Release Work. The Design-Builder has no obligation to commence procurement and performance of Early Release Work until the Owner and Design-Builder execute such authorization.

§ 5.2.2.3 Following execution of the authorization, the Design-Builder shall expedite and coordinate the procurement and performance of Early Release Work in accordance with this Agreement and such authorization. Following execution of the Design-Build Amendment, compensation for the Early Release Work shall be included in the Contract Sum and the time for performing the Early Release Work shall be included in the Contract Time.

§ 5.2.2.4 Early Procurement of Materials or Equipment by Owner

§ 5.2.2.4.1 If the Owner agrees to procure any materials or equipment prior to execution of the Design-Build Amendment, the Owner shall procure the materials or equipment on terms and conditions acceptable to the Design-Builder. After execution of the Design-Build Amendment, the Owner shall assign all contracts for these materials or equipment to the Design-Builder and the Design-Builder shall thereafter accept responsibility for them.

§ 5.2.3 Supervision. The Design-Builder shall supervise and direct the Construction Work, using the Design-Builder's best skill and attention. The Design-Builder shall be solely responsible for, and have control over, construction means, methods, techniques, sequences, and procedures, and for coordinating all portions of the Construction Work under the Contract, unless the Design-Build Documents provide other specific instructions concerning these matters.

§ 5.3 Submittals

§ 5.3.1 Submittals consist of Shop Drawings, Product Data, and Samples.

- **.1 Shop Drawings.** Shop Drawings are drawings, diagrams, schedules, calculations, and other data specially prepared for the Construction Work by the Design-Builder or a Subcontractor, Sub-subcontractor, manufacturer, supplier, or distributor, to illustrate some portion of the Construction Work.
- **.2 Product Data.** Product Data are illustrations, standard schedules, performance charts, instructions, brochures, diagrams, and other information furnished by the Design-Builder to illustrate materials or equipment for some portion of the Construction Work.
- **.3 Samples.** Samples are physical examples that illustrate materials, equipment, or workmanship, and establish standards by which the Construction Work will be judged.

§ 5.3.1.4 Submittals are not Design-Build Documents. Their purpose is to demonstrate how the Design-Builder proposes to conform to the information given and the design concept expressed in the Design-Build Documents for those portions of the Construction Work for which the Design-Build Documents require submittals. Review by the Owner is subject to the limitations of Section 5.3.3.1. Informational submittals upon which the Owner is not expected to take responsive action may be so identified in the Design-Build Documents. Submittals that are not required by the Design-Build Documents may be returned by the Owner without action.

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§ 5.3.1.5 Submittal Schedule. If the Design-Build Documents require the Design-Builder to submit Submittals to the Owner during performance of the Construction Work, the Design-Builder, prior to submitting any submittals, and thereafter as necessary to maintain a current submittal schedule, shall provide a submittal schedule for the Owner's approval. The Owner's approval shall not be unreasonably delayed or withheld. The submittal schedule shall (1) be coordinated with the Design-Builder's construction schedule, and (2) allow the Owner reasonable time to review submittals. If the Design-Builder fails to submit a submittal schedule or fails to provide submittals in accordance with the approved submittal schedule, the Design-Builder shall not be entitled to any increase in the Contract Sum or extension of Contract Time based on the time required for review of submittals.

§ 5.3.1.6 Documents and Submittals at the Site

The Design-Builder shall make available, at the Project site, the Design-Build Documents, including Change Orders, Change Directives, and other Modifications, in good order and marked currently to indicate field changes and selections made during performance of the Construction Work, and the approved Submittals. These shall be in electronic form or paper copy, available to the Owner, and delivered to the Owner upon completion of the Work as a record of the Construction Work as constructed.

§ 5.3.2 Design-Builder's Submittal Responsibilities

§ 5.3.2.1 The Design-Builder shall review for compliance with the Design-Build Documents, approve, and submit to the Owner, Submittals required by the Design-Build Documents, in accordance with the submittal schedule approved by the Owner or, in the absence of an approved submittal schedule, with reasonable promptness and in such sequence as to cause no delay in the Construction Work or in the activities of the Owner or of Separate Contractors.

§ 5.3.2.2 By submitting Submittals, the Design-Builder represents to the Owner that the Design-Builder has (1) reviewed and approved them, (2) determined and verified materials, field measurements, and field construction criteria related thereto, or will do so, and (3) checked and coordinated the information contained within such submittals with the requirements of the Construction Work and of the Design-Build Documents.

§ 5.3.2.3 The Design-Builder shall perform no portion of the Construction Work for which the Design-Build Documents require submittal and review of Submittals, until the respective submittal has been approved by the Owner.

§ 5.3.2.4 The Construction Work shall be in accordance with approved submittals except that the Design-Builder shall not be relieved of responsibility for deviations from the requirements of the Design-Build Documents by the Owner's approval of Submittals, unless the Design-Builder has specifically notified the Owner of such deviation at the time of submittal and (1) the Owner has given written approval to the specific deviation as a minor change in the Work, or (2) a Change Order or Change Directive has been issued authorizing the deviation. The Design-Builder shall not be relieved of responsibility for errors or omissions in Submittals by the Owner's approval thereof.

§ 5.3.2.5 The Design-Builder shall direct specific attention, in writing or on resubmitted Submittals, to revisions other than those requested by the Owner on previous submittals. In the absence of such notice, the Owner's approval of a resubmission shall not apply to such revisions.

§ 5.3.3 Owner's Submittal Responsibilities

§ 5.3.3.1 The Owner will review, approve, or take other appropriate action upon, the Design-Builder's Submittals, but only for the limited purpose of checking for conformance with the information and design concept expressed in the Design-Build Documents. The Owner's action will be taken in accordance with the submittal schedule approved by the Owner or, in the absence of an approved submittal schedule, with reasonable promptness while allowing sufficient time to permit adequate review. Review of such submittals is not conducted for the purpose of determining the accuracy and completeness of other details such as dimensions and quantities, or for substantiating instructions for installation or performance of equipment or systems, all of which remain the responsibility of the Design-Builder as required by the Design-Build Documents. The Owner's review of the Design-Builder's Submittals shall not relieve the Design-Builder of the obligations under Sections 3.1.3, 3.1.11, and 5.3.2. The Owner's review shall not constitute approval of safety precautions or of any construction means, methods, techniques, sequences, or procedures. The Owner's approval of a specific item shall not indicate approval of an assembly of which the item is a component.

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§ 5.3.3.2 Upon review of the submittals required by the Design-Build Documents, the Owner shall notify the Design-Builder of any non-conformance with the Design-Build Documents the Owner discovers.

§ 5.3.3.3 Omitted.

§ 5.4 Services Necessary to Support Construction Work

§ 5.4.1 The Design-Builder shall provide the services required to complete the Construction Work including services required to carry out the Design-Builder's responsibilities for construction means, methods, techniques, sequences, and procedures. The Design-Builder shall perform such services in compliance with applicable law.

§ 5.4.2 If the Design-Build Documents require services, certifications, or approvals by a licensed design professional during Construction, the drawings, calculations, specifications, certifications, Shop Drawings, and other Submittals prepared under the Design-Build Documents shall be signed and sealed by such design professional.

§ 5.4.3 The Owner shall be entitled to rely upon the services, certifications, and approvals provided by the design professionals under Section 5.4.2. The Owner shall provide prompt notice to the Design-Builder if the Owner observes or otherwise becomes aware of any errors, omissions, or inconsistencies in such services or information. The Owner is not required to ascertain that the services, certifications, and approvals performed or provided by the Design-Builder or the licensed design professional in connection with the Construction Work are in accordance with applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, but the Owner shall promptly report to the Design-Builder any nonconformity discovered by, or made known to, the Owner.

§ 5.5 Labor and Materials

§ 5.5.1 Unless otherwise provided in the Design-Build Documents, the Design-Builder shall provide and pay for labor, materials, equipment, tools, construction equipment and machinery, water, heat, utilities, transportation, and other facilities and services, necessary for proper execution and completion of the Construction Work, whether temporary or permanent, and whether or not incorporated or to be incorporated in the construction.

§ 5.5.2 When a material or system is specified in the Design-Build Documents, the Design-Builder may make substitutions only with the consent of the Owner and in accordance with a Change Order or Change Directive.

§ 5.5.3 The Design-Builder shall enforce strict discipline and good order among the Design-Builder's employees and other persons carrying out the Construction Work. The Design-Builder shall not permit employment of unfit persons or persons not properly skilled in tasks assigned to them. THE DESIGN-BUILDER RELEASES, INDEMNIFIES AND HOLDS HARMLESS THE OWNER FOR DESIGN BUILDER'S FORCES' NON-COMPLIANCE WITH OWNER'S DRUG-FREE, ALCOHOL-FREE, WEAPON-FREE, HARASSMENT-FREE, AND TOBACCO-FREE ZONES, DESIGN BUILDER'S FORCES' NON-COMPLIANCE WITH CRIMINAL LAW, OR DESIGN BUILDER'S FORCES' NON- COMPLIANCE WITH IMMIGRATION LAW OR REGULATIONS. Any individual found by Owner to have violated these restrictions is subject to permanent removal from the Project, at Owner's request. Design-Builder shall place similar language in its subcontract agreements, requiring its Subcontractors and Sub-subcontractors to be responsible for their own forces and Design-Builder shall cooperate with the Owner to ensure Subcontractor and Sub-subcontractor compliance.

§ 5.5.4 Design-Builder, its subcontractors and vendors shall bear responsibility for compliance with all federal and state laws, regulations, guidelines, and ordinances pertaining to worker safety and applicable to the Work. Design-Builder further recognizes that the Owner and Architect do not owe the Design-Builder any duty to supervise or direct his work so as to protect the Design-Builder from the consequences of his own conduct.

§ 5.5.5 Design-Builder must give advance written notice to the Owner if the Design-Builder or an owner or operator of the Design-Builder has been convicted of a felony. The Owner may terminate this Agreement if the Owner determines that the Design-Builder failed to give such notice or misrepresented the conduct resulting in the conviction. This paragraph requiring advance notice does not apply to a publicly-held corporation.

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§ 5.6 Taxes

The Owner is a tax exempt entity under the tax laws of the State of Colorado. The Design-Builder shall pay sales, consumer, use and similar taxes, for the Construction Work provided by the Design-Builder, that are legally enacted when the Design-Build Amendment is executed, whether or not yet effective or merely scheduled to go into effect.

§ 5.6.1 Design-Builder shall only include sales and use tax levied by the City and County of Denver on materials in its Schedules of Values, and Subcontractors and Suppliers shall only include such amounts in their bids. Except as provided in Section 3.6.2 below, the Owner will furnish to Design-Builder, on request by the Design-Builder, the necessary exemption certificates to aid the Design-Builder in the recovery or avoidance of any such taxes paid or otherwise due to be paid by Design-Builder for materials and equipment built into the Project, or to support the Design-Builder's failure to pay such taxes, as the case may be.

§ 5.6.2 Design-Builder and its Subcontractors shall be responsible to obtain from the Colorado State Department of Revenue certificates for exemption indicating that the purchase of construction building materials for the Work is for a purpose stated in Colorado Revised Statutes Section 39-26-114(1)(a)(XIX).

§5.6.3 At Owner's option, Design-Builder and Owner shall cooperate with one another so that Owner may purchase or contract directly for such items or Design-Builder and Owner shall make other appropriate arrangements as necessary to avoid incurring taxes, fees, and other costs. In such circumstances, Design-Builder shall act as agent for Owner in effecting such purchasing and contracting, Design-Builder shall have all the responsibilities as to such portions of the Work as Design-Builder otherwise has with respect to the Work. Design-Builder shall be responsible to expedite, arrange for and receive delivery of all such purchases, regardless of whether made by Design-Builder or Owner, and shall promptly examine deliveries to ascertain whether or not they comply with the requirements of the Construction and Design-Build Documents. Design-Builder shall promptly notify the Owner and Architect of any delay in the delivery of such purchases, any failure to receive such purchases as needed and any failure of such purchases to comply with the Design-Build Documents.

§5.6.4 To the extent that Owner makes any payments directly to Suppliers, such payments shall be credited against the payments due from Owner to Design-Builder hereunder and shown, as incurred, on all Applications for Payment. Owner shall promptly notify Design-Builder and Architect, on serially numbered forms, of any amount paid directly for materials, any discounts obtained by Owner, and the amount of the credit due to Owner.

§5.6.5 Design-Builder shall pay all sales, consumer, use, and other similar taxes required by law, all as part of the Contract Sum, except to the extent of the exemptions that may be available to Design-Builder or Owner as provided above. Design-Builder shall be entitled to an adjustment (increase) in the Contract Sum to the extent that an increase in the aggregate amount of such taxes payable by Design-Builder hereunder results from any change in Current Laws creating such taxes or increasing the rate of such taxes enacted after the date of the Agreement.

§ 5.7 Permits, Fees, Notices and Compliance with Laws

§ 5.7.1 Unless otherwise provided in the Design-Build Documents, the Design-Builder shall secure and pay for the building permit as well as any other permits, fees, licenses, and inspections by government agencies, necessary for proper execution of the Construction Work and Substantial Completion of the Project.

§ 5.7.2 The Design-Builder shall comply with and give notices required by applicable laws, statutes, ordinances, codes, rules and regulations, and lawful orders of public authorities, applicable to performance of the Work, including, without limitation, all laws, regulations and rules cited in § 22-1-135, C.R.S.; all laws, regulations and rules governing wages and overtime, civil rights/employment discrimination, equal employment, safety and health, verifiable security background checks, employees' citizenship, withholdings, pensions, reports, record keeping, and campaign contributions and political finance.

§ 5.7.3 Concealed or Unknown Conditions. If the Design-Builder encounters conditions at the site that are (1) subsurface or otherwise concealed physical conditions that differ materially from those indicated in the Design-Build Documents or (2) unknown physical conditions of an unusual nature that differ materially from those ordinarily found to exist and generally recognized as inherent in construction activities of the character provided for in the Design-Build Documents, the Design-Builder shall promptly provide notice to the Owner before conditions are disturbed and in no event later than seven (7) days after the conditions are first observed. The Owner shall promptly investigate such conditions and, if the Owner determines that they differ materially and cause an increase or decrease in the Design-Builder's cost of, or time required for, performance of

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any part of the Work, the Contract Sum or Contract Time, or both, shall be equitably adjusted. If the Owner determines that the conditions at the site are not materially different from those indicated in the Design-Build Documents and that no change in the terms of the Contract is justified, the Owner shall promptly notify the Design-Builder, stating the reasons. If the Design-Builder disputes the Owner's determination, the Design-Builder may submit a Claim as provided in Article 15.

§ 5.7.4 If, in the course of the Construction Work, the Design-Builder encounters human remains, or recognizes the existence of burial markers, archaeological sites, or wetlands, not indicated in the Design-Build Documents, the Design-Builder shall immediately suspend any operations that would affect them and shall notify the Owner. Upon receipt of such notice, the Owner shall promptly take any action necessary to obtain governmental authorization required to resume the operations. The Design-Builder shall continue to suspend such operations until otherwise instructed by the Owner but shall continue with all other operations that do not affect those remains or features. Requests for adjustments in the Contract Sum and Contract Time arising from the existence of such remains or features may be made as provided in Article 15.

§ 5.8 Allowances

§ 5.8.1 The Design-Builder shall include in the Contract Sum all allowances stated in the Design-Build Documents. Items covered by allowances shall be supplied for such amounts, and by such persons or entities as the Owner may direct, but the Design-Builder shall not be required to employ persons or entities to whom the Design-Builder has reasonable objection.

§ 5.8.2 Unless otherwise provided in the Design-Build Documents,

- **.1** allowances shall cover the cost to the Design-Builder of materials and equipment delivered at the site and all required taxes, less applicable trade discounts;
- **.2** the Design-Builder's costs for unloading and handling at the site, labor, installation costs, overhead, profit, and other expenses contemplated for stated allowance items, shall be included in the Contract Sum but not in the allowances; and
- **.3** whenever costs are more than or less than allowances, the Contract Sum shall be adjusted accordingly by Change Order. The amount of the Change Order shall reflect (1) the difference between actual costs and the allowances under Section 5.8.2.1 and (2) changes in Design-Builder's costs under Section 5.8.2.2.

§ 5.8.3 The Owner shall make selections of materials and equipment with reasonable promptness for allowances requiring Owner selection.

§ 5.9 Subcontracts and Other Agreements

§ 5.9.1 Those portions of the Construction Work that the Design-Builder does not customarily perform with the Design-Builder's own personnel shall be performed under subcontracts or other appropriate agreements with the Design-Builder. The Owner may designate specific persons from whom, or entities from which, the Design-Builder shall obtain bids. The Design-Builder shall obtain a minimum of three (3) competitive bids from subcontractors, including self-performed work, and from suppliers of materials or equipment fabricated especially for the Construction Work, who are qualified to perform that portion of the Construction Work in accordance with the requirements of the Design-Build Documents. The Design-Builder shall deliver such bids to the Owner with an indication as to which bids the Design-Builder intends to accept. The Owner then has the right to review the Design-Builder's list of proposed subcontractors and suppliers and, subject to Section 5.9.1.1, to object to any subcontractor or supplier. Any approval or objection by the Owner shall not relieve the Design-Builder of its responsibility to perform the Construction Work in accordance with the Design-Build Documents. The Design-Builder shall not be required to contract with anyone to whom the Design-Builder has reasonable objection.

§ 5.9.1.1 When a specific subcontractor or supplier (1) is recommended to the Owner by the Design-Builder; (2) is qualified to perform that portion of the Construction Work; and (3) has submitted a bid that conforms to the requirements of the Design-Build Documents without reservations or exceptions, but the Owner requires that another bid be accepted, then the Design-Builder may require that a Change Order be issued to adjust the Contract Sum by the difference between the bid of the person or entity recommended to the Owner by the Design-Builder and the amount of the subcontract or other agreement actually signed with the person or entity designated by the Owner.

§ 5.9.2 Subcontracts or other agreements shall conform to the applicable payment provisions of this Agreement and shall not be awarded on the basis of cost plus a fee without the Owner's prior written approval. If a subcontract is awarded on the basis of cost plus a fee, the Design-Builder shall provide in the Subcontract for the Owner to receive the same audit rights with

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regard to the Subcontractor as the Owner receives with regard to the Design-Builder in Article 9.

§ 5.10 Use of Site

The Design-Builder shall confine operations at the site to areas permitted by applicable laws, statutes, ordinances, codes, rules and regulations, lawful orders of public authorities, and the Design-Build Documents, and shall not unreasonably encumber the site with materials or equipment.

§ 5.11 Cutting and Patching

The Design-Builder shall not cut, patch or otherwise alter fully or partially completed construction by the Owner as specified in Owner's SPECIFICATION Section 07 73 29 (available at _____).

§ 5.12 Cleaning Up

§ 5.12.1 The Design-Builder shall keep the premises and surrounding area free from accumulation of waste materials or rubbish caused by operations under the Contract as specified by Owner's SPECIFICATIONS Section 01 74 00 (available at _____).

§ 5.12.2 If the Design-Builder fails to clean up as provided in the Design-Build Documents, the Owner may do so and the Owner shall be entitled to reimbursement from the Design-Builder.

§ 5.13 Access to Construction Work

The Design-Builder shall provide the Owner and its Separate Contractors and consultants with access to the Construction Work in preparation and progress wherever located. The Design-Builder shall notify the Owner regarding Project safety criteria and programs, which the Owner, and its Separate Contractors and consultants, shall comply with while at the site.

§ 5.14 Construction Work by Owner or by Separate Contractors

§ 5.14.1 Owner's Right to Perform Construction and to Award Separate Contracts

§ 5.14.1.1 The term "Separate Contractor(s)" shall mean contractors retained by the Owner under separate agreements. The Owner reserves the right to perform construction or operations related to the Project with the Owner's own forces, and with Separate Contractors retained under provisions substantially similar to those of this Agreement. The Owner will identify in the Design-Build Amendment the extent of construction or operations related to the Project that will be performed by Separate Contractors, and will notify the Design-Builder promptly after execution of any agreement with a Separate Contractor.

§ 5.14.1.2 The Owner shall coordinate the activities of the Owner's own forces, and of each Separate Contractor, with the Construction Work of the Design-Builder, who shall cooperate with them. The Design-Builder shall participate in a joint review of the construction schedules of the Owner and any Separate Contractors and after mutual agreement the Design-Builder shall revise its construction schedule. The construction schedules shall then constitute the schedules to be used by the Design-Builder, Separate Contractors, and the Owner until subsequently revised.

§ 5.14.1.3 Unless otherwise provided in the Design-Build Documents, when the Owner performs construction or operations related to the Project with the Owner's own forces or with Separate Contractors, the Owner or its Separate Contractors shall have the same obligations and rights that the Design-Builder has under the Contract.

§ 5.15 Owner's Right to Clean Up

If a dispute arises among the Design-Builder, Separate Contractors, and the Owner as to the responsibility under their respective contracts for maintaining the premises and surrounding area free from waste materials and rubbish, the Owner may clean up and will allocate the cost among those responsible.

§ 5.16 Design-Builder's Responsibility

§ 5.16.1 The Design-Builder shall afford the Owner and Separate Contractors reasonable opportunity for introduction and storage of their materials and equipment and performance of their activities, and shall connect and coordinate the Design-Builder's construction and operations with theirs as required by the Design-Build Documents.

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§ 5.16.2 If part of the Design-Builder's Construction Work depends for proper execution or results upon construction or operations by the Owner or a Separate Contractor, the Design-Builder shall, prior to proceeding with that portion of the Construction Work, promptly notify the Owner of apparent discrepancies or defects in the construction or operations by the Owner or Separate Contractor that would render it unsuitable for proper execution and results of the Design-Builder's Construction Work. Failure of the Design-Builder to notify the Owner of apparent discrepancies or defects prior to proceeding with the Construction Work shall constitute an acknowledgment that the Owner's or Separate Contractor's completed or partially completed construction or operations is fit and proper to receive the Design-Builder's Construction Work. The Design-Builder shall not be responsible for discrepancies or defects in the construction or operations by the Owner or Separate Contractor that are not apparent.

§ 5.16.3 The Design-Builder shall reimburse the Owner for costs the Owner incurs that are payable to a Separate Contractor because of the Design-Builder's delays, improperly timed activities, or defective Construction Work. The Owner shall be responsible to the Design-Builder for costs the Design-Builder incurs because of a Separate Contractor's delays, improperly timed activities, damage to the Construction Work or defective Construction Work.

§ 5.16.4 The Design-Builder shall promptly remedy damage that the Design-Builder causes to completed or partially completed Construction Work or to property of the Owner or Separate Contractors as provided in Section 10.2.5.

§ 5.16.5 The Owner and each Separate Contractor shall have the same responsibilities for cutting and patching the Construction Work as the Design-Builder has with respect to the Construction Work of the Owner or Separate Contractors in Section 5.11.

ARTICLE 6 CHANGES IN THE WORK

§ 6.1 General

§ 6.1.1 Changes in the Work may be accomplished after execution of the Contract, and without invalidating the Contract, by Change Order or Change Directive, subject to the limitations stated in this Article 6 and elsewhere in the Design-Build Documents. A properly prepared written request for a change in the Work by Design-Builder shall be accompanied by sufficient supporting data and information to permit the Design-Builder to make a recommendation to the Owner.

§ 6.1.2 A Change Order shall be based upon agreement between the Owner and Design-Builder and must be approved by the Owner's Board of Education or designee as identified in Owner's Board of Education Regulation DJA-R and the Change Order form. A Change Order must be agreed to prior to work pursuant to that Change Order commencing. The Owner may issue a Change Directive without agreement by the Design-Builder and must be approved by the Owner's Board of Education or designee.

§ 6.1.3 Changes in the Work shall be performed under applicable provisions of the Design-Build Documents. The Design-Builder shall proceed promptly with changes in the Work, unless otherwise provided in the Change Order or Change Directive. Design-Builder shall not make any claim for an adjustment to time, Contract Sum or Guaranteed Maximum Price due to: a change in the materials used; a change in the specified manner of constructing and/or installing the Work; or additional labor, services, or materials, beyond that actually required by the terms of the Design-Build Documents, unless made pursuant to a written order or directive from Owner authorizing Design-Builder to proceed with a Change in the Work. No claim for an adjustment to time, Contract Sum or Guaranteed Maximum Price shall be valid unless so ordered or directed

§ 6.2 Change Orders

A Change Order is a written instrument signed by the Owner and Design-Builder stating their agreement upon all of the following:

.1 The change in the Work;

.2 The amount of the adjustment, if any, in the Contract Sum or, if prior to execution of the Design-Build Amendment, the adjustment in the Design-Builder's compensation; and

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.3 The extent of the adjustment, if any, in the Contract Time.

§ 6.2.1 In no event shall a single change, or the aggregate of all changes, result in the total costs, reimbursements and fees exceeding the Contract Sum or the Guaranteed Maximum Price, unless agreed to in writing by Owner prior to the commencement of such modified or changed Work. In addition, for each change, the additional mark-ups for overhead, profit and fees shall not exceed 15% of the cost of the changed Work.

§ 6.3 Change Directives

§ 6.3.1 A Change Directive is a written order signed by the Owner directing a change in the Work prior to agreement on adjustment, if any, in the Contract Sum or, if prior to execution of the Design-Build Amendment, the adjustment in the Design-Builder's compensation, Contract Time, or both. The Owner may by Change Directive, without invalidating the Contract, order changes in the Work within the general scope of the Contract consisting of additions, deletions, or other revisions. The Contract Sum or, if prior to execution of the Design-Build Amendment, the Design-Builder's compensation, or Contract Time, or both, shall be adjusted accordingly.

§ 6.3.2 A Change Directive shall be used in the absence of total agreement on the terms of a Change Order.

§ 6.3.3 If the Change Directive provides for an adjustment to the Contract Sum or, if prior to execution of the Design-Build Amendment, an adjustment in the Design-Builder's compensation, the adjustment shall be based on one of the following methods:

.1 Mutual acceptance of a lump sum properly itemized and supported by sufficient substantiating data to permit evaluation;

.2 Unit prices stated in the Design-Build Documents or subsequently agreed upon;

.3 Cost to be determined in a manner agreed upon by the parties and a mutually acceptable fixed or percentage fee. The Design-Builder shall keep and present, in such form as the Owner may prescribe, an itemized accounting together with appropriate supporting data; or

.4 As provided in Section 6.3.4.

§ 6.3.4 If unit prices are stated in the Design-Build Documents or subsequently agreed upon, and if quantities originally contemplated are materially changed in a proposed Change Order or Change Directive so that application of such unit prices to quantities of Work proposed will cause substantial inequity to the Owner or Design-Builder, the applicable unit prices shall be equitably adjusted.

§ 6.3.5 Upon receipt of a Change Directive, the Design-Builder shall promptly proceed with the change in the Work involved and advise the Owner of the Design-Builder's agreement or disagreement with the method, if any, provided in the Change Directive for determining the proposed adjustment in the Contract Sum or, if prior to execution of the Design-Build Amendment, the adjustment in the Design-Builder's compensation, or Contract Time.

§ 6.3.6 A Change Directive signed by the Design-Builder indicates the Design-Builder's agreement therewith, including adjustment in Contract Sum or, if prior to execution of the Design-Build Amendment, the adjustment in the Design-Builder's compensation, and Contract Time or the method for determining them.

§ 6.3.7 If the Design-Builder does not respond promptly or disagrees with the method for adjustment in the Contract Sum or, if prior to execution of the Design-Build Amendment, the method for adjustment in the Design-Builder's compensation, the Owner shall determine the adjustment on the basis of reasonable expenditures and savings of those performing the Work attributable to the change, including, in case of an increase, an amount for overhead and profit as set forth in this Agreement, or if no such amount is set forth in this Agreement, a reasonable amount. In such case, the Design-Builder shall keep and present, in such form as the Owner may prescribe, an itemized accounting together with appropriate supporting data. Unless otherwise provided in the Design-Build Documents, costs for the purposes of this Section 6.3.4 shall be limited to the following:

.1 Additional costs of professional services;

.2 Costs of labor, applicable payroll taxes, fringe benefits required by agreement or custom, workers' compensation insurance, and other employee costs approved by the Owner;

.3 Costs of materials, supplies, and equipment, including cost of transportation, whether incorporated or

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consumed;

.4 Rental costs of machinery and equipment, exclusive of hand tools, whether rented from the Design-Builder or others;

.5 Costs of premiums for all bonds and insurance, permit fees, and sales, use, or similar taxes, directly related to the change; and

.6 Costs of supervision and field office personnel directly attributable to the change.

§ 6.3.8 Upon receipt of a Change Directive, the Design-Builder shall promptly proceed with the change in the Work involved and advise the Owner of the Design-Builder's agreement or disagreement with the method, if any, provided in the Change Directive for determining the proposed adjustment in the Contract Sum or, if prior to execution of the Design-Build Amendment, the adjustment in the Design-Builder's compensation, or Contract Time.

§ 6.3.9 A Change Directive signed by the Design-Builder prior to execution of the Design-Build Amendment indicates the Design-Builder's agreement therewith, including adjustment in compensation and schedule, or the method for determining them. A Change Directive signed by the Design-Builder after the execution of the Design-Build Amendment indicates the Design-Builder's agreement therewith, including adjustment in Contract Sum and Contract Time, or the method for determining them. Any such agreement shall be effective immediately and shall be recorded as a Change Order.

§ 6.3.10 If the Design-Builder disagrees with the adjustment in Contract Time, the Design-Builder may make a Claim in accordance with the applicable provisions of Article 15.

§ 6.3.11 The amount of credit to be allowed by the Design-Builder to the Owner for a deletion or change that results in a net decrease in the Contract Sum or, if prior to execution of the Design-Build Amendment, in the Design-Builder's compensation, shall be actual net cost. When both additions and credits covering related Work or substitutions are involved in a change, the allowance for overhead and profit shall be figured on the basis of net increase, if any, with respect to that change.

§ 6.3.12 Pending final determination of the total cost of a Change Directive to the Owner, the Design-Builder may request payment for Work completed under the Change Directive in Applications for Payment. The Owner will make an interim determination for purposes of certification for payment for those costs deemed to be reasonably justified. The Owner's interim determination of cost shall adjust the Contract Sum or, if prior to execution of the Design-Build Amendment, the Design-Builder's compensation, on the same basis as a Change Order, subject to the right of Design-Builder to disagree and assert a Claim in accordance with Article 15.

§ 6.3.13 When the Owner and Design-Builder agree with a determination concerning the adjustments in the Contract Sum or, if prior to execution of the Design-Build Amendment, the adjustment in the Design-Builder's compensation and Contract Time, or otherwise reach agreement upon the adjustments, such agreement shall be effective immediately and the Owner and Design-Builder shall execute a Change Order. Change Orders may be issued for all or any part of a Change Directive.

ARTICLE 7 OWNER'S RESPONSIBILITIES

§ 7.1 General

§ 7.1.1 The Owner shall designate in writing a representative who shall have express authority to bind the Owner with respect to all matters requiring the Owner's approval or authorization. The Owner's Board of Education is the only representative of Owner, an independent school district, having the power to enter into or amend a contract unless specifically designated pursuant to Board Policy DJA and Regulation DJA-R.

§ 7.1.2 The Owner shall render decisions in a timely manner and in accordance with the Design-Builder's schedule. The Owner shall furnish to the Design-Builder, within 15 days after receipt of a written request, information necessary and relevant for the Design-Builder to evaluate, give notice of, or enforce mechanic's lien rights. Such information shall include a correct statement of the record legal title to the property on which the Project is located, usually referred to as the site, and the Owner's interest therein.

§ 7.1.3 The Owner shall furnish and coordinate the services of the Owner's consultants and Separate Contractors with those services provided by the Design-Builder. Upon the Design-Builder's request, the Owner shall furnish copies of the scope of services in the contracts between the Owner and the Owner's consultants or Separate Contractors. The Owner shall require

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that its consultants and contractors maintain insurance, including professional liability insurance, as appropriate to the services or work provided.

§ 7.1.4 The Owner shall furnish the services of consultants required by a material change in the Owner's Criteria or authorize the Design-Builder to furnish them pursuant to a Change Order or Change Directive.

§ 7.1.5 If the Owner identifies a Sustainable Objective, the Owner shall fulfill its responsibilities as required in AIA Document A141–2024 Exhibit E, attached to this Agreement.

§ 7.1.6 Except as otherwise provided in the Design-Build Documents or when direct communications have been specially authorized, the Owner shall communicate through the Design-Builder with persons or entities employed or retained by the Design-Builder, including the Architect and Subcontractors.

§ 7.1.7 The Owner shall purchase and maintain insurance as set forth in Article 11 and AIA Document A141–2024 Exhibit A.

§ 7.1.8 Visits to the site by the Owner shall not be construed to create an obligation on the part of the Owner to make on-site inspections to check the quality or quantity of the Work. The Owner shall not have control over, charge of, or responsibility for the construction means, methods, techniques, sequences, or procedures, or for the safety precautions and programs in connection with the Work.

§ 7.1.9 The Owner shall not be responsible for the Design-Builder's failure to perform the Work in accordance with the requirements of the Design-Build Documents. The Owner shall not have control over or charge of, and will not be responsible for, acts or omissions of the Design-Builder, Architect, Consultants, Subcontractors, or their agents or employees, or any other persons or entities performing portions of the Work.

§ 7.1.10 The Owner may reject Work that does not conform to the Design-Build Documents. The Owner may require inspection or testing of the Construction Work in accordance with Section 16.5.2, whether or not the Construction Work is fabricated, installed, or completed. However, neither this authority of the Owner nor a decision made in good faith either to exercise or not to exercise such authority shall give rise to a duty or responsibility of the Owner to the Design-Builder.

§ 7.1.11 The Owner shall determine the date or dates of Substantial Completion in accordance with Section 9.8 and the date of final completion in accordance with Section 9.10.

§ 7.2 Information and Services Required of the Owner

§ 7.2.1 The Owner shall furnish information or services required of the Owner by the Design-Build Documents with reasonable promptness.

§ 7.2.2 The Owner shall provide, to the extent under the Owner's control and if not required by the Design-Build Documents to be provided by the Design-Builder, the results and reports of prior tests, inspections, or investigations conducted for the Project involving structural or mechanical systems; chemical, air and water pollution; hazardous materials; or environmental and subsurface conditions and information regarding the presence of pollutants at the Project site.

§ 7.2.3 The Owner shall promptly obtain easements, zoning variances, and legal authorizations or entitlements regarding site utilization where essential to the execution of the Project.

§ 7.2.4 The Owner shall cooperate with the Design-Builder in securing building and other permits, licenses, and inspections.

§ 7.2.5 The services, information, surveys, and reports required to be provided by the Owner under this Agreement, shall be furnished at the Owner's expense. Except as otherwise specifically provided in this Agreement or elsewhere in the Design-Build Documents or to the extent the Owner advises the Design-Builder to the contrary in writing, the Design-Builder shall be entitled to rely on, and shall not be responsible for, the accuracy, completeness, and timeliness of, services, information,

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surveys, and reports furnished by the Owner.

§ 7.2.6 If the Owner observes or otherwise becomes aware of a fault or defect in the Work or non-conformity with the Design-Build Documents, the Owner shall give prompt notice thereof to the Design-Builder.

§ 7.3 Owner's Right to Stop Construction Work

If the Design-Builder fails to correct Construction Work which is not in accordance with the requirements of the Design-Build Documents as required by Section 12.2 or persistently fails to carry out Construction Work in accordance with the Design-Build Documents, the Owner may issue a written order to the Design-Builder to stop the Construction Work, or any portion thereof, until the cause for such order has been eliminated; however, the right of the Owner to stop the Construction Work shall not give rise to a duty on the part of the Owner to exercise this right for the benefit of the Design-Builder or any other person or entity, except to the extent required by Section 5.14.1.2. The authorized Owner's representative having the legal right to stop the Work shall be limited to the Owner's Chief Operating Officer.

§ 7.4 Owner's Right to Carry Out the Construction Work

If the Design-Builder defaults or neglects to carry out the Construction Work in accordance with the Design-Build Documents and fails within a ten-day period after receipt of notice from the Owner to commence and continue correction of such default or neglect with diligence and promptness, the Owner may, without prejudice to other remedies the Owner may have, correct such default or neglect. The Owner may, pursuant to Section 9.5.1, withhold or nullify a Certificate for Payment in whole or in part, to the extent reasonably necessary to reimburse the Owner for the reasonable cost of correcting such deficiencies. If current and future payments are not sufficient to cover such amounts, the Design-Builder shall pay the difference to the Owner. If the Design-Builder disagrees with the actions of the Owner, or the amounts claimed as costs to the Owner, the Design-Builder may file a claim pursuant to Article 15.

ARTICLE 8 TIME

§ 8.1 Progress and Completion

§ 8.1.1 Time limits stated in the Design-Build Documents are of the essence of the Contract. By executing the Design-Build Amendment, the Design-Builder confirms that the Contract Time is a reasonable period for performing the Work.

§ 8.1.2 The Design-Builder shall not, except by agreement of the Owner in writing, commence the Work prior to the effective date of insurance, other than property insurance, required by this Contract. The Contract Time shall not be adjusted as a result of the Design-Builder's failure to obtain insurance required under this Contract.

§ 8.1.3 The Design-Builder shall proceed expeditiously with adequate forces and shall achieve Substantial Completion within the Contract Time.

§ 8.2 Delays and Extensions of Time

§ 8.2.1 If the Design-Builder is delayed at any time in the commencement or progress of the Work by (1) an act or neglect of the Owner or consultant, or of a Separate Contractor; (2) changes ordered in the Work; (3) labor disputes, fire, unusual delay in deliveries, unavoidable casualties, adverse weather conditions documented in accordance with Section 15.1.6.2, unusual delays by public authorities related to permits, licenses, and inspections, or other causes beyond the Design-Builder's control; (4) delay authorized by the Owner pending mediation and binding dispute resolution; or (5) other causes that the Owner determines justify delay, then the Contract Time shall be extended for such reasonable time as the Owner may determine.

§ 8.2.2 Claims relating to time shall be made in accordance with applicable provisions of Article 15.

§ 8.2.3 This Section 8.2 does not preclude recovery of damages for delay by either party under other provisions of the Design-Build Documents.

ARTICLE 9 PAYMENT APPLICATIONS AND PROJECT COMPLETION

§ 9.1 Contract Sum

The Contract Sum is stated in the Design-Build Amendment.

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§ 9.1.1 If unit prices are stated in the Design-Build Amendment or subsequently agreed upon, and if quantities set forth in the Design-Build Amendment are materially changed in a proposed Change Order or Change Directive, the applicable unit prices shall be equitably adjusted.

§ 9.2 Schedule of Values

Where the Contract Sum is based on a stipulated sum or Guaranteed Maximum Price, the Design-Builder, prior to the first Application for Payment after execution of the Design-Build Amendment shall submit to the Owner a schedule of values allocating the entire Contract Sum to the various portions of the Work and prepared in such form and supported by such data to substantiate its accuracy as the Owner may require. This schedule, unless objected to by the Owner, shall be used as a basis for reviewing the Design-Builder's Applications for Payment.

§ 9.3 Applications for Payment

§ 9.3.1 At least ten days before the date established for each progress payment, the Design-Builder shall submit to the Owner an itemized Application for Payment for completed portions of the Work. The Application for Payment shall be notarized, if required, and supported by the most recent and approved schedule of values submitted by the Design-Builder in accordance with the Design-Build Documents and all data and supporting documentation and draw requests substantiating the Design-Builder's right to payment that the Owner requires, such as copies of requisitions, and releases and waiver of liens from the Architect, Consultants, Subcontractors, and suppliers, and shall reflect retainage if provided for in the Design-Build Documents.

§ 9.3.1.1 As provided in Section 6.3.9, Applications for Payment may include requests for payment on account of changes in the Work that have been properly authorized by Change Directives, or by interim determinations of the Owner, but not yet included in Change Orders. As provided in Section 2.1, compensation for Work prior to execution of the Design-Build Amendment may include payment on account of changes in the Work that have been properly authorized by Change Directives, or by interim determinations of the Owner, but not yet included in Change Orders.

§ 9.3.1.2 Applications for Payment shall not include requests for payment for portions of the Work for which the Design-Builder does not intend to pay the Architect, a Consultant, a Subcontractor, or a supplier, unless such Work has been performed by others whom the Design-Builder intends to pay.

§ 9.3.2 Unless otherwise provided in the Design-Build Documents, payments shall be made for services provided as well as materials and equipment delivered and suitably stored at the site for subsequent incorporation in the Work. If approved in advance by the Owner, payment may similarly be made for materials and equipment suitably stored off the site at a location agreed upon in writing. Payment for materials and equipment stored on or off the site shall be conditioned upon compliance by the Design-Builder with procedures satisfactory to the Owner to establish the Owner's title to such materials and equipment or otherwise protect the Owner's interest, and shall include the costs of applicable insurance, storage, and transportation to the site, for such materials and equipment stored off the site.

§ 9.3.3 The Design-Builder warrants that title to all Work, other than Instruments of Service, covered by an Application for Payment will pass to the Owner no later than the time of payment. The Design-Builder further warrants that, upon submittal of an Application for Payment, all Work for which Certificates for Payment have been previously issued and payments received from the Owner shall, to the best of the Design-Builder's knowledge, information, and belief, be free and clear of liens, claims, security interests, or encumbrances, in favor of the Design-Builder, Architect, Consultants, Subcontractors, suppliers, or any other persons or entities that provided labor, materials, and equipment relating to the Work. DESIGN-BUILDER SHALL INDEMNIFY AND HOLD OWNER HARMLESS FROM ANY LIENS, CLAIMS, SECURITY INTERESTS OR ENCUMBRANCES FILED BY THE DESIGN-BUILDER, SUB-CONTRACTORS, OR ANYONE CLAIMING BY, THROUGH OR UNDER THE DESIGN-BUILDER OR SUBCONTRACTOR FOR ITEMS COVERED BY PAYMENTS MADE BY THE OWNER TO DESIGN-BUILDER.

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§ 9.4 Certificates for Payment

The Owner shall issue to the Design-Builder a Certificate for Payment indicating the amount the Owner determines is properly due, and notify the Design-Builder in writing of the Owner's reasons for withholding certification in whole or in part as provided in Section 9.5.1.

§ 9.5 Decisions to Withhold Certification

§ 9.5.1 The Owner may withhold a Certificate for Payment in whole or in part to the extent reasonably necessary to protect the Owner due to the Owner's determination that the Work has not progressed to the point indicated in the Design-Builder's Application for Payment, or the quality of the Work is not in accordance with the Design-Build Documents. If the Owner is unable to certify payment in the amount of the Application for Payment, the Owner will notify the Design-Builder as provided in Section 9.4. If the Design-Builder and Owner cannot agree on a revised amount, the Owner will promptly issue a Certificate for Payment for the amount that the Owner deems to be due and owing. The Owner may also withhold a Certificate for Payment or, because of subsequently discovered evidence, may nullify the whole or a part of a Certificate for Payment previously issued to such extent as may be necessary to protect the Owner from loss for which the Design-Builder is responsible because of

- **.1** Failure to perform Work in accordance with the Design-Build Documents;
- **.2** Third-party claims filed or reasonable evidence indicating probable filing of such claims, unless security acceptable to the Owner is provided by the Design-Builder;
- **.3** Failure of the Design-Builder to make payments properly to the Architect, Consultants, Subcontractors, suppliers, or others, for services, labor, materials, or equipment;
- **.4** Reasonable evidence that the Work cannot be completed for the unpaid balance of the Contract Sum;
- **.5** Damage to the Owner or a Separate Contractor; or
- **.6** Reasonable evidence that the Work will not be completed within the Contract Time, and that the unpaid balance would not be adequate to cover actual or liquidated damages for the anticipated delay.
- **.7** Repeated failure to carry out the Work in accordance with the Design-Build Documents; or failure to submit a written plan indicating action by the Design-Builder to regain the time schedule for completion of Work with the Contract Time.
- **.8** Defective Work, including design and construction, not remedied.
- .9 Failure of the design builder to provide adequate data, supporting documentation, contract documents and draw requests.

§ 9.5.2 When the above reasons for withholding certification are removed, the Owner shall certify amounts previously withheld.

§ 9.5.3 If the Owner withholds certification for payment under Section 9.5.1.3, the Owner may, at its sole option, issue joint checks to the Design-Builder and to any other persons or entities providing Work for the Design-Builder to whom the Design-Builder failed to make payment for Work properly performed or material or equipment suitably delivered.

§ 9.6 Progress Payments

§ 9.6.1 After the Owner has issued a Certificate for Payment, the Owner shall make payment in the manner and within the time provided in the Design-Build Documents.

§ 9.6.2 In taking action on the Design-Builder's Applications for Payment, the Owner shall be entitled to rely on the accuracy and completeness of the information furnished by the Design-Builder, and such action shall not be deemed to be a representation that (1) the Owner has made a detailed examination, audit, or arithmetic verification, of the documentation submitted in accordance with Section 9.3.1 or other supporting data; (2) that the Owner has made exhaustive or continuous on-site inspections; or (3) that the Owner has made examinations to ascertain how or for what purposes the Design-Builder has used amounts previously paid on account of the Contract. Such examinations, audits, and verifications, if required by the Owner, will be performed by the Owner's auditors acting in the sole interest of the Owner.

§ 9.6.3 The Design-Builder shall pay each person or entity providing Work for the Design-Builder, no later than seven days

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after receipt of payment from the Owner. Payment shall be the amount to which the person or entity providing Work for the Design-Builder is entitled, reflecting percentages actually retained from payments to the Design-Builder on account of the portion of the Work performed by the person or entity. The Design-Builder shall, by appropriate agreement with each person or entity providing Work for the Design-Builder, require each person or entity providing Work for the Design-Builder to make payments to subconsultants and subcontractors in a similar manner.

§ 9.6.4 The Owner will, on request and if practicable, furnish to the person or entity providing Work for the Design-Builder, information regarding percentages of completion or amounts applied for by the Design-Builder and action taken thereon by the Owner on account of portions of the Work done by such person or entity providing Work for the Design-Builder.

§ 9.6.5 The Owner has the right to request written evidence from the Design-Builder that the Design-Builder has properly paid any other persons or entities providing Work for the Design-Builder, amounts paid by the Owner to the Design-Builder for the Work. If the Design-Builder fails to furnish such evidence within seven days, the Owner shall have the right to contact the other person or entity providing Work for the Design-Builder to ascertain whether they have been properly paid. The Owner shall have no obligation to pay, or to see to the payment of money to any other person or entity providing services or Work for the Design-Builder, except as may otherwise be required by law.

§ 9.6.6 The Design-Builder's payments to suppliers shall be treated in a manner similar to that provided in Sections 9.6.3, 9.6.4 and 9.6.5.

§ 9.6.6.1 Except with the Owner's prior written approval, the Design-Builder shall not make advance payments to suppliers for materials or equipment.

§ 9.6.7 A Certificate for Payment, a progress payment, or partial or entire use or occupancy of the Project by the Owner shall not constitute acceptance of Work not in accordance with the Design-Build Documents.

§ 9.6.8 Unless the Design-Builder provides the Owner with a payment bond in the full penal sum of the Contract Sum, payments received by the Design-Builder for Work properly performed by the Architect, Consultants, Subcontractors, and other persons or entities providing Work for the Design-Builder, shall be held by the Design-Builder for the Architect and those Consultants, Subcontractors, or other persons or entities. Nothing contained herein shall require money to be placed in a separate account and not commingled with money of the Design-Builder, create any fiduciary liability or tort liability on the part of the Design-Builder for breach of trust, or entitle any person or entity to an award of punitive damages against the Design-Builder for breach of the requirements of this provision.

§ 9.6.9 Provided the Owner has fulfilled its payment obligations under the Design-Build Documents, the Design-Builder shall defend and indemnify the Owner from all loss, liability, damage or expense, including reasonable attorney's fees and litigation expenses, arising out of any lien claim or other claim for payment by any Architect, Consultant, Subcontractor, or any other person or entity providing Work for the Design-Builder. Upon receipt of notice of a lien claim or other claim for payment, the Owner shall notify the Design-Builder. If approved by the applicable court, when required, the Design-Builder may substitute a surety bond for the property against which the lien or other claim for payment has been asserted.

§ 9.7 Failure of Payment

If the Owner does not issue a Certificate for Payment, through no fault of the Design-Builder, within the time required by the Design-Build Documents, then the Design-Builder may, upon seven additional days' written notice to the Owner, stop the Work until payment of the amount owing has been received. The Contract Time shall be extended appropriately and the Contract Sum shall be increased by the amount of the Design-Builder's reasonable costs of shut-down, delay and start-up, plus interest as provided for in the Design-Build Documents. If the Owner provides written notice to the Design-Builder that: 1) payment has been made; or 2) a bona fide dispute for payment exits, listing the specific reasons for nonpayment, then Design-Builder shall be liable for damages resulting from suspension of the Work. If a reason specified is that labor, services, or materials provided by the Design-Builder are not provided in compliance with the Design-Build Documents, then the Design-Builder shall be provided a reasonable opportunity to cure the noncompliance or to compensate Owner for any failure to cure the noncompliance. No amount shall be added to the Contract Sum as a result of a dispute between Owner and Design Builder

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unless and until such dispute is resolved in Design Builder's favor.

§ 9.8 Substantial Completion

§ 9.8.1 Substantial Completion is the stage in the progress of the Work when the Work or designated portion thereof is sufficiently complete in accordance with the Design-Build Documents so that the Owner can occupy or utilize the Work for its intended use; all Project systems included in the Work or designated portion thereof have been successfully tested and are fully operational; all required governmental inspections and certifications required of the Work have been made, approved and posted; designated initial instruction of Owner's personnel in the operation of Project systems has been completed; and all the required finishes set out in the Design-Build Documents are in place. The only remaining Work shall be minor in nature so that the Owner can occupy the Work or the applicable portion of the Work for all of its intended purposes on that date; and the completion of the Work by the Design Builder will not materially interfere with or hamper Owner's normal school operations or other intended use. As a further condition of a determination of Substantial Completion, the Design Builder shall certify that all remaining Work shall be completed within 30 days. Design-Builder shall complete Owner's Substantial Completion Certificate. The date of Substantial Completion is the date certified by the Owner in accordance with this Section 9.8.

§ 9.8.2 When the Design-Builder considers that the Construction Work, or a portion thereof which the Owner agrees to accept separately, is substantially complete, the Design-Builder shall prepare and submit to the Owner a comprehensive list of items to be completed or corrected prior to final payment. Failure to include an item on such list does not alter the responsibility of the Design-Builder to complete all Work in accordance with the Design-Build Documents.

§ 9.8.3 Upon receipt of the Design-Builder's list, the Owner shall make an inspection to determine whether the Construction Work or designated portion thereof is substantially complete. If the Owner's inspection discloses any item, whether or not included on the Design-Builder's list, which is not sufficiently complete in accordance with the Design-Build Documents so that the Owner can occupy or utilize the Construction Work or designated portion thereof for its intended use, the Design-Builder shall, before issuance of the Certificate of Substantial Completion, complete or correct such item upon notification by the Owner. In such case, the Design-Builder shall then submit a request for another inspection by the Owner to determine Substantial Completion.

§ 9.8.4 Prior to issuance of the Certificate of Substantial Completion under Section 9.8.5, the Owner and Design-Builder shall discuss and then determine the parties' obligations to obtain and maintain property insurance following issuance of the Certificate of Substantial Completion.

§ 9.8.5 When the Construction Work or designated portion thereof is substantially complete, the Design-Builder will prepare for the Owner's signature a Certificate of Substantial Completion that shall, upon the Owner's signature, establish the date of Substantial Completion; establish responsibilities of the Owner and Design-Builder for security, maintenance, heat, utilities, damage to the Construction Work, and insurance; and fix the time within which the Design-Builder shall finish all items on the list accompanying the Certificate. Warranties required by the Design-Build Documents shall commence on the date of Substantial Completion of the Construction Work or designated portion thereof unless otherwise provided in the Certificate of Substantial Completion.

§ 9.8.6 The Certificate of Substantial Completion shall be submitted by the Design-Builder to the Owner for written acceptance of responsibilities assigned to it in the Certificate. Upon the Owner's acceptance, and consent of surety if any, the Owner shall make payment of retainage applying to the Work or designated portion thereof. Payment shall be adjusted for Construction Work that is incomplete or not in accordance with the requirements of the Design-Build Documents.

§ 9.9 Partial Occupancy or Use

§ 9.9.1 The Owner may occupy or use any completed or partially completed portion of the Construction Work at any stage when such portion is designated by separate agreement with the Design-Builder, provided such occupancy or use is consented to, by endorsement or otherwise, by the insurer providing property insurance and authorized by authorities having jurisdiction over the Project. Such partial occupancy or use may commence whether or not the portion is substantially complete, provided the Owner and Design-Builder have accepted in writing the responsibilities assigned to each of them for payments, retainage, if any, security, maintenance, heat, utilities, damage to the Construction Work, and insurance, and have agreed in writing

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concerning the period for correction of the Work and commencement of warranties required by the Design-Build Documents. When the Design-Builder considers a portion substantially complete, the Design-Builder shall prepare and submit a list to the Owner as provided under Section 9.8.2. Consent of the Design-Builder to partial occupancy or use shall not be unreasonably withheld. The stage of the progress of the Construction Work shall be determined by written agreement between the Owner and Design-Builder.

§ 9.9.2 Immediately prior to such partial occupancy or use, the Owner and Design-Builder shall jointly inspect the area to be occupied, or portion of the Construction Work to be used, in order to determine and record the condition of the Construction Work.

§ 9.9.3 Unless otherwise agreed upon, partial occupancy or use of a portion or portions of the Construction Work shall not constitute acceptance of Construction Work not complying with the requirements of the Design-Build Documents.

§ 9.10 Final Completion and Final Payment

§ 9.10.1 Upon receipt of the Design-Builder's notice that the Construction Work is ready for final inspection and acceptance, and upon receipt of a final Application for Payment, the Owner will promptly make such inspection. When the Owner finds the Construction Work acceptable under the Design-Build Documents and the Contract fully performed, the Owner will, subject to Section 9.10.2 and 9.10.3, promptly issue a final Certificate for Payment.

§ 9.10.2 Neither final payment nor any remaining retained percentage shall become due until the Design Builder submits to the Owner the closeout procedures identified in Specification SECTION 01 77 00 Closeout Procedures (available at https://www.dpsk12.org/o/facilities/page/construction-standards).

§ 9.10.3 If, after Substantial Completion of the Construction Work, final completion thereof is materially delayed through no fault of the Design-Builder or by issuance of Change Orders affecting final completion, the Owner shall, upon application by the Design-Builder, and without terminating the Contract, make payment of the balance due for that portion of the Construction Work fully completed, corrected, and accepted. If the estimated cost to complete or correct the Construction Work is less than retainage stipulated in the Design-Build Documents, and if bonds have been furnished, the written consent of the surety to payment of the balance due for that portion of the Construction Work fully completed and accepted shall be submitted by the Design-Builder to the Owner prior to issuance of payment. Such payment shall be made under terms and conditions governing final payment, except that it shall not constitute a waiver of Claims.

§ 9.10.4 The making of final payment shall not constitute a waiver of Claims by the Owner.

§ 9.10.5 Acceptance of final payment by the Design-Builder shall constitute a waiver of claims by the Design-Builder except those previously made in writing and identified by the Design-Builder as unsettled at the time of final Application for Payment.

ARTICLE 10 PROTECTION OF PERSONS AND PROPERTY

§ 10.1 Safety Precautions and Programs

The Design-Builder shall be responsible for initiating, maintaining, and supervising all safety precautions and programs in connection with the performance of the Construction Work. The Design-Builder shall comply with the Owner's 2024 Bond Construction Safety Standards (available at https://www.dpsk12.org/o/facilities/page/construction-standards).

§ 10.2 Safety of Persons and Property

§ 10.2.1 The Design-Builder shall be responsible for precautions for the safety of, and reasonable protection to prevent damage, injury, or loss to

- **.1** employees and persons performing the Construction Work and others who may be affected thereby;
- **.2** the Construction Work and materials and equipment to be incorporated therein, whether in storage on or off the site, under care, custody, or control of the Design-Builder, a Subcontractor, or any other person or entity; and
- **.3** other property at the site or adjacent thereto, such as trees, shrubs, lawns, walks, pavements, roadways, or structures, and utilities not designated for removal, relocation, or replacement in the course of construction.

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§ 10.2.2 The Design-Builder shall comply with, and give notices required by, applicable laws, statutes, ordinances, codes, rules and regulations, and lawful orders of public authorities, bearing on the safety of persons or property, or their protection from damage, injury, or loss.

§ 10.2.3 The Design-Builder shall implement, erect, and maintain, as required by existing conditions and performance of the Contract, reasonable safeguards for safety and protection, including posting danger signs and other warnings against hazards; promulgating safety regulations; and notifying the owners and users of adjacent sites and utilities of the safeguards.

§ 10.2.4 When use or storage of explosives or other hazardous materials or equipment, or unusual methods, are necessary for execution of the Construction Work, the Design-Builder shall exercise utmost care, and carry on such activities under supervision of properly qualified personnel.

§ 10.2.5 The Design-Builder shall promptly remedy damage and loss (other than damage or loss insured under property insurance required by the Design-Build Documents) to property referred to in Sections 10.2.1.2 and 10.2.1.3, caused in whole or in part by the Design-Builder, the Architect, a Consultant, a Subcontractor, or anyone directly or indirectly employed by any of them, or by anyone for whose acts they may be liable and for which the Design-Builder is responsible under Sections 10.2.1.2 and 10.2.1.3. The Design-Builder may make a Claim for the cost to remedy damage or loss to the extent such damage or loss is attributable to acts or omissions of the Owner, or anyone directly or indirectly employed by the Owner, or by anyone for whose acts the Owner may be liable, and not attributable to the fault or negligence of the Design-Builder. The foregoing obligations of the Design-Builder are in addition to the Design-Builder's obligations under Section 3.1.14.

§ 10.2.6 The Design-Builder shall designate a responsible member of the Design-Builder's organization, at the site, whose duty shall be the prevention of accidents. This person shall be the Design-Builder's superintendent unless otherwise designated by the Design-Builder in writing to the Owner.

§ 10.2.7 The Design-Builder shall not permit any part of the construction or site to be loaded so as to cause damage or create an unsafe condition.

§ 10.2.8 Injury or Damage to Person or Property. If the Owner or Design-Builder suffers injury or damage to person or property because of an act or omission of the other, or of others for whose acts such party is legally responsible, notice of the injury or damage, whether or not insured, shall be given to the other party within a reasonable time not exceeding 21 days after discovery. The notice shall provide sufficient detail to enable the other party to investigate the matter.

§ 10.3 Hazardous Materials

§ 10.3.1 The Design-Builder is responsible for compliance with any requirements included in the Design-Build Documents regarding hazardous materials or substances. If the Design-Builder encounters a hazardous material or substance not addressed in the Design-Build Documents and if reasonable precautions will be inadequate to prevent foreseeable bodily injury or death to persons resulting from a material or substance, including but not limited to asbestos or polychlorinated biphenyl (PCB), encountered on the site by the Design-Builder, the Design-Builder shall, upon recognizing the condition, immediately stop Construction Work in the affected area and notify the Owner of the condition.

§ 10.3.2 Upon receipt of the Design-Builder's notice, the Owner shall obtain the services of a licensed laboratory to verify the presence or absence of the material or substance reported by the Design-Builder and, in the event such material or substance is found to be present, to cause it to be rendered harmless. Unless otherwise required by the Design-Build Documents, the Owner shall furnish in writing to the Design-Builder the names and qualifications of persons or entities who are to perform tests verifying the presence or absence of the material or substance or who are to perform the task of removal or safe containment of the material or substance. The Design-Builder will promptly reply to the Owner in writing stating whether or not the Design-Builder has reasonable objection to the persons or entities proposed by the Owner. If the Design-Builder has an objection to a person or entity proposed by the Owner, the Owner shall propose another to whom the Design-Builder has no reasonable objection. When the material or substance has been rendered harmless, Construction Work in the affected area shall resume upon written agreement of the Owner and Design-Builder. By Change Order, the Contract Time shall be extended appropriately and the Contract Sum shall be increased by the amount of the Design-Builder's reasonable additional costs of shutdown, delay, and start-up.

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§ 10.3.3 To the fullest extent permitted by law, the Owner shall indemnify and hold harmless the Design-Builder, the Architect, Consultants, and Subcontractors, and employees of any of them, from and against claims, damages, losses, and expenses, including but not limited to attorneys' fees, arising out of or resulting from performance of the Construction Work in the affected area, if in fact the material or substance presents the risk of bodily injury or death as described in Section 10.3.1 and has not been rendered harmless, provided that such claim, damage, loss, or expense is attributable to bodily injury, sickness, disease or death, or to injury to, or destruction of, tangible property (other than the Construction Work itself), except to the extent that such damage, loss, or expense is due to the fault or negligence of the party seeking indemnity.

§ 10.3.4 The Owner shall not be responsible under this Section 10.3 for hazardous materials or substances the Design-Builder brings to the site unless such materials or substances are required by the Owner's Criteria. The Owner shall be responsible for hazardous materials or substances required by the Owner's Criteria, except to the extent of the Design-Builder's fault or negligence in the use and handling of such materials or substances.

§ 10.3.5 The Design-Builder shall indemnify the Owner for the cost and expense the Owner incurs (1) for remediation of a material or substance the Design-Builder brings to the site and negligently handles, or (2) where the Design-Builder fails to perform its obligations under Section 10.3.1, except to the extent that the cost and expense are due to the Owner's fault or negligence.

§ 10.3.6 If, without negligence on the part of the Design-Builder, the Design-Builder is held liable by a government agency for the cost of remediation of a hazardous material or substance solely by reason of performing Construction Work as required by the Design-Build Documents, the Owner shall reimburse the Design-Builder for all cost and expense thereby incurred.

§ 10.4 Emergencies

In an emergency affecting safety of persons or property, the Design-Builder shall act, at the Design-Builder's discretion, to prevent threatened damage, injury, or loss.

ARTICLE 11 INSURANCE AND BONDS

§ 11.1 Design-Builder's Insurance and Bonds

§ 11.1.1 The Design-Builder shall purchase and maintain insurance as set forth in Exhibit A.

§ 11.1.2 The Design-Builder shall, within ten (10) days of the Notice of Contract Award, furnish bonds to the Owner in the full amount of the Contract price, covering both the faithful performance of the Contract and the payment of all obligations for labor and materials arising thereunder, on such forms as the Owner may prescribe and with such sureties as it may approve. Such bonds shall be duly executed by a qualified surety, conditioned upon the true and faithful performance of the Contract, and shall provide that if the Design-Builder or its subcontractors fail to duly pay for any labor, materials, or other supplies used or consumed by such Design-Builder or their subcontractors in the performance of the work contracted to be done, the surety will pay the same in an amount not exceeding the sum specified in the bond, as adjusted by approved change orders, and together with interest as provided by law. The Performance Bond shall additionally guarantee that the Design-Builder shall remedy any omissions, correct any and all defects, and adjust and make operable all component parts of the work falling under the requirements of its Contract, which may be called to its attention within a period of twenty-four (24) months following the date of Substantial Completion.

§ 11.1.3 The premium for all bonds shall be paid by the Design-Builder and included in the bid price in the Bid Proposal. The Owner will accept and approve bonds written by sureties legally authorized to write such bonds in the State of Colorado, provided such surety companies are rated in Best's Insurance Guide (latest edition), not lower that A- or have a Best's Financial Rating of at least A. If, at any time a surety on such a bond becomes irresponsible or loses its right to do business in the State of Colorado, the Owner may require another surety acceptable to the Owner, which the Design-Builder shall furnish within ten (10) days after receipt of written notice to do so.

§ 11.1.4 Subcontractors that enter into a subcontractor agreement with the Design-Builder for any portion of the work, shall provide the Design-Builder with Performance and Payment Bonds in accordance with the Design-Build Documents on the basis of their subcontract scope of work to the Design-Builder.

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§ 11.1.5 The Design-Builder shall require the attorney-in-fact who executes the required bonds on behalf of the surety to affix thereto a certified and current copy of the power of attorney.

§ 11.1.6 Notice of Cancellation or Expiration of Design-Builder's Required Insurance. Within three (3) business days of the date the Design-Builder becomes aware of an impending or actual cancellation or expiration of any insurance required by the Design-Build Documents, the Design-Builder shall provide notice to the Owner of such impending or actual cancellation or expiration. Upon receipt of notice from the Design-Builder, the Owner shall, unless the lapse in coverage arises from an act or omission of the Owner, have the right to stop the Work until the lapse in coverage has been cured by the procurement of replacement coverage by the Design-Builder. The furnishing of notice by the Design-Builder shall not relieve the Design-Builder of any contractual obligation to provide any required coverage.

§ 11.2 Omitted.

ARTICLE 12 UNCOVERING AND CORRECTION OF CONSTRUCTION WORK

§ 12.1 Uncovering of Construction Work

The Owner may request to examine a portion of the Construction Work that the Design-Builder has covered to determine if the Construction Work has been performed in accordance with the Design-Build Documents. If such Construction Work is in accordance with the Design-Build Documents, the Design-Builder shall be entitled to an equitable adjustment to the Contract Sum and Contract Time as may be appropriate. If such Construction Work is not in accordance with the Design-Build Documents, the costs of uncovering the Construction Work, and the cost of correction, shall be at the Design-Builder's expense and shall not result in a change in the Contract Time except as otherwise permitted in this Agreement.

§ 12.2 Correction of Construction Work

§ 12.2.1 Before Substantial Completion. The Design-Builder shall promptly correct Construction Work rejected by the Owner or failing to conform to the requirements of the Design-Build Documents, discovered before Substantial Completion, and whether or not fabricated, installed, or completed. Costs of correcting such rejected Construction Work, including additional testing and inspections and the cost of uncovering and replacement, and compensation for any consultant employed by the Owner whose expenses and compensation were made necessary thereby, shall be at the Design-Builder's expense and shall not result in a change in the Contract Time except as otherwise permitted in this Agreement.

§ 12.2.2 After Substantial Completion

§ 12.2.2.1 In addition to the Design-Builder's obligations under Section 3.1.12, if, within one year after the date of Substantial Completion of the Construction Work or designated portion thereof or after the date for commencement of warranties established under Section 9.9.1, or by terms of any applicable special warranty required by the Design-Build Documents, any of the Construction Work is discovered not to be in accordance with the requirements of the Design-Build Documents, the Design-Builder shall correct it promptly after receipt of notice from the Owner to do so unless the Owner has previously given the Design-Builder a written acceptance of such condition. The Owner shall give such notice promptly after discovery of the condition. During the one-year period for correction of the Construction Work, if the Owner fails to notify the Design-Builder of the condition and give the Design-Builder an opportunity to make the correction, the Owner waives the rights to require correction by the Design-Builder and to make a claim for breach of warranty and breach of the standard of care for that condition. If the Design-Builder fails to correct nonconforming or defectively designed Construction Work within a reasonable time during that period after receipt of notice from the Owner, the Owner may correct it in accordance with Section 7.4.

§ 12.2.2.2 The one-year period for correction of Construction Work shall be extended with respect to portions of Construction Work first performed after Substantial Completion by the period of time between Substantial Completion and the actual completion of that portion of the Construction Work.

§ 12.2.2.3 The one-year period for correction of Construction Work shall not be extended by corrective Construction Work performed by the Design-Builder pursuant to this Section 12.2.

§ 12.2.3 The Design-Builder shall remove from the site portions of the Construction Work that are not in accordance with the requirements of the Design-Build Documents and are neither corrected by the Design-Builder nor accepted by the Owner.

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§ 12.2.4 The Design-Builder shall be liable for the cost of correcting destroyed or damaged construction of the Owner or Separate Contractors, whether completed or partially completed, caused by the Design-Builder's correction or removal of Construction Work that is not in accordance with the requirements of the Design-Build Documents except as otherwise permitted in this Agreement.

§ 12.2.5 Nothing contained in this Section 12.2 shall be construed to establish a period of limitation with respect to other obligations the Design-Builder has under the Design-Build Documents. Establishment of the one-year period for correction of Construction Work as described in Section 12.2.2 relates only to the specific obligation of the Design-Builder to correct the Construction Work, and has no relationship to the time within which the obligation to comply with the Design-Build Documents may be sought to be enforced, nor to the time within which proceedings may be commenced to establish the Design-Builder's liability with respect to the Design-Builder's obligations other than specifically to correct the Construction Work.

§ 12.3 Acceptance of Nonconforming Construction Work

If the Owner prefers to accept Construction Work that is not in accordance with the requirements of the Design-Build Documents, the Owner may do so instead of requiring its removal and correction, in which case the Contract Sum will be reduced as appropriate and equitable. Such adjustment shall be effected whether or not final payment has been made.

ARTICLE 13 COPYRIGHTS AND LICENSES

§ 13.1 Drawings, specifications, and other documents furnished by the Design-Builder, including those in electronic form, are Instruments of Service. The Design-Builder, and the Architect, Consultants, Subcontractors, and any other person or entity providing Work for any of them, shall be deemed the authors and owners of their respective Instruments of Service, including the Drawings and Specifications, and shall retain all common law, statutory and other reserved rights, including copyrights. Submission or distribution of Instruments of Service to meet official regulatory requirements, or for similar purposes in connection with the Project, is not to be construed as publication in derogation of the reserved rights of the Design-Builder and the Architect, Consultants, and Subcontractors, and any other person or entity providing Work for any of them.

§ 13.2 The Design-Builder and the Owner warrant that in transmitting Instruments of Service, or any other information, the transmitting party is the copyright owner of such information or has permission from the copyright owner to transmit such information for its use on the Project.

§ 13.3 The Design-Builder grants to the Owner a nonexclusive license to use the Design-Builder's Instruments of Service solely and exclusively for purposes of constructing, using, maintaining, altering, and adding to the Project. The license granted in this Section 13.3 shall terminate only if (1) the Design-Builder terminates this Agreement in accordance with Sections 14.1.1, 14.1.3, 14.1.4, or 14.2.1 or (2) the Owner terminates this Agreement for convenience as provided in Section 14.1.5 and does not compensate the Design-Builder as required under Sections 14.1.6 and 14.1.7. The license granted under this section permits the Owner to authorize the Owner's consultants to reproduce applicable portions of the Instruments of Service, subject to any protocols established pursuant to Section 1.1.5, solely and exclusively for use in performing services for the Project.

§ 13.3.1 In the event the Owner uses the Instruments of Service (1) for purposes inconsistent with Section 13.3, (2) after completion of the Project for purposes of altering or adding to the Project without retaining the authors of the Instruments of Service for such purposes, (3) after the Owner terminates this Agreement for convenience, or (4) after the Design-Builder terminates this Agreement in accordance with Sections 14.1.1, 14.1.3, 14.1.4, or 14.2.1, the Owner releases the Design-Builder from all claims and causes of action arising from such uses. The Owner, to the extent permitted by law, further agrees to indemnify and hold harmless the Design-Builder from all costs and expenses, including the cost of defense, related to claims and causes of action asserted by any third person or entity to the extent such costs and expenses arise from the Owner's use of the Instruments of Service under this Section 13.3.1. The terms of this Section 13.3.1 shall not apply if the Owner terminates this Agreement for cause under Section 14.1.4 or 14.2.2. The payment of a Termination Fee or Licensing Fee under Section 14.1.7 shall not relieve the Owner of the release or indemnity obligations of this Section 13.3.1.

§ 13.3.2 The Design-Builder shall obtain non-exclusive licenses from the Architect, Consultants, and Subcontractors, that will allow the Design-Builder to satisfy its obligations to the Owner under this Article 13. The Design-Builder's licenses from the Architect and its Consultants and Subcontractors shall also allow the Owner, in the event this Agreement is terminated for any

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reason other than the default of the Owner or in the event the Design-Builder's Architect, Consultants, or Subcontractors terminate their agreements with the Design-Builder for cause, to obtain a non-exclusive license solely and exclusively for purposes of constructing, using, maintaining, altering and adding to the Project, provided that the Owner (1) agrees to pay to the Architect, Consultant or Subcontractor all amounts due, and (2) provides the Architect, Consultant or Subcontractor with the Owner's written agreement to indemnify and hold harmless the Architect, Consultant, or Subcontractor from all costs and expenses, including the cost of defense, related to claims and causes of action asserted by any third person or entity to the extent such costs and expenses arise from the Owner's alteration or use of the Instruments of Service.

§ 13.3.3 Except as otherwise stated in this Section 13.3, the provisions of this Article 13 shall survive the termination of this Agreement.

ARTICLE 14 TERMINATION OR SUSPENSION

§ 14.1 Termination or Suspension Prior to Execution of the Design-Build Amendment

§ 14.1.1 If the Owner fails to make payments to the Design-Builder for Work prior to execution of the Design-Build Amendment in accordance with this Agreement, such failure shall be considered substantial nonperformance and cause for termination under Section 14.1.4 or, at the Design-Builder's option, cause for suspension of performance of services under this Agreement. If the Design-Builder elects to suspend the Work, the Design-Builder shall give seven days' notice to the Owner before suspending the Work. In the event of a suspension of the Work, the Design-Builder shall have no liability to the Owner for delay or damage caused by the suspension of the Work. Before resuming the Work, the Design-Builder shall be paid all sums due prior to suspension and any expenses incurred in the interruption and resumption of the Design-Builder's Work. The Design-Builder's compensation for, and time to complete, the remaining Work shall be equitably adjusted.

§ 14.1.2 If the Owner suspends the Project, the Design-Builder shall be compensated for the Work performed prior to notice of such suspension. When the Project is resumed, the Design-Builder shall be compensated for expenses incurred in the interruption and resumption of the Design-Builder's Work. The Design-Builder's compensation for, and time to complete, the remaining Work shall be equitably adjusted.

§ 14.1.3 If the Owner suspends the Project for more than 90 cumulative days for reasons other than the fault of the Design-Builder, the Design-Builder may terminate this Agreement by giving not less than seven days' notice.

§ 14.1.4 Either party may terminate this Agreement upon not less than seven days' notice should the other party fail substantially to perform in accordance with the terms of this Agreement through no fault of the party initiating the termination.

§ 14.1.5 The Owner may terminate this Agreement upon not less than seven days' notice to the Design-Builder for the Owner's convenience and without cause.

§ 14.1.6 In the event of termination not the fault of the Design-Builder, the Design-Builder shall be compensated for Work performed prior to termination, together with Reimbursable Expenses then due and any other expenses directly attributable to termination for which the Design-Builder is not otherwise compensated. In no event shall the Design-Builder's compensation under this Section 14.1.6 be greater than the compensation set forth in Section 2.1.

§ 14.2 Termination or Suspension Following Execution of the Design-Build Amendment

§ 14.2.1 Termination by the Design-Builder

§ 14.2.1.1 The Design-Builder may terminate this Agreement if the Work is stopped for a period of 30 consecutive days through no act or fault of the Design-Builder, or any other persons or entities performing portions of the Work, for any of the following reasons:

- **.1** Issuance of an order of a court or other public authority having jurisdiction that requires all Work to be stopped;
- **.2** An act of government, such as a declaration of national emergency that requires all Work to be stopped;
- **.3** Because the Owner has not issued a Certificate for Payment and has not notified the Design-Builder of the reason for withholding certification as provided in Section 9.5.1, or because the Owner has not made payment on a Certificate for Payment within the time stated in the Design-Build Documents; or

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.4 The Owner has failed to furnish to the Design-Builder reasonable evidence as required by Section 7.2.7.

§ 14.2.1.2 The Design-Builder may terminate this Agreement if, through no act or fault of the Design-Builder, or any other persons or entities performing portions of the Work, repeated suspensions, delays, or interruptions of the entire Work by the Owner as described in Section 14.2.3, constitute in the aggregate more than 100 percent of the total number of days scheduled for completion, or 120 days in any 365-day period, whichever is less.

§ 14.2.1.3 If one of the reasons described in Section 14.2.1.1 or 14.2.1.2 exists, the Design-Builder may, upon seven days' notice to the Owner, terminate the Contract and recover from the Owner payment for Work executed, including reasonable overhead and profit, .

§ 14.2.1.4 If the Work is stopped for a period of 60 consecutive days through no act or fault of the Design-Builder, or any other persons or entities performing portions of the Work because the Owner has repeatedly failed to fulfill the Owner's obligations under the Design-Build Documents with respect to matters important to the progress of the Work, the Design-Builder may, upon seven additional days' notice to the Owner, terminate the Contract and recover from the Owner as provided in Section 14.2.1.3.

§ 14.2.2 Termination by the Owner for Cause

§ 14.2.2.1 The Owner may terminate this Agreement if the Design-Builder:

- **.1** fails to submit the Proposal by the date required by this Agreement, or if no date is indicated, within a reasonable time consistent with the date of Substantial Completion;
- **.2** repeatedly refuses or fails to supply enough properly skilled workers or proper materials;
- **.3** repeatedly refuses or fails to supply a qualified architect, consultant, or subcontractor, where required;
- **.4** fails to make payment to the Architect, Consultants, Subcontractors, or suppliers in accordance with their respective agreements with the Design-Builder;
- **.5** repeatedly disregards applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of a public authority; or
- **.6** is otherwise in breach of a material provision of the Design-Build Documents.

§ 14.2.2.2 When any of the reasons described in Section 14.2.2.1 exist, the Owner may, without prejudice to any other rights or remedies of the Owner and after giving the Design-Builder and the Design-Builder's surety, if any, seven days' notice, terminate employment of the Design-Builder and may, subject to any prior rights of the surety:

- **.1** Exclude the Design-Builder from the site and take possession of all materials, equipment, tools, and construction equipment and machinery thereon owned by the Design-Builder;
- **.2** Accept assignment of the Architect, Consultant, and Subcontractor agreements pursuant to Section 3.1.15; and
- **.3** Finish the Work by whatever reasonable method the Owner may deem expedient. Upon written request of the Design-Builder, the Owner shall furnish to the Design-Builder a detailed accounting of the costs incurred by the Owner in finishing the Work.

§ 14.2.2.3 When the Owner terminates this Agreement for one of the reasons stated in Section 14.2.2.1, the Design-Builder shall not be entitled to receive further payment until the Work is finished.

§ 14.2.2.4 If the unpaid balance of the Contract Sum exceeds costs of finishing the Work and other damages incurred by the Owner and not expressly waived, such excess shall be paid to the Design-Builder. If such costs and damages exceed the unpaid balance, the Design-Builder shall pay the difference to the Owner. The obligation for such payments shall survive termination of this Agreement.

§ 14.2.3 Suspension by the Owner for Convenience

§ 14.2.3.1 The Owner may, without cause, order the Design-Builder in writing to suspend, delay, or interrupt the Work in whole or in part for such period of time as the Owner may determine.

§ 14.2.3.2 The Contract Sum and Contract Time shall be adjusted for increases in the cost and time caused by suspension, delay, or interruption under Section 14.2.3.1. Adjustment of the Contract Sum shall include profit. No adjustment shall be

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made to the extent

.1 that performance is, was, or would have been, so suspended, delayed, or interrupted, by another cause for which the Design-Builder is responsible; or

.2 that an equitable adjustment is made or denied under another provision of the Contract.

§ 14.2.4 Termination by the Owner for Convenience

§ 14.2.4.1 The Owner may, at any time, terminate this Agreement for the Owner's convenience and without cause.

§ 14.2.4.2 Upon receipt of notice from the Owner of such termination for the Owner's convenience, the Design-Builder shall

.1 cease operations as directed by the Owner in the notice;

.2 take actions necessary, or that the Owner may direct, for the protection and preservation of the Work; and,

.3 except for Work directed to be performed prior to the effective date of termination stated in the notice, terminate all existing Project agreements, including agreements with the Architect, Consultants, Subcontractors, and purchase orders, and enter into no further Project agreements and purchase orders.

§ 14.2.4.3 In case of such termination for the Owner's convenience, the Design-Builder shall be entitled to receive payment for Work executed, and costs incurred by reason of such termination, along with reasonable overhead and profit on the Work not executed.

ARTICLE 15 CLAIMS AND DISPUTES

§ 15.1 Claims

§ 15.1.1 Definition. A Claim is a demand or assertion by one of the parties seeking, as a matter of right, payment of money, a change in the Contract Time, or other relief with respect to the terms of the Contract. The term "Claim" also includes other disputes and matters in question between the Owner and Design-Builder arising out of or relating to the Contract. The responsibility to substantiate Claims shall rest with the party making the Claim. This Section 15.1.1 does not require the Owner to file a Claim in order to impose liquidated damages in accordance with the Contract Documents.

§ 15.1.2 Time Limits on Claims. The Owner and Design-Builder shall commence all claims and causes of action against the other and arising out of or related to the Contract, whether in contract, tort, breach of warranty or otherwise, in accordance with the requirements of the binding dispute resolution method selected in Section 1.3, within the time period specified by applicable law, but, in any case, not more than 10 years after the date of Substantial Completion of the Work. The Owner and Design-Builder waive all claims and causes of action not commenced in accordance with this Section 15.1.2.

§ 15.1.3 Notice of Claims

§ 15.1.3.1 Prior To Final Payment. Prior to final payment, Claims by either the Owner or Design-Builder must be initiated by notice to the other party within 21 days after occurrence of the event giving rise to such Claim or within 21 days after the claimant first recognizes the condition giving rise to the Claim, whichever is later.

§ 15.1.3.2 Claims Arising After Final Payment. After final payment, Claims by either the Owner or Design-Builder that have not otherwise been waived pursuant to Sections 9.10.4 or 9.10.5, must be initiated by prompt notice to the other party. The notice requirement in Section 15.1.3.1 and the provisions for Initial Resolution of Claims in Section 15.2 shall not be required as a condition precedent to mediation in Section 15.3.

§ 15.1.4 Continuing Contract Performance. Pending final resolution of a Claim, except as otherwise agreed in writing or as provided in Section 9.7 and Article 14, the Design-Builder shall proceed diligently with performance of the Contract and the Owner shall continue to make payments in accordance with the Design-Build Documents.

§ 15.1.5 Claims for Additional Cost. If the Design-Builder wishes to make a Claim for an increase in the Contract Sum, notice as provided in Section 15.1.3 shall be given before proceeding to execute the portion of the Work that is the subject of the Claim. Prior notice is not required for Claims relating to an emergency endangering life or property arising under Section 10.4.

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§ 15.1.6 Claims for Additional Time

§ 15.1.6.1 If the Design-Builder wishes to make a Claim for an increase in the Contract Time, notice as provided in Section 15.1.3 shall be given. The Design-Builder's Claim shall include an estimate of cost and of the probable effect of delay on progress of the Work. In the case of a continuing delay, only one Claim is necessary.

§ 15.1.6.2 If adverse weather conditions are the basis for a Claim for additional time, such Claim shall be documented by data substantiating that weather conditions were abnormal for the period of time, could not have been reasonably anticipated, and had an adverse effect on the scheduled construction.

§ 15.1.6.3 No extension of time shall be made to the Design-Builder because of hindrances or delays from any cause which is the fault of Design-Builder or Design-Builder's Subcontractors or under Design-Builder's control. No damages shall be paid for delays. Design-Builder shall only be entitled to time extensions per the terms of the Design-Build Documents.

§ 15.1.6.4 Requests for time extension shall be submitted on a monthly basis and shall specify the time delay, the cause of the delay, and the responsible party for the delay, whether Design-Builder, Owner, severe weather, or other. No claims for damages for delay shall be made by Design-Builder. Any claim not submitted under the terms of this Section shall be waived.

§ 14.1.7 Weather Delay

§ 14.1.7.1 In order for a weather delay (a "Weather Delay") to occur, the Lost Weather Days in any calendar month must exceed the normal number of such days for such month set forth below. The Weather Delay, if any, shall be the number of days of such excess; provided that no Weather Delay shall have occurred except to the extent that Work which needs to be performed during the period of time affected by adverse weather is actually delayed in a manner that delays the critical path to completion of the Work. To the extent that the number of Lost Weather Days in any month is smaller than the normal number of Lost Weather Days in such month set forth below, the difference shall be carried forward to the following month (and, to the extent not then consumed, the ensuing months) and used to offset any Lost Weather Days in such following month or months. Design-Builder and Owner agree that the normal number of such delays for each month is as follows:

January:	6 days
February:	6 days
March:	5 days
April:	5 days
May:	5 days
June:	4 days
July:	4 days
August:	4 days
September:	3 days
October:	4 days
November:	5 days
December:	6 days

§ 14.1.7.2 As used herein, a "Lost Weather Day" shall mean a day during which actual adverse weather prevents work on activities that need to be performed on that day in accordance with the Project Schedule for fifty percent (50%) or more of Design-Builder's scheduled Work for such day.

§ 14.1.7.3 Design-Builder shall report, by email, to Owner (i) no later than 10:30 a.m. (in the time zone in which the Site is located) on each day Design-Builder claims to be a Lost Weather Day or (ii) if Work on the Project has commenced for such day, within one hour of Design-Builder's decision to suspend Work because of such adverse weather. Such report shall state that Design-Builder considers that a Lost Weather Day is occurring and shall describe the weather conditions experienced and how the weather conditions have affected the Scheduled Work for such day. Unless Design-Builder gives such timely notice as

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to any day when work is adversely affected by adverse weather, Design-Builder shall not be entitled to claim such day is a Lost Weather Day.

§ 15.1.7 Claims for Consequential Damages

The Design-Builder waives Claims against Owner for consequential damages arising out of or relating to this Contract. This waiver includes damages incurred by the Design-Builder for principal office expenses including the compensation of personnel stationed there, for losses of financing, business and reputation, and for loss of profit, except anticipated profit arising directly from the Work.

This waiver is applicable, without limitation, to all consequential damages due to either party's termination in accordance with Article 14. Nothing contained in this Section 15.1.7 shall be deemed to preclude assessment of liquidated damages, when applicable, in accordance with the requirements of the Design-Build Documents.

§ 15.2 Initial Resolution of Claims

§ 15.2.1 Meet and Confer

§ 15.2.1.1 If the parties select Meet and Confer as the initial method of dispute resolution, the Owner and Design-Builder shall endeavor to resolve Claims subject to the meet and confer session. The meet and confer session shall be attended by representatives who have the authority to bind the Owner and Design-Builder. The Owner or Design-Builder may request senior representatives from the Architect, Subcontractors, or other interested parties to attend the meet and confer session. The meet and confer session shall take place within thirty (30) days after a request by either party to this Agreement unless the parties mutually agree otherwise.

§ 15.2.1.2 Discussions held during the meet and confer process shall be treated as settlement discussions and, as such, will be confidential.

§ 15.2.1.3 If the Owner and Design-Builder reach a mutually acceptable resolution, appropriate documentation memorializing the resolution shall be prepared. If the resolution results in a change to the Contract Sum or the Contract Time, the parties shall execute a Change Order.

§ 15.2.1.4 If the Owner and Design-Builder cannot reach a mutually acceptable resolution at the meet and confer session, or if the meet and confer session does not take place within the time specified in Section 15.2.1, either party may proceed to mediation in accordance with Section 15.3.

§ Omitted.

§ 15.3 Mediation

§ 15.3.1 Claims, disputes, or other matters in controversy arising out of or related to the Contract, except those waived as provided for in Sections 9.10.4, 9.10.5, 15.1.7, and 15.2.2.7, shall be subject to mediation as a condition precedent to binding dispute resolution, unless the filing deadlines under applicable statutes of limitation and/or repose would otherwise expire. If suit is filed before mediation in order to avoid expiration of limitations and/or repose, then the parties agree to submit the matter to mediation as soon as reasonably possible. Claims for injunctive relief shall not be subject to this Section.

§ 15.3.2 The Parties shall endeavor to resolve their Claims by mediation which, unless the Parties mutually agree otherwise, shall be administered by the American Arbitration Association in accordance with its Construction Industry Mediation Procedures in effect on the date of this Agreement. A request for mediation shall be made in writing, delivered to the other party to the Contract, and filed with the person or entity administering the mediation. The request may be made concurrently with the filing of binding dispute resolution proceedings but, in such event, mediation shall proceed in advance of binding dispute resolution proceedings, which shall be stayed pending mediation for a period of 60 days from the date of filing, unless stayed for a longer period by agreement of the Parties or court order. If an arbitration proceeding is stayed pursuant to this Section 15.3.2, the Parties may nonetheless proceed to the selection of the arbitrator(s) and agree upon a schedule for later proceedings.

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§ 15.3.3 Either Party may, within 30 days from the date that mediation has been concluded without resolution of the dispute or 60 days after mediation has been demanded without resolution of the dispute, demand in writing that the other party file for binding dispute resolution. If such a demand is made and the Party receiving the demand fails to file for binding dispute resolution within 60 days after receipt thereof, then both Parties waive their rights to binding dispute resolution proceedings with respect to the initial decision rendered by the Project Neutral or with respect to Claims that were the subject of the Meet and Confer process.

§ 15.3.4 The Parties shall share the mediator's fee and any filing fees equally. The mediation shall be held in the City and County of Denver, Colorado, unless another location is mutually agreed upon. Agreements reached in mediation shall be reduced to writing and, if signed, shall thereafter be enforceable as provided by the laws of the State of Colorado.

§ 15.3.5 The parties agree that any claim, dispute, or other matter in controversy between them shall not be subject to binding arbitration or to any other binding extra-judicial dispute resolution process. Neither party may compel the other to arbitrate any claim, dispute, or matter in controversy between them. Rather, any dispute will be litigated in a court of competent jurisdiction.

ARTICLE 16 MISCELLANEOUS PROVISIONS

§ 16.1 Governing Law

The Contract shall be governed by the laws of the State of Colorado, and any litigation shall be conducted in state district court. Mandatory and exclusive venue for any disputes shall be in the City and County of Denver.

§ 16.2 Successors and Assigns

§ 16.2.1 The Owner and Design-Builder, respectively, bind themselves, their partners, successors, assigns, and legal representatives to the covenants, agreements, and obligations contained in the Design-Build Documents. Except as provided in Section 16.2.2, neither party to the Contract shall assign the Contract as a whole without written consent of the other. If either party attempts to make an assignment without such consent, that party shall nevertheless remain legally responsible for all obligations under the Contract.

§ 16.2.2 The Owner may, without consent of the Design-Builder, assign the Contract to a lender providing construction financing for the Project, if the lender assumes the Owner's rights and obligations under the Design-Build Documents. The Design-Builder shall execute all consents reasonably required to facilitate the assignment.

§ 16.2.3 Certifications. If the Owner requests the Design-Builder to execute certificates, the proposed language of such certificates shall be submitted to the Design-Builder for review at least 21 days prior to the requested dates of execution. If the Owner requests the Design-Builder to execute consents reasonably required to facilitate assignment to a lender, the Design-Builder shall execute all such consents that are consistent with this Agreement, provided the proposed consent is submitted to the Design-Builder for review at least 21 days prior to execution. The Design-Builder shall not be required to execute any certificates or consents that would require knowledge, services, or responsibilities beyond the scope of this Agreement.

§ 16.3 The Design-Builder, Architect, Consultants, Subcontractors, or their agents, or any other persons or entities performing portions of the Work, shall have the right to include video, photographic, or artistic representations of the design of the Project among their respective promotional and professional materials. The Design-Builder, Architect, Consultants, Subcontractors, or their agents or employees, or any other persons or entities performing portions of the Work, shall be given reasonable access to the completed Project to make such representations. However, such material shall not include the Owner's confidential or proprietary information if the Owner has previously advised the Design-Builder in writing of the specific information considered by the Owner to be confidential or proprietary. The Owner shall provide professional credit for the Design-Builder, Architect, Consultants, Subcontractors, or their agents or employees, or any other persons or entities performing portions of the Work, in the Owner's promotional materials for the Project. This Section 16.3 shall survive the termination of this Agreement unless the Owner terminates this Agreement for cause pursuant to Section 14.2.2.

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§ 16.4 Rights and Remedies

§ 16.4.1 Duties and obligations imposed by the Design-Build Documents, and rights and remedies available thereunder, shall be in addition to and not a limitation of duties, obligations, rights, and remedies otherwise imposed or available by law.

§ 16.4.2 No action or failure to act by the Owner or Design-Builder shall constitute a waiver of a right or duty afforded them under the Contract, nor shall such action or failure to act constitute approval of or acquiescence in a breach thereunder, except as may be specifically agreed upon in writing.

§ 16.5 Tests and Inspections

§ 16.5.1 Tests, inspections, and approvals of portions of the Construction Work shall be made as required by the Design-Build Documents and by applicable laws, statutes, ordinances, codes, rules and regulations or lawful orders of public authorities. Unless otherwise provided, the Design-Builder shall make arrangements for such tests, inspections, and approvals with an independent testing laboratory or entity acceptable to the Owner, or with the appropriate public authority, and shall bear all related costs of tests, inspections, and approvals, unless otherwise provided in the Design-Build Amendment. The Design-Builder shall give the Owner timely notice of when and where tests and inspections are to be made so that the Owner may be present for such procedures. The Owner shall bear costs of tests, inspections, or approvals that do not become requirements until after execution of the Design-Build Amendment. The Owner shall directly arrange and pay for tests, inspections, or approvals where building codes or applicable laws or regulations so require.

§ 16.5.2 If the Owner determines that portions of the Construction Work require additional testing, inspection, or approval not included under Section 16.5.1, the Owner will instruct the Design-Builder to make arrangements for such additional testing, inspection, or approval, by an entity acceptable to the Owner, and the Design-Builder shall give timely notice to the Owner of when and where tests and inspections are to be made so that the Owner may be present for such procedures. Such costs, except as provided in Section 16.5.3, shall be at the Owner's expense, unless otherwise provided in the Design-Build Amendment.

§ 16.5.3 If procedures for testing, inspection, or approval under Sections 16.5.1 and 16.5.2 reveal failure of the portions of the Construction Work to comply with requirements established by the Design-Build Documents, all costs made necessary by such failure shall be at the Design-Builder's expense, unless otherwise provided in the Design-Build Amendment.

§ 16.5.4 Required certificates of testing, inspection, or approval shall, unless otherwise required by the Design-Build Documents, be secured by the Design-Builder and promptly delivered to the Owner.

§ 16.5.5 If the Owner is to observe tests, inspections, or approvals required by the Design-Build Documents, the Owner will do so promptly and, where practicable, at the normal place of testing.

§ 16.5.6 Tests or inspections conducted pursuant to the Design-Build Documents shall be made promptly to avoid unreasonable delay in the Work.

§ 16.6 Confidential Information

§ 16.6.1 If the Design-Builder or Owner receives information specifically designated as "confidential" or "business proprietary," the receiving party shall keep such information strictly confidential and shall not disclose it to any other person except as set forth in Section 16.6.2. The obligations in this Section 16.6 shall survive the termination of this Agreement.

§ 16.6.2 The receiving party may disclose "confidential" or "business proprietary" information after 7 days' notice to the other party, when required by law, arbitrator's order, or court order, including a subpoena or other form of compulsory legal process issued by a court or governmental entity, or to the extent such information is reasonably necessary for the receiving party to defend itself in any dispute. The receiving party may also disclose such information to its employees, consultants, contractors, or subcontractors in order to perform services or work solely and exclusively for the Project, provided those employees, consultants, contractors, and subcontractors are subject to the restrictions on the disclosure and use of such information as set forth in this Section 16.6. In the event either party knows or reasonably believes that "confidential" or "business proprietary" information received from the other party has been subject to any circumstance where the security, integrity, or confidentiality of any of the "confidential" or "business proprietary" information has been compromised, damaged, lost, corrupted, destroyed, or the "confidential" or "business proprietary" information has been accessed, acquired, modified, used, disclosed, or rendered

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inaccessible, by any unauthorized person, by any person in an unauthorized manner, or for an unauthorized purpose, the party experiencing the breach will provide written notice to the other party as soon as reasonably possible after it becomes aware of any breach.

§ 16.6.3 "Confidential" or "business proprietary" information shall not include information:

.1 in the public domain, or which later enters the public domain, through no action on the receiving party's part in violation of this Agreement;

.2 already in the receiving party's possession and not marked as "confidential" or "business proprietary" when received;

.3 obtained by the receiving party on a non-confidential basis from a third party not known by the receiving party to be under an obligation of confidentiality; or

.4 that is independently developed by the receiving party without access to, or use of, any "confidential" or "business proprietary" information.

§ 16.7 Capitalization

Terms capitalized in the Contract include those that are (1) specifically defined, (2) the titles of numbered articles, or (3) the titles of other AIA Contract Documents.

§ 16.8 Interpretation

§ 16.8.1 In the interest of brevity the Design-Build Documents frequently omit modifying words such as "all" and "any" and articles such as "the" and "an," but the fact that a modifier or an article is absent from one statement and appears in another is not intended to affect the interpretation of either statement.

§ 16.8.2 Unless otherwise stated in the Design-Build Documents, words which have well-known technical or construction industry meanings are used in the Design-Build Documents in accordance with such recognized meanings.

§ 16.9 The invalidity of any provision of this Agreement shall not invalidate this Agreement or its remaining provisions. If it is determined that any provision of this Agreement violates any law, or is otherwise invalid or unenforceable, then that provision shall be revised to the extent necessary to make that provision legal and enforceable. In such case this Agreement shall be construed, to the fullest extent permitted by law, to give effect to the parties' intentions and purposes in executing this Agreement.

§ 16.10 In accordance with Section 1.1.5, the Design-Builder shall coordinate with the Owner in establishing building information modeling and digital data protocols for the Project governing the development, use, transmission, and exchange of, and reliance on, digital data.

§ 16.10.1 Any use of, or reliance on, all or a portion of a building information model without agreement to written protocols governing the use of, and reliance on, the information contained in the model shall be at the using or relying party's sole risk and without liability to the other party and its subcontractors or consultants, the authors of, or contributors to, the building information model, and each of their agents and employees.

§ 16.11 Certified MWBE's

The Owner is a public school district that operates according to equal opportunity contracting policies and laws. Owner intends and expects that its contracting processes, including those relating to professional designers and consultants such as consultants and any subconsultants, shall provide equal opportunity without regard to gender, race, ethnicity, religion, age, or disability, and that Owner's vendors shall make available equal opportunities to the extent third parties are engaged to provide goods and services to Owner as subcontractors, consultants, vendors, or otherwise. Accordingly, Design-Builder and any subconsultants shall not discriminate on any of the foregoing grounds in the performance of this Agreement and shall make available equal opportunities to the extent third parties are engaged to provide services in connection with performance of the Agreement. Joint ventures, partnerships, or other cooperative relationships between contractors or vendors and Minority Business Enterprises, Women Business Enterprises, and Diverse Business Enterprises may be considered one indication of good faith intention to comply with this requirement. Design-Builder shall disseminate information regarding all opportunities to subcontracting parties under this Agreement in a manner reasonably calculated to reach all qualified potential sub-contractors and -consultants who may be interested and shall maintain records demonstrating such activities. Design-Builder shall report to the Project

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Manager all Subconsultants proposed to be retained under this Agreement along with their classifications in the minority contracting community (Hispanic, Black, Asian, American Indian or Women) and the amount of fee or payment anticipated for each. Owner may require such report before executing this Agreement. Design-Builder has committed that Certified Minority, Women Business Enterprises ("MWBEs") will perform [insert percentage]% of the Project's base bid or the Guaranteed Maximum Price as calculated by the percentage of the Project's total payments that are made to Certified MWBEs.

§ 16.11.1 Design-Builder and the Design-Builder's Subcontractors shall not discriminate against any employee or applicant for employment because of race, color, gender, sexual orientation, gender identity, transgender status, religion, national origin, immigration/citizenship status, ancestry, age, marital status, pregnancy status, veteran status, disability, or any class otherwise protected by school district policy or law. Design-Builder agrees to post in conspicuous places, available to employees and applicants, notices setting forth the Design-Builder's nondiscrimination policies.

§ 16.11.2 Design-Builder and the Design-Builder's Subcontractors shall, in all solicitations or advertisements for employees placed by them or on their behalf, state that all qualified applicants will receive consideration for employment without regard to race, religion, age, disability, sex, national origin, or any class otherwise protected by school district policy or law.

§ 16.12 Federal Funding

§ 16.12.1 ESSER Funded Projects. If this box is checked , the Owner is paying for this Project using funds from the Coronavirus Aid, Relief, and Economic Security Act of 2020 (CARES Act), Public Law 116-136, or other United States government sources. Design-Builder must comply with all applicable standards, orders or regulations issued pursuant to the CARES Act, including following Federal Funding Accountability and Transparency Act (FFATA) terms and conditions, Office of Management and Budget (OMB) Uniform Guidance, and the 2019 OMB Compliance Supplement.

§ 16.12.2 Davis-Bacon Act. If this box is checked , Design-Builder must comply with the Davis-Bacon Act (40 U.S.C. 3141-3144, and 3146-3148) as supplemented by Department of Labor regulations (29 CFR Part 5, "Labor Standards Provisions Applicable to Contracts Covering Federally Financed and Assisted Construction"), and all other laws applicable to federally-assisted construction projects. In accordance with the statute, Design-Builder must pay wages to laborers and mechanics at a rate not less than the prevailing wages specified in a wage determination made by the Secretary of Labor. In addition, Design-Builder must pay wages not less than once a week. The current prevailing wage determination issued by the Department of Labor that applies to this Project is attached to this Agreement and incorporated herein as **Exhibit E**. Design-Builder must comply with the Copeland "Anti-Kickback" Act (40 U.S.C. 3145), as supplemented by Department of Labor regulations (29 CFR Part 3, "Contractors and Subcontractors on Public Building or Public Work Financed in Whole or in Part by Loans or Grants from the United States"). The Act provides that each contractor must be prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public work, to give up any part of the compensation to which he or she is otherwise entitled. The non-Federal entity must report all suspected or reported violations to the Federal awarding agency.

§ 16.13 No Suspension

Design-Builder, to the best of its knowledge and belief, represents that Design-Builder and/or any of its principals, officers, directors, owners, partners, or a person having primary management or supervisory responsibilities within a business entity, are (a) not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any agency of the Federal, State or local government; (b) has not within a three-year period preceding this agreement, been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, state, or local) contract or subcontract or for violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property; and (c) is not presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the aforementioned offenses enumerated in this paragraph; and (d) has not within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds $3,000 for which the liability remains unsatisfied; and (e) has not within a three-year period preceding this offer, had one or more contracts terminated for default by any agency of the Federal, State or local government.

§ 16.14 Records

§ 16.14.1 Design-Builder shall at all times through the date of Substantial Completion, maintain Job Records, including, but not

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limited to, invoices, payment records, payroll records, daily reports, diaries, logs, instructions, drawings, receipts, subcontracts, purchase orders, vouchers, memoranda, other financial data and job meeting minutes applicable to the Project, in a manner which maintains the integrity of the documents. Job Records must be retained by Design-Builder in accordance with the Colorado School District Records Retention Manual. Within 10 days of Owner's request, Design-Builder shall make such Job Records available for inspection, copying and auditing by the Owner, Architect or their respective representatives, at Owner's central office.

§ 16.14.2 Design-Builder shall keep a full and detailed financial accounting system and shall exercise such controls as may be necessary for proper financial management under this Contract; the accounting and control systems shall be satisfactory to the Owner and shall be subject to the provisions of Section 15.12.1.

§ 16.14.3 Design-Builder shall keep all Design-Build Documents related to the Project, subject to the provisions of Section 15.12.1, provided, however, Design-Builder shall not destroy said documents until Design-Builder has confirmed with Owner in writing that Owner has obtained a copy of all as-built drawings.

§ 16.14.4 In the event that an audit by the Owner reveals any errors/overpayments by the Owner, then the Design-Builder shall refund to the Owner the full amount of such overpayments within thirty (30) days of such audit findings, or the Owner, at its option, reserves the right to deduct such amounts owed to the Owner from any payments due to the Design-Builder.

§ 16.15 Colorado Governmental Immunity Act

No term or condition of this Agreement shall be construed or interpreted as a waiver, express or implied, by the Owner of any of the immunities, rights, benefits, protection, or other provisions of the Colorado Governmental Immunity Act, C.R.S. 24-10-101, et seq. ("CGIA"), as now or hereafter amended. The Parties acknowledge and agree that liability for claims for injury to persons or property arising out of the negligence of the Owner, including its employees, is controlled and limited by the CGIA.

§ 16.16 Health Compliance Protocols

The Design-Builder and the Architect must comply with all CDC and local health department recommendations and must bear all associated costs and equipment to keep their employees safe.

§ 16.17 Counterparts

The Parties may execute this Agreement and subsequent amendments in two (2) counterparts, each of which is deemed an original, and all of which together shall constitute one and the same instrument. Photocopies, scans, electronic signatures, and facsimiles of executing signatures are valid evidence of execution.

§ 16.18 Signature Authority

The signatories below represent and warrant that they have the authority to execute this Agreement on behalf of their respective organizations and bind their respective organizations to the terms of this Agreement. The District's signature authority for this Agreement is governed by the District's Administration Policy DJA-R. If this Agreement is made contrary to the District's Administration Policies, including, but not limited to, Policies DJ, DJA, DJE, DJG, and DJGA, this Agreement shall be void and wholly without effect and shall not be binding upon the District in any manner.

ARTICLE 17 SCOPE OF THIS AGREEMENT

§ 17.1 This Agreement is comprised of the following documents:

- **.1** AIA Document A141®–2024, Standard Form of Agreement Between Owner and Design-Builder for a Traditional Design-Build Project
- **.2** AIA Document A141®–2024, Exhibit A, Insurance and Bonds
- **.3** AIA Document A141®–2024, Exhibit B, Design-Build Amendment, if executed
- **.4** AIA Document A141®–2024, Exhibit C, Sustainable Projects Exhibit, if completed
- **.5** Other documents, if any, listed below:
  Exhibit D, Code of Conduct and Conflict of Interest Certification
  Exhibit E, Wage Determination
  Method of Payment Matrix

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Pricing Form

This Agreement will be effective when all parties have signed it. The date of this Agreement will be the date this Agreement is signed by the last party to sign it (as indicated by the date associated with that party's signature.

DESIGN BUILDER

(COMPANY NAME)

By:_____

Print Name:_____

Title:_____

AIA TEMPLATE APPROVED BY OFFICE OF GENERAL COUNSEL: July 2026

"SCHOOL DISTRICT NO. 1"

APPROVED:

By:_____

Senior Project Manager, Planning, Design and Construction

By:_____

Director, Construction, Planning, Design and Construction

By:_____

Executive Director, Planning, Design and Construction

By:_____

Chief Operations Officer

By:_____

Board of Education, President

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ADDITIONS AND DELETIONS:
The author of this document may have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

This document is intended to be used in conjunction with AIA Document A141®-2024, Standard Form of Agreement Between Owner and Design-Builder for a Traditional Design-Build Project. Article 11 of A141-2024 contains additional insurance provisions.

AIA® Document A141® – 2024 Exhibit A

Insurance and Bonds

This Exhibit dated the day of in the year (the "Exhibit") is incorporated into AIA Document A141®–2024, Standard Form of Agreement Between Owner and Design-Builder for a Traditional Design-Build Project dated the day of in the year (the "Agreement").
(In words, indicate day, month, and year.)

for the following **PROJECT**:
(Name and location or address)

THE OWNER:
(Name, legal status, and address)

THE DESIGN-BUILDER:
(Name, legal status, and address)

TABLE OF ARTICLES

A.1 GENERAL

A.2 OWNER'S INSURANCE

A.3 DESIGN-BUILDER'S INSURANCE AND BONDS

A.4 SPECIAL TERMS AND CONDITIONS

ARTICLE A.1 GENERAL

The Owner and Design-Builder shall purchase and maintain insurance, and provide bonds, as set forth in this Exhibit. As used in this Exhibit, the term Agreement refers to AIA Document A141®–2024, Standard Form of Agreement between Owner and Design-Builder for a Traditional Design-Build Project.

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ARTICLE A.2 OWNER'S INSURANCE

§ A.2.1 General

The Owner shall maintain such insurance, by commercial policy or self-insurance, as is necessary to meet its liabilities under the Colorado Governmental Immunity Act ("CGIA") (§§ 24-10-101, C.R.S., et. seq.), as amended or may be amended or replaced or supplemented by another statute providing immunity or similar protections to governmental entities.

ARTICLE A.3 DESIGN-BUILDER'S INSURANCE AND BONDS

§ A.3.1 General Provisions

The Design-Builder shall purchase and maintain insurance in accordance with the Owner's Insurance Requirements, attached hereto and incorporated herein by reference (and available at https://drive.google.com/file/d/1GIDVZ1Iu9ndJY05Og3SUd6f2nEIXUCDA/view as of the Effective Date of this Exhibit).

§ A.3.2 Performance Bond and Payment Bond

The Design-Builder shall provide surety bonds, from a company or companies lawfully authorized to issue surety bonds in the jurisdiction where the Project is located.

Payment and Performance Bonds shall be AIA Document A312®, Payment Bond and Performance Bond, or contain provisions identical to AIA Document A312, current as of the date of this Agreement.

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This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

Consultation with an attorney is also encouraged with respect to professional licensing requirements in the jurisdiction where the Project is located.

AIA® Document A141® – 2024 Exhibit B

Design-Build Amendment

This Amendment dated the day of in the year (the "Amendment") is incorporated into, and amends, AIA Document A141®–2024, Standard Form of Agreement Between Owner and Design-Builder for a Traditional Design-Build Project dated the day of in the year (the "Agreement")
(In words, indicate day, month, and year.)

for the following **PROJECT:**
(Name and location or address)

THE OWNER:
(Name, legal status, and address)

School District No. 1 in the City and County of Denver and State of Colorado
1860 Lincoln Street
Denver, CO 80203

THE DESIGN-BUILDER:
(Name, legal status, and address)

The Owner and Design-Builder hereby amend the Agreement as follows.

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TABLE OF ARTICLES

B.1 CONTRACT SUM

B.2 CONTRACT TIME

B.3 INFORMATION UPON WHICH AMENDMENT IS BASED

B.4 DESIGN-BUILDER'S KEY PERSONNEL, CONSULTANTS, SUBCONTRACTORS, AND SUPPLIERS

B.5 OWNER'S SEPARATE CONTRACTORS

B.6 COST OF THE WORK

ARTICLE B.1 CONTRACT SUM

§ B.1.1 The Owner shall pay the Design-Builder the Contract Sum in current funds for the Design-Builder's performance of the Agreement after the execution of this Amendment. The Contract Sum shall be the amount to be paid to the Design-Builder for performance of the Work after execution of the Design-Build Amendment. The Contract Sum shall include Early Release Work but shall not include any other compensation the Owner paid the Design-Builder for Work performed prior to execution of this Amendment. The Contract Sum shall be one of the following:
(Check the appropriate box.)

[ ] Stipulated Sum, in accordance with Section B.1.2 below

[ ] Cost of the Work plus the Design-Builder's Fee with a Guaranteed Maximum Price, in accordance with Section B.1.4 below

(Based on the selection above, complete Section B.1.2, B.1.3 or B.1.4 below.)

§ B.1.2 Stipulated Sum

§ B.1.2.1 The Stipulated Sum shall be ($), subject to authorized adjustments as provided in the Design-Build Documents.

§ B.1.2.2 Omitted.

§ B.1.2.3 Omitted. § B.1.2.4 Omitted.

§ B.1.4.3 Guaranteed Maximum Price

§ B.1.4.3.1 The sum of the Cost of the Work and the Design-Builder's Fee is guaranteed by the Design-Builder not to exceed ($), subject to additions and deductions by changes in the Work as provided in the Design-Build Documents. This maximum sum is referred to in the Design-Build Documents as the Guaranteed Maximum Price. Costs which would cause the Guaranteed Maximum Price to be exceeded shall be paid by the Design-Builder without reimbursement by the Owner.

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(Insert specific provisions if the Design-Builder is to participate in any savings.)

§ B.1.4.3.2 Itemized Statement of the Guaranteed Maximum Price

Provided below is an itemized statement of the Guaranteed Maximum Price organized by trade categories, allowances, contingencies, alternates, the Design-Builder's Fee, and other items that comprise the Guaranteed Maximum Price, including Design Services to be performed after execution of the Design-Build Amendment and Early Release Work.
(Provide itemized statement below or reference an attachment.)

§ B.1.4.3.3 Alternates

§ B.1.4.3.3.1 Alternates, if any, included in the Guaranteed Maximum Price:

Item	Price

§ B.1.4.3.3.2 Subject to the conditions noted below, the following alternates may be accepted by the Owner following execution of this Exhibit B. Upon acceptance, the Owner shall issue a Modification to the Agreement.
(Insert below each alternate and the conditions that must be met for the Owner to accept the alternate.)

Item	Price	Conditions for Acceptance

§ B.1.4.3.4 Unit prices, if any:
(Identify the item and state the unit price and the quantity limitations, if any, to which the unit price will be applicable.)

Item	Units and Limitations	Price per Unit ($0.00)

§ B.1.4.3.5 Allowances, if any:
(Identify each allowance.)

Item	Price

§ B.1.4.3.6 Assumptions and clarifications, if any, on which the Guaranteed Maximum Price is based:
(Identify each assumption and clarification.)

§ B.1.4.3.7 To the extent that the Design-Build Documents are anticipated to require further development, the Guaranteed Maximum Price includes the costs attributable to such further development consistent with the Design-Build Documents and reasonably inferable therefrom. Such further development does not include changes in scope, systems, kinds and quality of materials, finishes, or equipment, all of which, if required, shall be incorporated by Change Order.

§ B.1.5 Payments

§ B.1.5.1 Progress Payments

§ B.1.5.1.1 Based upon Applications for Payment submitted to the Owner by the Design-Builder, the Owner shall make progress payments on account of the Contract Sum to the Design-Builder as provided below and elsewhere in the Design-Build Documents.

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§ B.1.5.1.2 The period covered by each Application for Payment shall be one calendar month.
§ B.1.5.1.3 Provided that an Application for Payment is received, payment shall be made by the Owner not later than « thirty » (« 30 ») days after the Owner receives the Application for Payment.

§ B.1.5.1.4 With each Application for Payment where the Contract Sum is based upon the Cost of the Work, or the Cost of the Work with a Guaranteed Maximum Price, the Design-Builder shall submit the Schedule of Values, and upon request provide back up to include payrolls, petty cash accounts, receipted invoices or invoices with check vouchers attached, and any other evidence required by the Owner to demonstrate that cash disbursements already made by the Design-Builder on account of the Cost of the Work equal or exceed (1) progress payments already received by the Design-Builder, less (2) that portion of those payments attributable to the Design-Builder's Fee; plus (3) payrolls for the period covered by the present Application for Payment.

§ B.1.5.1.5 With each Application for Payment where the Contract Sum is based upon a Stipulated Sum or Cost of the Work with a Guaranteed Maximum Price, the Design-Builder shall submit the most recent schedule of values in accordance with the Design-Build Documents. The schedule of values shall allocate the entire Contract Sum among the various portions of the Work. Compensation for design services, if any, shall be shown separately. Where the Contract Sum is based on the Cost of the Work with a Guaranteed Maximum Price, the Design-Builder's Fee shall be shown separately. The schedule of values shall be prepared in such form and supported by such data to substantiate its accuracy as the Owner may require. This schedule of values, unless objected to by the Owner, shall be used as a basis for reviewing the Design-Builder's Applications for Payment.

§ B.1.5.1.6 In taking action on the Design-Builder's Applications for Payment, the Owner shall be entitled to rely on the accuracy and completeness of the information furnished by the Design-Builder and shall not be deemed to have made a detailed examination, audit or arithmetic verification of the documentation submitted in accordance with Sections B.1.5.1.4 or B.1.5.1.5, or other supporting data; to have made exhaustive or continuous on-site inspections; or to have made examinations to ascertain how or for what purposes the Design-Builder has used amounts previously paid. Such examinations, audits, and verifications, if required by the Owner, will be performed by the Owner's auditors acting in the sole interest of the Owner.

§ B.1.5.1.7 Except with the Owner's prior approval, the Design-Builder shall not make advance payments to suppliers for materials or equipment which have not been delivered and stored at the site.

§ B.1.5.2 Progress Payments—Stipulated Sum
§ B.1.5.2.1 Applications for Payment where the Contract Sum is based upon a Stipulated Sum shall indicate the percentage of completion of each portion of the Work as of the end of the period covered by the Application for Payment.

§ B.1.5.2.2 In accordance with AIA Document A141®–2024, Standard Form of Agreement Between Owner and Design-Builder for a Traditional Design-Build Project, and subject to other provisions of the Design-Build Documents, the amount of each progress payment shall be computed as follows:

§ B.1.5.2.2.1 The amount of each progress payment shall include:

.1 Take that portion of the Contract Sum properly allocable to completed Work as determined by multiplying the percentage completion of each portion of the Work by the share of the Contract Sum allocated to that portion of the Work in the schedule of values, less retainage of «five » percent (« 5» %) on the Work. Pending final determination of cost to the Owner of Changes in the Work, amounts not in dispute shall be included as provided in Section 6.3.9 of the Agreement;

.2 Add that portion of the Contract Sum properly allocable to materials and equipment delivered and suitably stored at the site for subsequent incorporation in the completed construction (or, if approved in advance by the

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Owner, suitably stored off the site at a location agreed upon in writing), less retainage of «five » percent (« 5 » %);

.3 Subtract the aggregate of previous payments made by the Owner; and

Subtract the aggregate of previous payments made by the Owner; and

.4 Subtract amounts, if any, the Owner has withheld or nullified, as provided in Section 9.5 of the Agreement.

§ B.1.5.2.2.2 The progress payment amount determined in accordance with Section A.1.5.2.2 shall be further modified under the following circumstances:

.1 Add, upon Substantial Completion of the Work, a sum sufficient to increase the total payments to the full amount of the Contract Sum, less such amounts as the Owner shall determine for incomplete Work, retainage applicable to such work and unsettled claims; and

.2 Add, if final completion of the Work is thereafter materially delayed through no fault of the Design-Builder, any additional amounts payable in accordance with Section 9.10.3 of the Agreement.

§ B.1.5.2.3 Retainage

§ B.1.5.2.3.1 For each progress payment made prior to Substantial Completion of the Work, the Owner may withhold the following amount, as retainage, from the payment otherwise due:

(Insert a percentage or amount to be withheld as retainage from each Application for Payment. The amount of retainage may be limited by governing law.)

5%

§ B.1.5.2.3.2 The following items are not subject to retainage:

(Insert any items not subject to the withholding of retainage, such as Design Services, general conditions, bonds, insurance, etc.)

Design Services

§ B.1.5.2.3.3 Reduction or limitation of retainage, if any, shall be as follows:

(If the retainage established in Section B.1.5.2.3.1 is to be modified prior to Substantial Completion of the entire Work, including modifications for Substantial Completion of portions of the Work as provided in Section B.1.5.2.3.4, insert provisions for such modifications.)

§ B.1.5.2.3.4 Upon Substantial Completion of the Work, the Design-Builder may submit an Application for Payment that includes the retainage withheld from prior Applications for Payment, except as follows:

(Insert any conditions precedent to the release of all or a portion of the retainage, such as correction of the Construction Work, consent of surety, etc.)

§ B.1.5.2.3.5 Except with the Owner's prior approval, the Design-Builder shall not make advance payments to suppliers for materials or equipment which have not been delivered and stored at the site.

§ B.1.5.3.3 Retainage

§ B.1.5.3.3.1 For each progress payment made prior to Substantial Completion of the Work, the Owner may withhold the following amount, as retainage, from the payment otherwise due:

(Insert a percentage or amount to be withheld as retainage from each Application for Payment. The amount of retainage may

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be limited by governing law.)

§ B.1.5.3.3.2 The following items are not subject to retainage:
(Insert any items not subject to the withholding of retainage, such as Design Services, general conditions, bonds, insurance, etc.)

§ B.1.5.3.3.3 Reduction or limitation of retainage, if any, shall be as follows:
(If the retainage established in Section B.1.5.3.3.1 is to be modified prior to Substantial Completion of the entire Work, including modifications for Substantial Completion of portions of the Work as provided in Section B.1.5.3.3.4, insert provisions for such modification.)

§ B.1.5.3.3.4 Upon Substantial Completion of the Work, the Design-Builder may submit an Application for Payment that includes the retainage withheld from prior Applications for Payment except as follows:
(Insert any conditions precedent to the release of all or a portion of the retainage, such as correction of the Construction Work, consent of surety, etc.)

§ B.1.5.4.5 Retainage

§ B.1.5.4.5.1 For each progress payment made prior to Substantial Completion of the Work, the Owner may withhold the following amount, as retainage, from the payment otherwise due:
(Insert a percentage or amount to be withheld as retainage from each Application for Payment. The amount of retainage may be limited by governing law.)

5%

§ B.1.5.4.5.2 The following items are not subject to retainage:
(Insert any items not subject to the withholding of retainage, such as Design Services, general conditions, bonds, insurance, etc.)

Design Services

§ B.1.5.4.5.3 Reduction or limitation of retainage, if any, shall be as follows:
(If the retainage established in Section B.1.5.4.5.1 is to be modified prior to Substantial Completion of the entire Work, including modifications for Substantial Completion of portions of the Work as provided in Section B.1.5.4.5.4, insert provisions for such modification.)

§ B.1.5.5 Final Payment

§ B.1.5.5.1 Final payment, constituting the entire unpaid balance of the Contract Sum, shall be made by the Owner to the

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Design-Builder not later than 30 days after:

.1 the Design-Builder has fully performed the Agreement, except for the Design-Builder's responsibility to correct Construction Work as provided in Article 12 of AIA Document A141–2024, and to satisfy other requirements, if any, which extend beyond final payment;

.2 the Design-Builder has submitted a final Application for Payment and, if the Contract Sum is based on the Cost of the Work, a final accounting for the Cost of the Work;

.3 a final Certificate for Payment has been issued by the Owner in accordance with Article 9 of AIA Document A141–2024;

.4 other conditions precedent to the Owner's obligations to issue final payment to the Design-Builder:

As a condition precendent to the Owner's obligation to issue final payment, the Design-Builder shall strictly comply with the Owner's Closeout Standards (*Section 01 77 00 Closeout Procedures*, dated 2019) available at https://files-backend.assets.thrillshare.com/documents/asset/uploaded_file/4086/Facilities/ceb59ef2-3a65-418f-8ed6-ab4b2f419706/01_77_00_Closeout_Procedures_2019.pdf?disposition=inline, which are incorporated herein by reference.

§ B.1.5.5.2 If the Contract Sum is based on the Cost of the Work, within 30 days of the Owner's receipt of the Design-Builder's final accounting for the Cost of the Work, the Owner shall conduct an audit of the Cost of the Work or notify the Design-Builder that it will not conduct an audit.

§ B.1.5.5.2.1 If the Owner conducts an audit of the Cost of the Work, the Owner shall, within 10 days after completion of the audit, submit a written report based upon the auditors' findings to the Design-Builder.

§ B.1.5.5.2.2 Within seven days after receipt of the written report described in Section B.1.5.5.2.1, or receipt of notice that the Owner will not conduct an audit, and provided that the other conditions of Section B.1.5.5.1 have been met, the Owner will either issue a final Certificate for Payment to the Design-Builder, or notify the Design-Builder in writing of the Owner's reasons for withholding a certificate. The time periods stated in this Section B.1.5.5.2.2 supersede those stated in Article 9 of AIA Document A141–2024. The Owner is not responsible for verifying the accuracy of the Design-Builder's final accounting.

§ B.1.5.5.2.3 If the Owner's auditors' report concludes that the Cost of the Work, as substantiated by the Design-Builder's final accounting, is less than the amount claimed by the Design-Builder, the Design-Builder shall be entitled to request mediation of the disputed amount pursuant to Article 15 of the AIA Document A141–2024, without seeking an initial resolution of the claim pursuant to Article 15 of AIA Document A141–2024. A request for mediation shall be made by the Design-Builder within 30 days after the Design-Builder's receipt of a copy of the Owner's final Certificate for Payment. Failure to request mediation within this 30-day period shall result in the substantiated amount reported by the Owner's auditors becoming binding on the Design-Builder. Pending a final resolution of the disputed amount, the Owner shall pay the Design-Builder the amount substantiated by the Owner's auditors within 30 days or such shorter period required by law.

§ B.1.5.5.3 If, subsequent to final payment, and at the Owner's request, the Design-Builder incurs costs, described in Sections B.6.2, and not excluded by Section B.6.3, to correct defective or nonconforming Construction Work, the Owner shall reimburse the Design-Builder for such costs, and the Design-Builder's Fee applicable thereto, on the same basis as if such costs had been incurred prior to final payment, but not in excess of the Guaranteed Maximum Price, if the Contract Sum is based on the Cost of the Work subject to a Guaranteed Maximum Price. If adjustments to the Contract Sum are provided for in Section B.1.4, the amount of those adjustments shall be recalculated, taking into account any reimbursements made pursuant to this Section B.1.5.5.3 in determining the net amount to be paid by the Owner to the Design-Builder.

ARTICLE B.2 CONTRACT TIME

§ B.2.1 The date of commencement of the Construction Work shall be:
(Check one of the following boxes.)

[ ] The date of execution of this Amendment.

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[ ] Established as follows:
(Insert a date or a means to determine the date of commencement of the Construction Work.)

If a date of commencement of the Construction Work is not selected, then the date of commencement of the Construction Work shall be the date of execution of this Amendment.

§ B.2.1.1 Unless otherwise provided, the Contract Time is the period of time, including authorized adjustments, allotted in the Design-Build Documents for Substantial Completion of the Work. The Contract Time shall be measured from the date of commencement of the Construction Work.

§ B.2.2 Substantial Completion

§ B.2.2.1 Subject to adjustments of the Contract Time as provided in the Design-Build Documents, the Design-Builder shall achieve Substantial Completion of the entire Work:
(Check one of the following boxes and complete the necessary information.)

[ ] Not later than ( ) calendar days from the date of commencement of the Work.

[ ] By the following date:

§ B.2.2.2 Subject to adjustments of the Contract Time as provided in the Design-Build Documents, if portions of the Work are to be Substantially Complete prior to Substantial Completion of the entire Work, the Design-Builder shall achieve Substantial Completion of such portions by the following dates:

Portion of Work	Substantial Completion Date

§ B.2.2.3 Other:
(Insert provisions for bonus, shared savings, cost savings, or other incentives, if any, that might result in a change to the Contract Sum or Guaranteed Maximum Price.)

ARTICLE B.3 INFORMATION UPON WHICH AMENDMENT IS BASED

§ B.3.1 The Contract Sum and Contract Time set forth in this Amendment are based on the following:

§ B.3.1.1 The following Supplementary and other Conditions of the Agreement:

Document	Title	Date	Pages

§ B.3.1.2 The following Specifications:
(Either list the Specifications here or refer to an exhibit attached to this Amendment.)

Section	Title	Date	Pages

§ B.3.1.3 The following Drawings:
(Either list the Drawings here or refer to an exhibit attached to this Amendment.)

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Number	Title	Date

§ B.3.1.4 The Sustainability Plan, if any:
(If the Owner identified a Sustainable Objective, identify the document or documents that comprise the Sustainability Plan by title, date, and number of pages, and include other identifying information. The Sustainability Plan identifies and describes the Sustainable Objective; the targeted Sustainable Measures; implementation strategies selected to achieve the Sustainable Measures; the Owner's and Design-Builder's roles and responsibilities associated with achieving the Sustainable Measures; the specific details about design reviews, testing or metrics to verify achievement of each Sustainable Measure; and the Sustainability Documentation required for the Project, as those terms are defined in Exhibit C to the Agreement.)

Title	Date	Pages

Other identifying information:

§ B.3.1.5 Assumptions and clarifications, if any:
(Identify each assumption and clarification.)

§ B.3.1.6 Deviations from the Owner's Criteria as adjusted by a Modification:

§ B.3.1.7 To the extent the Design-Builder shall be required to submit any Submittals to the Owner for review, indicate any such submissions below:
(List any Submittals that the Design-Builder is required to submit to the Owner for review.)

§ B.3.1.8 Owner's Intended BIM Uses
The Owner intends to utilize any Building Information Modeling ("Model") created on the Project for future uses of numerous types.
(Examples include building system maintenance, building system analysis, asset management, space management and tracking, disaster planning, and record modeling.)

§ B.3.1.8.1 The Owner agrees that the extent of its reliance on any Model, or a portion thereof, shall be in accordance with a BIM Execution Plan agreed to by the Parties. If the Parties do not agree to a BIM Execution Plan, the Owner's reliance on any Model shall be at the Owner's sole risk.

ARTICLE B.4 DESIGN-BUILDER'S KEY PERSONNEL, CONSULTANTS, SUBCONTRACTORS, AND SUPPLIERS
§ B.4.1 The Design-Builder's key personnel are identified below:
(Identify name, title, and contact information.)

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.1 Superintendent

.2 Project Manager

.3 Others

§ B.4.2 Omitted.

ARTICLE B.5 OWNER'S SEPARATE CONTRACTORS

§ B.5.1 The Owner shall retain the following Separate Contractors to perform construction or operations related to the Project:
(List name, discipline, address, and other information for each Separate Contractor and identify the construction or operations to be performed by such Separate Contractor.)

ARTICLE B.6 COST OF THE WORK

§ B.6.1 The term Cost of the Work shall mean costs necessarily incurred by the Design-Builder in the proper performance of the Work. The Cost of the Work shall include only the items set forth in Section B.6.2.

§ B.6.1.2 Where, pursuant to the Design-Build Documents, any cost is subject to the Owner's prior approval, the Design-Builder shall obtain such approval in writing prior to incurring the cost.

§ B.6.1.3 Costs shall be at rates not higher than the standard rates paid at the place of the Project, except with prior approval of the Owner.

§ B.6.2 Cost to Be Reimbursed as Part of the Contract

§ B.6.2.1 Labor Costs

§ B.6.2.1.1 Wages or salaries of construction workers directly employed by the Design-Builder to perform the Construction Work at the site or, with the Owner's prior approval, at off-site workshops.

§ B.6.2.1.2 Wages or salaries of the Design-Builder's supervisory and administrative personnel when stationed at the site and performing Construction Work, with the Owner's prior approval.

§ B.6.2.1.3 Wages or salaries of the Design-Builder's supervisory and administrative personnel when performing Construction Work and stationed at a location other than the site, but only for that portion of time required for the Construction Work, and limited to the personnel and activities listed below:
(Identify the personnel, type of activity and, if applicable, any agreed upon percentage of time to be devoted to the Construction Work.)

§ B.6.2.1.4 Wages and salaries of the Design-Builder's supervisory or administrative personnel engaged at factories, workshops or while traveling, in expediting the production or transportation of materials or equipment required for the Construction Work, but only for that portion of their time required for the Construction Work.

§ B.6.2.1.5 Costs paid or incurred by the Design-Builder, as required by law or collective bargaining agreements, for taxes, insurance, contributions, assessments and benefits and, for personnel not covered by collective bargaining agreements,

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customary benefits such as sick leave, medical and health benefits, holidays, vacations, and pensions, provided such costs are based on wages and salaries included in the Cost of the Work under Section B.6.2.1.

§ B.6.2.1.6 If agreed rates for labor costs, in lieu of actual costs, are provided in this Agreement, the rates shall remain unchanged throughout the duration of this Agreement, unless the parties execute a Modification.

§ B.6.2.2 Consultant and Subcontract Costs. Payments made by the Design-Builder to the Architect, Consultants, Subcontractors, and suppliers in accordance with the requirements of their subcontracts or similar agreements.

§ B.6.2.3 Costs of Materials and Equipment Incorporated in the Completed Construction

§ B.6.2.3.1 Costs, including transportation and storage at the site, of materials and equipment incorporated, or to be incorporated, in the completed construction.

§ B.6.2.3.2 Costs of materials described in the preceding Section B.6.2.3.1 in excess of those actually installed to allow for reasonable waste and spoilage. Unused excess materials, if any, shall become the Owner's property at the completion of the Construction Work or, at the Owner's option, shall be sold by the Design-Builder. Any amounts realized from such sales shall be credited to the Owner as a deduction from the Cost of the Work.

§ B.6.2.4 Costs of Other Materials and Equipment, Temporary Facilities and Related Items

§ B.6.2.4.1 Costs of transportation, storage, installation, maintenance, dismantling, and removal of materials, supplies, temporary facilities, machinery, equipment, and costs of hand tools not customarily owned by construction workers that are provided by the Design-Builder at the site and fully consumed in the performance of the Construction Work. Costs of materials, supplies, temporary facilities, machinery, equipment, and tools that are not fully consumed shall be based on the cost or value of the item at the time it is first used on the Project site less the value of the item when it is no longer used at the Project site. Costs for items not fully consumed by the Design-Builder shall mean fair market value.

§ B.6.2.4.2 Rental charges for temporary facilities, machinery, equipment, and hand tools not customarily owned by construction workers that are provided by the Design-Builder at the site, and costs of transportation, installation, dismantling, minor repairs, and removal of such temporary facilities, machinery, equipment, and hand tools. Rates and quantities of equipment owned by the Design-Builder, or a related party as defined in Section B.6.2.7 shall be subject to the Owner's prior approval. The total rental cost of any such equipment may not exceed the purchase price of any comparable item.

§ B.6.2.4.3 Costs of removal of debris from the site of the Construction Work and its proper and legal disposal.

§ B.6.2.4.4 Costs of the Design-Builder's site office, including general office equipment and supplies.

§ B.6.2.4.5 Costs of materials and equipment suitably stored off the site at a mutually acceptable location, with the Owner's prior approval.

§ B.6.2.5 Miscellaneous Costs

§ B.6.2.5.1 Premiums for that portion of insurance and bonds required by the Design-Build Documents that can be directly attributed to the Contract.

§ B.6.2.5.1.1 Costs for self-insurance, for either full or partial amounts of the coverages required by the Design-Build Documents, with the Owner's prior approval.

§ B.6.2.5.1.2 Costs for insurance through a captive insurer owned or controlled by the Design-Builder, with the Owner's prior approval.

§ B.6.2.5.2 Omitted.

§ B.6.2.5.3 Fees and assessments for the building permit, and for other permits, licenses, and inspections, for which the Design-Builder is required by the Design-Build Documents to pay.

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§ B.6.2.5.4 Omitted.

§ B.6.2.5.5 Omitted.

§ B.6.2.5.5.1 Omitted.

§ B.6.2.5.6 Omitted.

§ B.6.2.5.7 Omitted.

§ B.6.2.5.8 Omitted.

§ B.6.2.5.9 Omitted.

§ B.6.2.5.10 Expenses incurred in accordance with the Design-Builder's standard written personnel policy for relocation and temporary living allowances of the Design-Builder's personnel required for the Work, with the Owner's prior approval.

§ B.6.2.5.11 Omitted.

§ B.6.2.6 Other Costs and Emergencies

§ B.6.2.6.1 Other costs incurred in the performance of the Work, with the Owner's prior approval.

§ B.6.2.6.2 Costs incurred in taking action to prevent threatened damage, injury, or loss, in case of an emergency affecting the safety of persons and property, as provided in Article 10 of AIA Document A141-2024.

§ B.6.2.6.3 Costs of repairing or correcting damaged or nonconforming Construction Work executed by the Design-Builder, Subcontractors, or suppliers, provided that such damaged or nonconforming Construction Work was not caused by the negligence of, or failure to fulfill a specific responsibility by, the Design-Builder, and only to the extent that the cost of repair or correction is not recovered by the Design-Builder from insurance, sureties, Subcontractors, suppliers, or others.

§ B.6.2.6.4 Costs of implementation of, and compliance with, protective safeguards that may be required under the Design-Builder's or Owner's builder's risk policy.

§ B.6.2.7 Related Party Transactions

§ B.6.2.7.1 For purposes of this Section B.6.2.7, the term "related party" shall mean (1) a parent, subsidiary, affiliate, or other entity having common ownership of, or sharing common management with, the Design-Builder; (2) any entity in which any stockholder in, or management employee of, the Design-Builder holds an equity interest in excess of ten percent in the aggregate; (3) any entity which has the right to control the business or affairs of the Design-Builder; or (4) any person, or any member of the immediate family of any person, who has the right to control the business or affairs of the Design-Builder.

§ B.6.2.7.2 If any of the costs to be reimbursed arise from a transaction between the Design-Builder and a related party, the Design-Builder shall notify the Owner of the specific nature of the contemplated transaction, including the identity of the related party and the anticipated cost to be incurred, before any such transaction is consummated or cost incurred. If the Owner, after such notification, authorizes the proposed transaction in writing, then the cost incurred shall be included as a cost to be reimbursed, and the Design-Builder shall procure the Work, equipment, goods, or service, from the related party, as a Subcontractor, according to the terms of Section B.6.5. If the Owner fails to authorize the transaction in writing, the Design-Builder shall procure the Work, equipment, goods, or service from some person or entity other than a related party according to the terms of Section B.6.5.

§ B.6.3 Costs Not to Be Reimbursed as Part of this Contract

The Cost of the Work shall not include the items listed below:

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.1 Salaries and other compensation of the Design-Builder's personnel stationed at the Design-Builder's principal office or offices other than the site office, except as specifically provided in Section B.6.2.1 or as may be provided elsewhere in the Agreement;

.2 Bonuses, profit sharing, incentive compensation, and any other discretionary payments, paid to anyone hired by the Design-Builder or paid to any Subcontractor or vendor, unless the Owner has provided prior approval;

.3 Expenses of the Design-Builder's principal office and offices other than the site office;

.4 Overhead and general expenses, except as may be expressly included in Section B.6.2;

.5 The Design-Builder's capital expenses, including interest on the Design-Builder's capital employed for the Work;

.6 Except as provided in Section B.6.2.6.3 of this Amendment, costs due to the negligence of, or failure to fulfill a specific responsibility of the Agreement by, the Design-Builder, Contractors, and suppliers, or anyone directly or indirectly employed by any of them or for whose acts any of them may be liable;

.7 Any cost not specifically and expressly described in Section B.6.2; and

.8 Costs, other than costs included in Modifications approved by the Owner, that would cause the Guaranteed Maximum Price to be exceeded.

§ B.6.4 Discounts, Rebates, and Refunds

§ B.6.4.1 Cash discounts obtained on payments made by the Design-Builder shall accrue to the Owner if (1) before making the payment, the Design-Builder included the amount to be paid, less such discount, in an Application for Payment and received payment from the Owner, or (2) the Owner has deposited funds with the Design-Builder with which to make payments; otherwise, cash discounts shall accrue to the Design-Builder. Trade discounts, rebates, refunds, and amounts received from sales of surplus materials and equipment shall accrue to the Owner, and the Design-Builder shall make provisions so that they can be obtained.

§ B.6.4.2 Amounts that accrue to the Owner in accordance with Section B.6.4.1 shall be credited to the Owner as a deduction from the Cost of the Work.

§ B.6.5 Other Agreements

§ B.6.5.1 Those portions of the Construction Work that the Design-Builder does not customarily perform with the Design-Builder's own personnel shall be performed under subcontracts or other appropriate agreements with the Design-Builder. The Owner may designate specific persons from whom, or entities from which, the Design-Builder shall obtain bids. The Design-Builder shall obtain bids from Subcontractors, and from suppliers of materials or equipment fabricated especially for the Construction Work, who are qualified to perform that portion of the Construction Work in accordance with the requirements of the Design-Build Documents. The Design-Builder shall deliver such bids to the Owner with an indication as to which bids the Design-Builder intends to accept. The Owner then has the right to review the Design-Builder's list of proposed Subcontractors and suppliers and, subject to Section 5.9.1.1 of the Agreement, to object to any Subcontractor or supplier. Any approval or objection by the Owner shall not relieve the Design-Builder of its responsibility to perform the Construction Work in accordance with the Design-Build Documents. The Design-Builder shall not be required to contract with anyone to whom the Design-Builder has reasonable objection.

§ B.6.5.1.1 When a specific Subcontractor or supplier (1) is recommended to the Owner by the Design-Builder; (2) is qualified to perform that portion of the Construction Work; and (3) has submitted a bid that conforms to the requirements of the Design-Build Documents without reservations or exceptions, but the Owner requires that another bid be accepted, then the Design-Builder may require that a Change Order be issued to adjust the Guaranteed Maximum Price by the difference between the bid of the person or entity recommended to the Owner by the Design-Builder and the amount of the Subcontract or other agreement actually signed with the person or entity designated by the Owner.

§ B.6.5.2 Subcontracts or other agreements shall conform to the applicable payment provisions of the Design-Build Documents and shall not be awarded on the basis of cost plus a fee without the Owner's prior written approval. If a subcontract is awarded on the basis of cost plus a fee, the Design-Builder shall provide in the Subcontract for the Owner to receive the same audit rights with regard to the Subcontractor as the Owner receives with regard to the Design-Builder in this Amendment.

§ B.6.6 Accounting Records

The Design-Builder shall keep full and detailed records and accounts related to the Cost of the Work and exercise such

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controls, as may be necessary for proper financial management under the Agreement and to substantiate all costs incurred. The accounting and control systems shall be satisfactory to the Owner. The Owner and the Owner's auditors shall, during regular business hours and upon reasonable notice, be afforded access to, and shall be permitted to audit and copy, the Design-Builder's records and accounts, including complete documentation supporting accounting entries, books, job cost reports, correspondence, instructions, drawings, receipts, subcontracts, Subcontractor's proposals, Subcontractor invoices, purchase orders, vouchers, memoranda, and other data relating to this Agreement. The Design-Builder shall preserve these records for a period of three years after final payment, or for such longer period as may be required by law.

This Amendment to the Agreement entered into as of the day and year first written above.

This Agreement will be effective when all parties have signed it. The date of this Agreement will be the date this Agreement is signed by the last party to sign it (as indicated by the date associated with that party's signature.

DESIGN BUILDER

(COMPANY NAME)

By:_____

Print Name:_____

Title:_____

AIA TEMPLATE APPROVED BY OFFICE OF GENERAL COUNSEL: July 2026

"SCHOOL DISTRICT NO. 1"

APPROVED:

By:_____

Senior Project Manager, Planning, Design and Construction

By:_____

Director, Construction, Planning, Design and Construction

By:_____

Executive Director, Planning, Design and Construction

By:_____

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Chief Operations Officer

By:_____

Board of Education, President

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ADDITIONS AND DELETIONS:
The author of this document may have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

AIA® Document A141® – 2024 Exhibit C

Sustainable Projects Exhibit

This Exhibit dated the day of in the year (the "Exhibit") is incorporated into AIA Document A141®–2024, Standard Form of Agreement Between Owner and Design-Builder for a Traditional Design-Build Project dated the day of in the year (the "Agreement").
(In words, indicate day, month, and year.)

for the following **PROJECT**:
(Name and location or address)

THE OWNER:
(Name, legal status, and address)

School District No. 1 in the City and County of Denver and State of Colorado
1860 Lincoln Street
Denver, CO 80203

THE DESIGN-BUILDER:
(Name, legal status, and address)

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ARTICLE C.1 GENERAL PROVISIONS

§ C.1.1 This Exhibit provides for the establishment of the Work of the Design-Builder and requirements and services of the Owner, where the Project includes achievement of a Sustainable Objective.

§ C.1.2 Definitions

§ C.1.2.1 Sustainable Objective. The Sustainable Objective is the Owner's goal of incorporating Sustainable Measures into the design, construction, maintenance, and operations of the Project to achieve a Sustainability Certification or other benefit to the environment, to enhance the health and well-being of building occupants, or to improve energy efficiency. The Sustainable Objective is identified in the Sustainability Plan.

§ C.1.2.2 Sustainable Measure. A Sustainable Measure is a specific design or construction element, or post occupancy use, operation, maintenance, or monitoring requirement that must be completed to achieve the Sustainable Objective. The Owner and Design-Builder shall each have responsibility for the Sustainable Measure(s) allocated to them in the Sustainability Plan.

§ C.1.2.3 Sustainability Plan. The Sustainability Plan is a Design-Build Document that identifies and describes: the Sustainable Objective; the targeted Sustainable Measures; implementation strategies selected to achieve the Sustainable Measures; the Owner's and Design-Builder's roles and responsibilities associated with achieving the Sustainable Measures; the specific details about design reviews, testing, or metrics to verify achievement of each Sustainable Measure; and the Sustainability Documentation required for the Project.

§ C.1.2.4 Sustainability Certification. The Sustainability Certification is the initial third-party certification of sustainable design, construction, or environmental or energy performance, such as LEED®, Green Globes™, Energy Star® or another rating or certification system, that may be designated as the Sustainable Objective or part of the Sustainable Objective for the Project. The term Sustainability Certification shall not apply to any recertification or certification occurring subsequent to the initial certification.

§ C.1.2.5 Sustainability Documentation. The Sustainability Documentation includes all documentation related to the Sustainable Objective or to a specific Sustainable Measure that the Owner or Design-Builder is required to prepare in accordance with the Design-Build Documents. Responsibility for preparation of specific portions of the Sustainability Documentation will be allocated among the Owner and Design-Builder in the Sustainability Plan and may include documentation required by the Certifying Authority.

§ C.1.2.6 Certifying Authority. The Certifying Authority is the entity that establishes criteria for achievement of a Sustainability Certification and is authorized to grant or deny a Sustainability Certification.

§ C.1.3 Set forth below any incentive programs related to the Sustainable Objective the Owner intends to pursue, any deadlines for receiving the incentives, and any requirements related to the incentive programs that apply to the Design-Builder or the performance of the Design-Builder's services:
(Identify incentive programs the Owner intends to pursue and deadlines for submitting or applying for the incentive program.)

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§ C.1.4 The Parties agree to incorporate this Exhibit into the agreements with the project participants performing services or Work in any way associated with the Sustainable Objective.

ARTICLE C.2 DESIGN-BUILDER

§ C.2.1 Scope of Design-Builder's Sustainability Services

The Design-Builder shall provide the Sustainability Services described in this Article C.2 in conjunction with the Work described in the Agreement.

§ C.2.2 Sustainability Certification Agreements. If the anticipated Sustainable Objective set forth in the Owner's Criteria includes a Sustainability Certification, the Design-Builder shall provide the Owner with copies of all agreements required by the Certifying Authority to register the Project and pursue the Sustainability Certification. The Owner and Design-Builder will review and confirm that the terms of those agreements are acceptable to the Owner before moving forward with the Sustainability Services under this Article C.2. The Owner agrees to execute all documents required by the Certifying Authority to be executed by the Owner; including any documentation required to establish the authority of the Design-Builder, the Architect, or a Consultant, as an agent of the Owner, for the limited purpose of pursuing the Sustainability Certification.

§ C.2.3 Preliminary Design

§ C.2.3.1 Sustainability Workshop. As soon as practicable, but not later than the conclusion of Preliminary Design, the Design-Builder, and as necessary the Design-Builder's Architect and Consultants, shall conduct a Sustainability Workshop with the Owner and, as requested by the Design-Builder, with the Owner's consultants, during which the participants will: review and discuss potential Sustainability Certifications; establish the Sustainable Objective; discuss potential Sustainable Measures to be targeted; examine strategies for implementation of the Sustainable Measures; and discuss the potential impact of the Sustainable Measures on the Project schedule, the Owner's program, and the Owner's budget for the Work.

§ C.2.4 Sustainability Plan Services

§ C.2.4.1 Following the Sustainability Workshop, the Design-Builder shall prepare a Sustainability Plan based on the Sustainable Objective and targeted Sustainable Measures. The Sustainability Plan shall not change the Owner's Criteria unless the Owner and Design-Builder execute a Modification reflecting any such change.

§ C.2.4.2 As part of the Design-Builder's submission of the Preliminary Design prepared in accordance with the Agreement, the Design-Builder shall submit the Sustainability Plan prepared in accordance with Section C.2.4.1, to the Owner, and request the Owner's approval.

§ C.2.4.3 As part of the Design-Builder's submission of the Construction Documents prepared in accordance with the Agreement, the Design-Builder shall advise the Owner of any adjustments to the Sustainability Plan and request the Owner's approval.

§ C.2.4.4 The Design-Builder shall perform those Sustainable Measures identified as the responsibility of the Design-Builder in the approved Sustainability Plan and any approved changes to the Sustainability Plan.

§ C.2.4.5 The Design-Builder shall prepare the Preliminary Design and Construction Documents to incorporate the Sustainable Measures identified in the Sustainability Plan, as appropriate.

§ C.2.4.6 As part of the Sustainable Measures, the Project may require the use of materials and equipment that have had limited testing or verification of performance. The Design-Builder may be unable to determine whether the materials or equipment will perform as represented by the manufacturer or supplier. The Design-Builder shall discuss with the Owner the proposed use of such materials or equipment and potential effects on the Sustainable Objective that may occur if the materials or equipment fail to perform in accordance with the manufacturer's or supplier's representations. The Owner will render a written decision regarding the use of such materials or equipment in a timely manner. In the event the Owner elects to proceed with the use of such materials or equipment, the Design-Builder shall be permitted to rely on the manufacturer's or supplier's

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representations and shall not be responsible for any damages arising from failure of the material or equipment to perform in accordance with the manufacturer's or supplier's representations.

§ C.2.5 Design-Builder's Proposal

§ C.2.5.1 As part of the Design-Builder's submission of the Design-Builder's Proposal, in accordance with the Agreement, the Design-Builder shall advise the Owner of any adjustments to the Sustainability Plan.

§ C.2.5.2 If the Owner and Design-Builder agree upon the Design-Builder's Proposal, including the Sustainability Plan, the Owner and Design-Builder shall include the Sustainability Plan in the Design-Build Amendment executed in accordance with the Agreement.

§ C.2.6 Construction Work

§ C.2.6.1 The Design-Builder shall advise and consult with the Owner regarding the progress of the Project toward achievement of the Sustainable Measures. Based on site visits performed in accordance with the Agreement and other information received, the Design-Builder shall promptly notify the Owner of known deviations from the Design-Build Documents and defects or deficiencies in the Work that will affect the achievement of Sustainable Measures. The Design-Builder shall meet with the Owner to discuss remedies or, where appropriate, alternatives to achieve the Sustainable Measures.

§ C.2.6.2 If the Design-Builder determines that a proposed change in the Work would materially impact a Sustainable Measure or the Sustainable Objective, the Design-Builder shall notify the Owner and, upon the Owner's written authorization, further investigate such change.

§ C.2.6.3 At Substantial Completion, the Design-Builder shall forward to the Owner all Sustainability Documentation prepared by the Design-Builder in accordance with the Design-Build Documents, except for Sustainability Documentation which by its nature must be completed after Substantial Completion.

§ C.2.6.4 The Owner's final payment to the Design-Builder does not relieve the Design-Builder's obligation to fulfill its responsibilities related to achieving the Sustainable Objective.

§ C.2.6.5 The Design-Builder shall be responsible for preparing and completing the Sustainability Documentation required by the Design-Build Documents, including any Sustainability Documentation required to be submitted after Substantial Completion.

§ C.2.6.6 Construction Waste Management

The Design-Builder, in accordance with the Design-Build Documents, shall prepare and submit to the Owner a construction waste management and disposal plan setting forth the procedures and processes for salvaging, recycling, or disposing of construction waste generated from the Project. The Design-Builder shall recycle, reuse, remove, or dispose of materials as required by the Design-Build Documents.

§ C.2.6.7 Substantial Completion

Verification that the Project has achieved the Sustainable Objective, or the actual achievement of the Sustainable Objective, shall not be a condition precedent to issuance of a Certificate of Substantial Completion. Except for that portion of the Sustainability Documentation that by its nature must be provided after Substantial Completion, the Design-Builder shall submit all other Sustainability Documentation required from the Design-Builder by the Design-Build Documents no later than the date of Substantial Completion.

§ C.2.6.8 Final Completion

§ C.2.6.8.1 All Sustainability Documentation required from the Design-Builder by the Design-Build Documents shall be submitted to the Owner before final payment or any remaining retained percentage shall become due.

§ C.2.6.8.2 Verification that the Project has achieved the Sustainable Objective, or the actual achievement of the Sustainable Objective, shall not be a condition precedent to issuance of the final Certificate for Payment. Final payment does not relieve

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the Design-Builder's obligation to fulfill its responsibilities related to achieving the Sustainable Objective.

§ C.2.6.9 Project Registration and Submissions of Sustainability Documentation to the Certifying Authority

§ C.2.6.9.1 If the Sustainable Objective includes a Sustainability Certification, the Design-Builder, as agent for the Owner, shall perform the services set forth in this Section C.2.6.

§ C.2.6.9.2 The Design-Builder shall register the Project with the Certifying Authority. Registration fees and any other fees charged by the Certifying Authority, and paid by the Design-Builder, shall be a reimbursable expense.

§ C.2.6.9.3 The Design-Builder shall collect the Sustainability Documentation from the Owner; organize and manage the Sustainability Documentation; and, subject to Section C.2.7, submit the Sustainability Documentation to the Certifying Authority as required for the Sustainability Certification process.

§ C.2.6.9.4 Subject to Section C.2.7, the Design-Builder shall prepare and submit the application for certification of the Project to the Certifying Authority, including any required supporting documentation, in accordance with the Sustainability Plan.

§ C.2.6.9.5 Subject to Section C.2.7 and, provided the Design-Builder receives timely notice from the Owner or Certifying Authority, the Design-Builder shall prepare and file necessary documentation with the Certifying Authority to appeal a ruling or other interpretation denying a requirement, prerequisite, credit, or point necessary to achieve the Sustainability Certification.

§ C.2.6.9.6 Subject to Section C.2.7, the Design-Builder shall prepare responses to comments or questions received from the Certifying Authority, and submit additional required documentation.

§ C.2.6.9.7 Any certification, declaration, or affirmation the Design-Builder makes to the Certifying Authority shall not constitute a warranty or guarantee to the Owner or the Owner's contractors or consultants.

§ C.2.6.10 Copyrights and Licenses

§ C.2.6.10.1 Solely for the purpose of obtaining or maintaining the Sustainability Certification, the Design-Builder grants to the Owner a nonexclusive license to submit the Design-Builder's Instruments of Service, directly or through third parties, to the Certifying Authority to comply with the requirements imposed by the Certifying Authority, and further grants the Owner a nonexclusive license to allow the Certifying Authority to publish the Instruments of Service in accordance with the policies and agreements required by the Certifying Authority. The license granted in this Section C.2.6.10.1 shall terminate only if (1) the Design-Builder terminates the Agreement in accordance with Sections 14.1.3 or 14.1.4 of the Agreement or (2) the Owner terminates the Agreement for convenience as provided in Section 14.1.5 of the Agreement and does not compensate the Design-Builder as required under Section 14.1.6 and 14.1.7 of the Agreement.

§ C.2.6.10.2 Submission or distribution of Instruments of Service to meet requirements of a Certifying Authority in connection with the Project is not to be construed as publication in derogation of the reserved rights of the Design-Builder or those of the Architect, Consultants, and Contractors.

§ C.2.7 Additional Services

§ C.2.7.1 Upon recognizing the need to perform the following Additional Services, in addition to those listed in the Agreement, the Design-Builder shall notify the Owner with reasonable promptness and explain the facts and circumstances giving rise to the need. The Design-Builder shall not proceed to provide the following services until the Design-Builder receives the Owner's written authorization:

- **.1** Changing or editing previously prepared Instruments of Service, including the Sustainability Plan, necessitated by the Certifying Authority's changes in the requirements necessary to achieve the Sustainability Certification; or
- **.2** Assistance to the Owner with preparation of Sustainability Documentation, for which the Owner is responsible pursuant to the Sustainability Plan.

§ C.2.7.2 The Design-Builder shall provide services exceeding the limits set forth below as Additional Services. When the

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limits below are reached, the Design-Builder shall notify the Owner:

.1 ( ) adjustments to the Sustainability Plan

.2 ( ) meetings during the design and construction phases required to define, develop, and incorporate the Sustainable Measures into the Design-Build Documents

.3 ( ) submittals to the Certifying Authority

.4 ( ) responses to the Certifying Authority's comments and questions

.5 ( ) appeals to the Certifying Authority pursuant to Section C.2.6.9.5

.6 ( ) meetings with the Owner, pursuant to Section C.2.6.1, to discuss remedies or, where appropriate, alternatives to achieve the Sustainable Measures due to deviations from the Design-Build Documents or defects or deficiencies in the Work.

ARTICLE C.3 OWNER

§ C.3.1 Based on the Owner's approval of the Sustainability Plan and any approved changes to the Sustainability Plan, the Owner shall perform those Sustainable Measures identified as the responsibility of the Owner in the Sustainability Plan, or as otherwise required by the Design-Build Documents. The Owner shall require that each of its contractors and consultants performs the contractor's or consultant's services in accordance with the Sustainability Plan.

§ C.3.2 The Owner shall provide to the Design-Builder any information requested by the Design-Builder that is relevant and necessary for achievement of the Sustainable Objective, including: design drawings; construction documents; record drawings; shop drawings and other submittals; operation and maintenance manuals; master plans; building operation costs; building operation budgets; pertinent records relative to historical building data, building equipment and furnishings; and repair records.

§ C.3.3 The Owner shall be responsible for preparing, filing, and prosecuting appeals to the Certifying Authority, or taking any other actions determined by the Owner to be necessary or desirable, arising from the revocation or reduction of an awarded Sustainability Certification.

§ C.3.4 The Owner shall comply with the requirements of the Certifying Authority as they relate to the ownership, operation, and maintenance of the Project both during construction and after completion of the Project.

§ C.3.5 The Owner shall provide the services of a commissioning agent who shall be responsible for commissioning of the Project, or the Owner may engage the Design-Builder to provide commissioning services as an Additional Service.

ARTICLE C.4 CLAIMS AND DISPUTES

TheDesign-Builder waive claims against the Owner for consequential damages resulting from the failure of the Project to achieve the Sustainable Objective or one or more of the Sustainable Measures.

ARTICLE C.5 MISCELLANEOUS PROVISIONS

§ C.5.1 The Owner and Design-Builder acknowledge that achieving the Sustainable Objective is dependent on many factors beyond the Design-Builder's control, such as the Owner's use and operation of the Project; the work or services provided by the Owner's separate contractors or consultants; or interpretation of credit requirements by a Certifying Authority. Accordingly, the Design-Builder does not warrant or guarantee that the Project will achieve the Sustainable Objective.

§ C.5.2 This Sustainable Projects Exhibit shall not be construed to create a contractual relationship of any kind between (1) the Owner and a Subcontractor or a Sub-subcontractor, (2) the Owner and the Architect or Architect's consultants, or (3) the Design-Builder and the Owner's Consultants or Separate Contractors.

ARTICLE C.6 SPECIAL TERMS AND CONDITIONS

Special terms and conditions that modify this Sustainable Projects Exhibit, if any, are as follows:

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Denver Public Schools
Strategic Sourcing Department
780 Grant Street
Denver, Colorado 80203

EXHIBIT C

Code of Conduct and Conflict of Interest Certification

I, _____, certify as an authorized representative of [_____], that I have read the District's ethical and purchasing policies, as listed below[1], related to my company conducting business with the District. I understand that the District's policies and regulations shall operate as a Code of Conduct. I agree to follow the District's Code of Conduct, and any legal and regulatory requirements applicable to my company's performance, work or contract, and that violating the District's Code of Conduct may result in immediate sanctions up to, and including the termination of my business relationship with the District. I understand that if I have questions concerning the meaning or application of the Code of Conduct or relevant legal and regulatory requirements, I will contact the appropriate District representative. I understand it is my responsibility to disclose any situation that might reasonably appear to be a violation of the Code of Conduct. I understand the absence of a specific guideline, practice or policy covering a particular situation does not relieve me from exercising the highest ethical standards applicable to the circumstances.

I have read the Code of Conduct, as listed below, which among other things, restates the District's policies prohibiting certain activities deemed illegal, unethical or against the best interest of the District. I accept and agree to the restrictions stated in the Code of Conduct. I hereby certify that I will comply with the Code of Conduct and to the best of my knowledge, all of my employees, subcontractors, and personnel under my supervision are aware of the Code of Conduct and will comply with its terms. I know and agree that it is incumbent upon me, and my employees to perform satisfactorily and to follow and comply with the District policies and rules as they are issued or modified from time to time.

I understand the District's Code of Conduct is a general guide to acceptable and appropriate behavior, and that I am expected to comply with it even though it may not contain all of the details and information needed during the course of my performance and work with the District.

In particular, when dealing with District employees, I will adhere to the highest ethical standards of business conduct. When seeking the resolution of regulatory or ethical issues affecting my company's interests I will do so solely on the basis of merit and pursuant to proper procedures in dealing with the District and its employees. At no time will I, or any employee of mine offer, provide or solicit, directly or indirectly, any special treatment or favor in return for anything of economic value, or the promise or expectation of future value or gain. In addition, there shall be no entertaining of District employees with the expectation of receiving any future value or gain.

I will not accept or offer gifts, employ any person who is working for the District, nor do I have any close,[2] or immediate family[3] relationships with the District. If I do, I will immediately disclose the name and relationship of that person or persons and any existing potential conflict of interest with that District employee or any employee who may make decisions in their jobs that would allow him or her to give or receive preferential or favorable consideration in exchange for anything of a personal benefit to themselves or their friends and families. I understand that such situations could interfere with an employee's ability to make judgments solely in the District's best interest.

Accordingly, I have listed below all relationships and outside activities, which may require disclosure under the policy. I have also listed names, addresses and the nature of the relationships of all persons or entities doing business with the District from whom I, or any member of my immediate family, have received, may receive in the future, directly or indirectly, cash or a gift of more than nominal value ($25.00). Finally, to ensure there is no perceived conflict of interest, I have listed the name of all individuals employed by the District that are related to me or anyone in my business regardless of his or her position.

_____
Printed Name

_____ _____
Signature Date

[1] **BC** Board Member Conduct Policy; **BCB** Board Member Conflict of Interest Policy; **DJ** Purchasing Policy; **DJA** Purchasing Authority Policy and regulation; **DJB** Purchasing Procedures Policy; **DJE** Bidding Practices Policy; **DJG** Vendor Relations Policy; **DJGA** Sales Calls and Demonstrations Policy; **DK** Stewardship of Funds Policy; **GBEA** Conflict of Interest Policy; and **GBEBC** Gifts To and Solicitations by Staff Policy. [2] Close relationships means all persons, whether family or not, you may have a personal or business relation with performing work for, or on behalf of the District. [3] Immediate family means… spouse, partner in a civil union, children, siblings, parents, and in-laws (mother, father, brother, sister, daughter and son). See, Board Policy GBEA

EXHIBIT D
Wage Determination

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: OFF-SITE SERVICES AND STAFF	**Not Required**	**Contractor Fee**	**General Conditions Cos**	**Direct Cost of Work**	**Owner Expense**	**Additional Services**
1	Corporate Executives		X				
2	Principal in Charge		X				
3	Project Executive		X				
4	Legal (Basic Service)		X				
5	Project Manager			X			
6	Accounting		X	X			
7	Added Accounting for Lender		X				
8	Scheduling		X	X			
9	Special Lender Reporting		X				
10	Life-Cycle		X				
11	Energy Management		X				
12	Production Engineering		X				
13	Purchasing		X				
14	Value Engineering		X				
15	Systems Development		X				
16	Estimating		X				
17	Cost Engineers			X			
18	Project Coordinator			X			
19	Project Expediter			X			
20	Drafting Detailer	X					
21	Drawing Checker		X				
22	Safety Officer		X				
23	E.E.O. Officer		X				
24	Secretarial		X				
25	Clerk-Typist		X				
26	Fringe Benefits for Above	X					
27	Vacations for Above	X					
28	Bonuses for Above (If Any)	X					
29	Legal (Special Services Extras)						X

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: ON-SITE SERVICES AND STAFF	**Not Required**	**Basic/Contractor Fee**	**General Conditions Cos**	**Direct Cost of Work**	**Owner Expense**	**Additional Services**
1	Project Manager (If Required)		X				
2	Project Superintendent			X			
3	General Superintendent (If Required)		X				
4	Mechanical Coordinator (If Required)			X			
5	Electrical Coordinator (If Required)			X			
6	Project Engineer (If Required)			X			
7	Office Engineer (If Required)			X			
8	Scheduling Engineer (If Required)	X					
9	Field Engineer (If Required)			X			
10	Draftsman/Detailer (If Required)	X					
11	Drawing Checker (If Required)		X				
12	Field Accountant (If Required)	X					
13	Time Keeper/Checker (If Required)			X			
14	Scheduling Engineer (If Required)		X				
15	Expediter (If Required)		X				
16	Secretary (If Required)			X			
17	Clerk-Typist (If Required)			X			
18	Rodman and Helpers (If Required)				X		
19	Safety Engineer (If Required)		X				
20	E.E.O. Officer (If Required)		X				
21	Independent Surveyor (If Required)					X	
22	Personal Computer (If Required)			X			
23	Copy Machine (If Required)			X			
24	Fax Machine (If Required)			X			
25	Fringe Benefits	X					
26	Vacations for Above Staff	X					
27	Bonuses for Above (If Any)	X					

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: TRAVEL AND LODGING	**Not Required**	**Basic/Contractor Fee**	**General Conditions Cos**	**Direct Cost of Work**	**Owner Expense**	**Additional Services**
1	Off-Site Staff Travel Cost		X				
2	Off-Site Staff Transportation		X				
3	On-Site Project Manager Transportation		X				
4	Superintendent's Transportation			X			
5	Engineer's Transportation	X					
6	Project Staff Moving Expense	X					
7	Project Staff Subsistence Costs	X					
8	Travel/Lodging Out of State	X					

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: TEMPORARY FACILITIES	**Not Required**	**Basic/Contractor Fee**	**General Conditions Cos**	**Direct Cost of Work**	**Owner Expense**	**Additional Services**
1	Safety Equipment		X				
2	First Aid Supplies		X				
3	Handrails and Toe Boards				X		
4	Opening Protection				X		
5	Fire Extinguishers			X			
6	Watchman Service						X
7	Office or Trailer Rental			X			
8	Storage or Trailer Rental				X		
9	Waterboy - Ice - Cups			X			
10	Temporary Toilets			X			
11	Change/Shower Rooms	X					
12	Lunch Rooms	X					
13	Temporary Stairs				X		
14	Temporary Enclosures				X		
15	Fireproofing Enclosure				X		
16	Concrete Work Enclosure				X		
17	Masonry Work Enclosure				X		
18	Temporary Building Heating			X			
19	Project Signs			X			
20	Bulletin Boards			X			
21	Temporary Fencing			X			
22	Covered Walkways			X			
23	Barricades				X		
24	Safety Nets				X		
25	Ambulance Cost	X					
26	Security Guard				X		
27	Architect/Engineer Temporary Office	X					

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DENVER PUBLIC SCHOOLS							
Design Builder Matrix							
METHOD OF PAYMENT							
	Phase: ON-SITE UTILITIES AND SERVICES	**Not Required**	**Basic/Contractor Fee**	**General Conditions Cos**	**Direct Cost of Work**	**Owner Expense**	**Additional Services**
1	Telephone Installation			X			
2	Telephone Expense			X			
3	Temporary Power Service (If Required)			X			
4	Power Expense					X	
5	Temporary Water Service				X		
6	Temporary Heating Service				X		
7	Temporary Cooling Service	X					
8	Heating Energy Charges					X	
9	Cooling Energy Charges	X					
10	Temporary Wiring				X		
11	Lightbulbs				X		
12	Weekly Cleanup			X			
13	Final Cleanup			X			
14	Dump Permits and Fees			X			
15	Debris Hauling/Removal				X		
16	Flagman/Traffic Control				X		
17	Street/Walk Cleaning (If Required)				X		
18	Dust Controls				X		
19	Temporary Roads (If Required)				X		
20	Roadway Maintenance (If Required)				X		
21	Temporary Water Expense (If Required)			X			
22	Temporary Sewer Expense	X					
23	Two-way Radio Equipment			X			
24	Trash Chute and Hoppers			X			
25	Architect/Engineer Telephone Charges			X			

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: ON-SITE EQUIPMENT	**Not Required**	**Basic/Contractor Fee**	**General Conditions Cos**	**Direct Cost of Work**	**Owner Expense**	**Additional Services**
1	Automobile and Fuel			X			
2	Pickup Truck and Fuel			X			
3	Flatbed Truck and Fuel			X			
4	Water Truck and Fuel				X		
5	Air Compressor and Fuel				X		
6	Dewatering Equipment and Fuel				X		
7	Generator and Fuel				X		
8	Debris Removal/Hauling Equipment				X		
9	Snow Removal Equipment				X		
10	Tire and Maintenance Cost for Above		X				
11	Welder and Fuel				X		
12	Welding Equipment and Fuel				X		
13	Cutter Torches and Fuel				X		
14	Office Rentals or Cost			X			
15	Storage Rentals or Cost				X		
16	Small Tools Purchase		X				
17	Small Equipment Rental			X			
18	Office Furniture Rental			X			
19	Fax Machine and Supplies (If Required)			X			
20	Copy Machine and Supplies (If Required)			X			
21	Office Equipment and Supplies (If Required)			X			

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DENVER PUBLIC SCHOOLS							
Design Builder Matrix							
METHOD OF PAYMENT							
	Phase: VERTICAL HOISTING	Not Required	Contractor Fee	General Conditions Cos	Direct Cost of Work	Owner Expense	Additional Services
1	Hoist and Tower Rental				X		
2	Small Material Hoist Rental				X		
3	Hoist Landings and Fronts				X		
4	Hoist Operators				X		
5	Hoist Safety Inspections				X		
6	Hoist Materials Skips				X		
7	Hoist Material Hoppers				X		
8	Erect and Dismantle Hoists				X		
9	Fuel, Repairs and Maintenance				X		
10	Hoist Communication				X		
11	Crane Rental				X		
12	Crane Operators				X		
13	Crane Safety Inspections				X		
14	Erect and Dismantle Crane				X		
15	Fuel, Repairs, Maintenance				X		
16	Crane Raising/Jumping Cost				X		
17	Temporary Elevator Rental			X			
18	Elevator Operation Cost				X		
19	Elevator Repairs and Maintenance				X		
20	Cage Rider at Elevator				X		
21	Safety Inspections				X		
22	Forklift Rental				X		
23	Forklift Operators				X		
24	Forklift Safety Inspections				X		
25	Fuel, Repairs, Maintenance		X				
26	Elevator Service Costs				X		
27	Crane/Hoist Inspections				X		
28	Erection/Removal of Above				X		

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DENVER PUBLIC SCHOOLS							
Design Builder Matrix							
METHOD OF PAYMENT							
	Phase: TEMPORARY HEATING (If Required)	Not Required	Contractor Fee	General Conditions Cos	Direct Cost of Work	Owner Expense	Additional Services
1	Remove Snow and Ice			X			
2	Partitions and Enclosures				X		
3	Piping Cost in Building				X		
4	Fuel Cost for Heating				X		
5	Power Cost for Heating				X		
6	Steam Purchase Cost	X					
7	Furnace Rental	X					
8	Heater Rental				X		
9	Boiler Rental				X		
10	Operator (Temporary System)			X			
11	Operator (Permanent System)					X	
12	Operation Fire Watch				X		
13	Cleaning Costs				X		
14	Maintenance Cost				X		
15	Warranty Cost		X				
16	Filter Change				X		
17	Temporary Office Heating			X			
18	Lunch Room Heating	X					
19	Change/Shower Room Heating	X					
20	Temporary Enclosures				X		
21	Temporary Partitions				X		
22	Temporary Exterior Enclosure				X		
23	Enclosure Moving/Maintenance				X		

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DENVER PUBLIC SCHOOLS							
Design Builder Matrix							
METHOD OF PAYMENT							
	Phase: REPRODUCTION AND PRINTING	Not Required	Contractor Fee	General Conditions Cos	Direct Cost of Work	Owner Expense	Additional Services
1	Cost Study Documents		X				
2	Systems Study Documents		X				
3	Bid Package Documents		X				
4	Bidding Instructions		X				
5	Construction Documents		X				
6	Postage and Express Costs		X	X			
7	As-Built Documents (Drafting)						
8	As-Built Documents (Printing)		X				
9	Accounting Forms		X				
10	Field Reporting Forms		X				
11	Contract Agreements		X				
12	Schedule Report Forms		X				
13	Estimating Forms		X				
14	Cost Reporting Forms		X				
15	Presentation Charts and Graphics		X				
16	Value Analysis Studies		X				
17	Data Processing (In House)		X				
18	Reference Materials		X				
19	Duplication Expense (Miscellaneous)			X			
20	Shop Drawing Printing				X		
21	Data Processing (Outside Services)	X					
22	Maintenance Manuals			X			
23	Operation Manuals			X			
24	Special Forms		X				
25	As-Built Record (Field)		X				
26	As-Built Master Drafting		X				

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: QUALITY CONTROL	**Not Required**	**Contractor Fee**	**General Conditions Cos**	**Direct Cost of Work**	**Owner Expense**	**Additional Services**
1	Chief Inspector					X	
2	Field Inspector					X	
3	Inspectors Office					X	
4	Inspectors Transportation					X	
5	Inspectors Equipment					X	
6	Special Inspection Consultants					X	
7	Special Testing Consultants					X	
8	Concrete Testing					X	
9	Masonry Testing					X	
10	Compaction Testing					X	
11	Welding Testing					X	
12	Welding Inspections					X	
13	Fireproofing Inspections					X	
14	Soils Investigations					X	
15	Special Testing Services					X	
16	Supplies and Materials (Field Office)	X					
17	Project Photographs			X			
18	Warranty Inspections Coordination		X				
19	Air and Water Balancing				X		
20	Operator On-Site Training				X		
21	Prepare Operation Manuals			X			
22	Prepare Maintenance Manuals			X			

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DENVER PUBLIC SCHOOLS							
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METHOD OF PAYMENT							
	Phase: PERMITS AND SPECIAL FEES	Not Required	Contractor Fee	General Conditions Cos	Direct Cost of Work	Owner Expense	Additional Services
1	Storage Yard Rental			X			
2	Parking Lot Rentals			X			
3	Parking Fees			X			
4	Curb and Gutter Permits					X	
5	Sign Permits					X	
6	Staking Fees				X	X	
7	Sidewalk Permits					X	
8	Landscape Permits					X	
9	Street/Curb Design Charge					X	
10	Building Permits					X	
11	Plan Check Fees					X	
12	Water Connection Fee					X	
13	Sanitary Connection Fee					X	
14	Storm Connection Fee					X	
15	Gas Service Charge					X	
16	Power Service Charge					X	
17	Steam Service Charge	X					
18	Chiller Water Service Charge	X					
19	Special Tap Fees					X	
20	Contractors Licenses		X				
21	Royalties	X					
22	Zoning Fees/Consultants					X	
23	Use Fees					X	
24	Construction Equipment Licenses		X				
25	Construction Equipment Permits		X				
26	Street Bonds/Permits					X	
27	AGC/ABC Project Fees		X				

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: **INSURANCES AND BONDS**	Not Required	Contractor Fee	General Conditions Cos	Direct Cost of Work	Owner Expense	Additional Services
1	Builders Risk Insurance				X		
2	Errors and Omissions		X				
3	General Liability			X			
4	Product Liability	X					
5	Excess Liability Coverage			X			
6	Workmen's Compensation			X			
7	FICA Insurance			X			
8	Federal Unemployment			X			
9	State Unemployment			X			
10	Payment Bond			X			
11	Performance Bond			X			
12	Street/Property Bonds					X	
13	State/Local Bonds					X	
14	Contractors Bonds				X		
15	Warrantee Bond Costs		X				
16	Subcontractor Bonds:				X		
	Note: The school district will only allow a maximum of 3-4 subcontractors to be bonded for which the district will pay for the bonds. Any bonding of subcontractors in excess of 4 cannot be included in the GMP.						
17	Off-site Staff Insurance		X				
18	Off-site Staff Taxes		X				

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: OTHER COSTS	**Not Required**	**Contractor Fee**	**General Conditions Cos**	**Direct Cost of Work**	**Owner Expense**	**Additional Services**
1	Project Taxes (On Construction Work)				X		
2	Construction Equipment				X		
3	Construction Services				X		
4	Construction Materials		X				
5	Cost of Design and Engineering		X				
6	A/E Cost for Bid Packages		X				
7	A/E Fast Track Cost Extras		X				
8	Preliminary Soils Investigations					X	
9	Title/Development Cost					X	
10	Land Costs					X	
11	Financing/Interest Cost					X	
12	Interim Financing Costs					X	
13	Owner Change Contingency					X	
14	Building Operation after Move-In					X	
15	Building Maintenance after Move-In					X	
16	Moving Coordination					X	
17	Moving Costs					X	
18	Corrective Work Extra		X				
19	Costs of Emergency Work					X	
20	CMGC Overhead Cost		X				
21	CMGC Profit Margin		X				
22	GMP Financial Responsibility		X				
23	Late Payment Interest					X	
24	Environmental Impact Studies					X	

Exhibit G

DENVER PUBLIC SCHOOLS

Design Builder Matrix

METHOD OF PAYMENT

	Phase: ADDITIONAL SERVICES	Not Required	Contractor Fee	General Conditions Cos	Direct Cost of Work	Owner Expense	Additional Services
1	Services Not Listed Previously						X
2							
3							
4							
5							
6							
7							
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DENVER PUBLIC SCHOOLS
Design Builder Matrix
METHOD OF PAYMENT

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Payment Bond

CONTRACTOR:
(Name, legal status and address)

SURETY:
(Name, legal status and principal place of business)

OWNER:
(Name, legal status and address)
School District No. 1 in the City and County of Denver and State of Colorado
1860 Lincoln Street
Denver, CO 80203

CONSTRUCTION CONTRACT
Date:
Amount: $
Description:
(Name and location)

BOND
Date:
(Not earlier than Construction Contract Date)
Amount: $
Modifications to this Bond:

(Any additional signatures appear on the last page of this Payment Bond.)

CONTRACTOR AS PRINCIPAL
Company: *(Corporat*

SURETY
Company: *(Corporate Seal)*

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Signature:
Name and Title:

Signature:
Name and Title:

(FOR INFORMATION ONLY — Name, address and telephone)

AGENT or **BROKER:**

OWNER'S REPRESENTATIVE:
(Architect, Engineer or other party:)

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§ 1 The Contractor and Surety, jointly and severally, bind themselves, their heirs, executors, administrators, successors and assigns to the Owner to pay for labor, materials and equipment furnished for use in the performance of the Construction Contract, which is incorporated herein by reference, subject to the following terms.

§ 2 If the Contractor promptly makes payment of all sums due to Claimants, and defends, indemnifies and holds harmless the Owner from claims, demands, liens or suits by any person or entity seeking payment for labor, materials or equipment furnished for use in the performance of the Construction Contract, then the Surety and the Contractor shall have no obligation under this Bond.

§ 3 If there is no Owner Default under the Construction Contract, the Surety's obligation to the Owner under this Bond shall arise after the Owner has promptly notified the Contractor and the Surety (at the address described in Section 13) of claims, demands, liens or suits against the Owner or the Owner's property by any person or entity seeking payment for labor, materials or equipment furnished for use in the performance of the Construction Contract and tendered defense of such claims, demands, liens or suits to the Contractor and the Surety.

§ 4 When the Owner has satisfied the conditions in Section 3, the Surety shall promptly and at the Surety's expense defend, indemnify and hold harmless the Owner against a duly tendered claim, demand, lien or suit.

§ 5 The Surety's obligations to a Claimant under this Bond shall arise after the following:

§ 5.1 Claimants, who do not have a direct contract with the Contractor,

- **.1** have furnished a written notice of non-payment to the Contractor, stating with substantial accuracy the amount claimed and the name of the party to whom the materials were, or equipment was, furnished or supplied or for whom the labor was done or performed, within ninety (90) days after having last performed labor or last furnished materials or equipment included in the Claim; and
- **.2** have sent a Claim to the Surety (at the address described in Section 13).

§ 5.2 Claimants, who are employed by or have a direct contract with the Contractor, have sent a Claim to the Surety (at the address described in Section 13).

§ 6 If a notice of non-payment required by Section 5.1.1 is given by the Owner to the Contractor, that is sufficient to satisfy a Claimant's obligation to furnish a written notice of non-payment under Section 5.1.1.

§ 7 When a Claimant has satisfied the conditions of Sections 5.1 or 5.2, whichever is applicable, the Surety shall promptly and at the Surety's expense take the following actions:

§ 7.1 Send an answer to the Claimant, with a copy to the Owner, within sixty (60) days after receipt of the Claim, stating the amounts that are undisputed and the basis for challenging any amounts that are disputed; and

§ 7.2 Pay or arrange for payment of any undisputed amounts.

§ 7.3 The Surety's failure to discharge its obligations under Section 7.1 or Section 7.2 shall not be deemed to constitute a waiver of defenses the Surety or Contractor may have or acquire as to a Claim, except as to undisputed amounts for which the Surety and Claimant have reached agreement. If, however, the Surety fails to discharge its obligations under Section 7.1 or Section 7.2, the Surety shall indemnify the Claimant for the reasonable attorney's fees the Claimant incurs thereafter to recover any sums found to be due and owing to the Claimant.

§ 8 The Surety's total obligation shall not exceed the amount of this Bond, plus the amount of reasonable attorney's fees provided under Section 7.3, and the amount of this Bond shall be credited for any payments made in good faith by the Surety.

§ 9 Amounts owed by the Owner to the Contractor under the Construction Contract shall be used for the performance of the Construction Contract and to satisfy claims, if any, under any construction performance bond. By the Contractor furnishing and the Owner accepting this Bond, they agree that all funds earned by the Contractor in the performance of the Construction

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Contract are dedicated to satisfy obligations of the Contractor and Surety under this Bond, subject to the Owner's priority to use the funds for the completion of the work.

§ 10 The Surety shall not be liable to the Owner, Claimants or others for obligations of the Contractor that are unrelated to the Construction Contract. The Owner shall not be liable for the payment of any costs or expenses of any Claimant under this Bond, and shall have under this Bond no obligation to make payments to, or give notice on behalf of, Claimants or otherwise have any obligations to Claimants under this Bond.

§ 11 The Surety hereby waives notice of any change, including changes of time, to the Construction Contract or to related subcontracts, purchase orders and other obligations.

§ 12 No suit or action shall be commenced by a Claimant under this Bond other than in a court of competent jurisdiction in the state in which the project that is the subject of the Construction Contract is located or after the expiration of one year from the date (1) on which the Claimant sent a Claim to the Surety pursuant to Section 5.1.2 or 5.2, or (2) on which the last labor or service was performed by anyone or the last materials or equipment were furnished by anyone under the Construction Contract, whichever of (1) or (2) first occurs. If the provisions of this Paragraph are void or prohibited by law, the minimum period of limitation available to sureties as a defense in the jurisdiction of the suit shall be applicable.

§ 13 Notice and Claims to the Surety, the Owner or the Contractor shall be mailed or delivered to the address shown on the page on which their signature appears. Actual receipt of notice or Claims, however accomplished, shall be sufficient compliance as of the date received.

§ 14 When this Bond has been furnished to comply with a statutory or other legal requirement in the location where the construction was to be performed, any provision in this Bond conflicting with said statutory or legal requirement shall be deemed deleted herefrom and provisions conforming to such statutory or other legal requirement shall be deemed incorporated herein. When so furnished, the intent is that this Bond shall be construed as a statutory bond and not as a common law bond.

§ 15 Upon request by any person or entity appearing to be a potential beneficiary of this Bond, the Contractor and Owner shall promptly furnish a copy of this Bond or shall permit a copy to be made.

§ 16 Definitions

§ 16.1 Claim. A written statement by the Claimant including at a minimum:

- **.1** the name of the Claimant;
- **.2** the name of the person for whom the labor was done, or materials or equipment furnished;
- **.3** a copy of the agreement or purchase order pursuant to which labor, materials or equipment was furnished for use in the performance of the Construction Contract;
- **.4** a brief description of the labor, materials or equipment furnished;
- **.5** the date on which the Claimant last performed labor or last furnished materials or equipment for use in the performance of the Construction Contract;
- **.6** the total amount earned by the Claimant for labor, materials or equipment furnished as of the date of the Claim;
- **.7** the total amount of previous payments received by the Claimant; and
- **.8** the total amount due and unpaid to the Claimant for labor, materials or equipment furnished as of the date of the Claim.

§ 16.2 Claimant. An individual or entity having a direct contract with the Contractor or with a subcontractor of the Contractor to furnish labor, materials or equipment for use in the performance of the Construction Contract. The term Claimant also includes any individual or entity that has rightfully asserted a claim under an applicable mechanic's lien or similar statute against the real property upon which the Project is located. The intent of this Bond shall be to include without limitation in the terms "labor, materials or equipment" that part of water, gas, power, light, heat, oil, gasoline, telephone service or rental equipment used in the Construction Contract, architectural and engineering services required for performance of the work of the Contractor and the Contractor's subcontractors, and all other items for which a mechanic's lien may be asserted in the jurisdiction where the labor, materials or equipment were furnished.

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§ 16.3 Construction Contract. The agreement between the Owner and Contractor identified on the cover page, including all Contract Documents and all changes made to the agreement and the Contract Documents.

§ 16.4 Owner Default. Failure of the Owner, which has not been remedied or waived, to pay the Contractor as required under the Construction Contract or to perform and complete or comply with the other material terms of the Construction Contract.

§ 16.5 Contract Documents. All the documents that comprise the agreement between the Owner and Contractor.

§ 17 If this Bond is issued for an agreement between a Contractor and subcontractor, the term Contractor in this Bond shall be deemed to be Subcontractor and the term Owner shall be deemed to be Contractor.

§ 18 Modifications to this bond are as follows:

(Any additional signatures appear on the last page of this Payment Bond)

(Space is provided below for additional signatures of added parties, other than those appearing on the cover page.)

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ADDITIONS AND DELETIONS:
The author of this document may have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

Any singular reference to Contractor, Surety, Owner or other party shall be considered plural where applicable.

AIA® Document A312® – 2010

Performance Bond

CONTRACTOR:
(Name, legal status and address)

SURETY:
(Name, legal status and principal place of business)

OWNER:
(Name, legal status and address)
School District No. 1 in the City and County of Denver and State of Colorado
1860 Lincoln Street
Denver, CO 80203

CONSTRUCTION CONTRACT
Date:
Amount: $
Description:
(Name and location)

BOND
Date:
(Not earlier than Construction Contract Date)
Amount: $
Modifications to this Bond:

(Any additional signatures appear on the last page of this Performance Bond.)

CONTRACTOR AS PRINCIPAL
Company: *(Corporate Seal)*

SURETY
Company: *(Corporate Seal)*

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Signature:
Name and Title:

Signature:
Name and Title:

(FOR INFORMATION ONLY — Name, address and telephone)

AGENT or **BROKER:**

OWNER'S REPRESENTATIVE:
(Architect, Engineer or other party:)

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§ 1 The Contractor and Surety, jointly and severally, bind themselves, their heirs, executors, administrators, successors and assigns to the Owner for the performance of the Construction Contract, which is incorporated herein by reference.

§ 2 If the Contractor performs the Construction Contract, the Surety and the Contractor shall have no obligation under this Bond, except when applicable to participate in a conference as provided in Section 3.

§ 3 If there is no Owner Default under the Construction Contract, the Surety's obligation under this Bond shall arise after

.1 the Owner first provides notice to the Contractor and the Surety that the Owner is considering declaring a Contractor Default. Such notice shall indicate whether the Owner is requesting a conference among the Owner, Contractor and Surety to discuss the Contractor's performance. If the Owner does not request a conference, the Surety may, within five (5) business days after receipt of the Owner's notice, request such a conference. If the Surety timely requests a conference, the Owner shall attend. Unless the Owner agrees otherwise, any conference requested under this Section 3.1 shall be held within ten (10) business days of the Surety's receipt of the Owner's notice. If the Owner, the Contractor and the Surety agree, the Contractor shall be allowed a reasonable time to perform the Construction Contract, but such an agreement shall not waive the Owner's right, if any, subsequently to declare a Contractor Default;

.2 the Owner declares a Contractor Default, terminates the Construction Contract and notifies the Surety; and

.3 the Owner has agreed to pay the Balance of the Contract Price in accordance with the terms of the Construction Contract to the Surety or to a contractor selected to perform the Construction Contract.

§ 4 Failure on the part of the Owner to comply with the notice requirement in Section 3.1 shall not constitute a failure to comply with a condition precedent to the Surety's obligations, or release the Surety from its obligations, except to the extent the Surety demonstrates actual prejudice.

§ 5 When the Owner has satisfied the conditions of Section 3, the Surety shall promptly and at the Surety's expense take one of the following actions:

§ 5.1 Arrange for the Contractor, with the consent of the Owner, to perform and complete the Construction Contract;

§ 5.2 Undertake to perform and complete the Construction Contract itself, through its agents or independent contractors;

§ 5.3 Obtain bids or negotiated proposals from qualified contractors acceptable to the Owner for a contract for performance and completion of the Construction Contract, arrange for a contract to be prepared for execution by the Owner and a contractor selected with the Owner's concurrence, to be secured with performance and payment bonds executed by a qualified surety equivalent to the bonds issued on the Construction Contract, and pay to the Owner the amount of damages as described in Section 7 in excess of the Balance of the Contract Price incurred by the Owner as a result of the Contractor Default; or

§ 5.4 Waive its right to perform and complete, arrange for completion, or obtain a new contractor and with reasonable promptness under the circumstances:

.1 After investigation, determine the amount for which it may be liable to the Owner and, as soon as practicable after the amount is determined, make payment to the Owner; or

.2 Deny liability in whole or in part and notify the Owner, citing the reasons for denial.

§ 6 If the Surety does not proceed as provided in Section 5 with reasonable promptness, the Surety shall be deemed to be in default on this Bond seven days after receipt of an additional written notice from the Owner to the Surety demanding that the Surety perform its obligations under this Bond, and the Owner shall be entitled to enforce any remedy available to the Owner. If the Surety proceeds as provided in Section 5.4, and the Owner refuses the payment or the Surety has denied liability, in whole or in part, without further notice the Owner shall be entitled to enforce any remedy available to the Owner.

§ 7 If the Surety elects to act under Section 5.1, 5.2 or 5.3, then the responsibilities of the Surety to the Owner shall not be greater than those of the Contractor under the Construction Contract, and the responsibilities of the Owner to the Surety shall not be greater than those of the Owner under the Construction Contract. Subject to the commitment by the Owner to pay the Balance of the Contract Price, the Surety is obligated, without duplication, for

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.1 the responsibilities of the Contractor for correction of defective work and completion of the Construction Contract;

.2 additional legal, design professional and delay costs resulting from the Contractor's Default, and resulting from the actions or failure to act of the Surety under Section 5; and

.3 liquidated damages, or if no liquidated damages are specified in the Construction Contract, actual damages caused by delayed performance or non-performance of the Contractor.

§ 8 If the Surety elects to act under Section 5.1, 5.3 or 5.4, the Surety's liability is limited to the amount of this Bond.

§ 9 The Surety shall not be liable to the Owner or others for obligations of the Contractor that are unrelated to the Construction Contract, and the Balance of the Contract Price shall not be reduced or set off on account of any such unrelated obligations. No right of action shall accrue on this Bond to any person or entity other than the Owner or its heirs, executors, administrators, successors and assigns.

§ 10 The Surety hereby waives notice of any change, including changes of time, to the Construction Contract or to related subcontracts, purchase orders and other obligations.

§ 11 Any proceeding, legal or equitable, under this Bond may be instituted in any court of competent jurisdiction in the location in which the work or part of the work is located and shall be instituted within two years after a declaration of Contractor Default or within two years after the Contractor ceased working or within two years after the Surety refuses or fails to perform its obligations under this Bond, whichever occurs first. If the provisions of this Paragraph are void or prohibited by law, the minimum period of limitation available to sureties as a defense in the jurisdiction of the suit shall be applicable.

§ 12 Notice to the Surety, the Owner or the Contractor shall be mailed or delivered to the address shown on the page on which their signature appears.

§ 13 When this Bond has been furnished to comply with a statutory or other legal requirement in the location where the construction was to be performed, any provision in this Bond conflicting with said statutory or legal requirement shall be deemed deleted herefrom and provisions conforming to such statutory or other legal requirement shall be deemed incorporated herein. When so furnished, the intent is that this Bond shall be construed as a statutory bond and not as a common law bond.

§ 14 Definitions

§ 14.1 Balance of the Contract Price. The total amount payable by the Owner to the Contractor under the Construction Contract after all proper adjustments have been made, including allowance to the Contractor of any amounts received or to be received by the Owner in settlement of insurance or other claims for damages to which the Contractor is entitled, reduced by all valid and proper payments made to or on behalf of the Contractor under the Construction Contract.

§ 14.2 Construction Contract. The agreement between the Owner and Contractor identified on the cover page, including all Contract Documents and changes made to the agreement and the Contract Documents.

§ 14.3 Contractor Default. Failure of the Contractor, which has not been remedied or waived, to perform or otherwise to comply with a material term of the Construction Contract.

§ 14.4 Owner Default. Failure of the Owner, which has not been remedied or waived, to pay the Contractor as required under the Construction Contract or to perform and complete or comply with the other material terms of the Construction Contract.

§ 14.5 Contract Documents. All the documents that comprise the agreement between the Owner and Contractor.

§ 15 If this Bond is issued for an agreement between a Contractor and subcontractor, the term Contractor in this Bond shall be deemed to be Subcontractor and the term Owner shall be deemed to be Contractor.

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§ 16 Modifications to this bond are as follows:

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Denver Public Schools
Strategic Sourcing Department
1617 South Acoma Street
Denver, Colorado 80223

EXHIBIT F

PRICING FORM

PROJECT:

DESIGN FEE

The Design fee shall include fees for the Design-Builder, Contractor(s), Architect, Engineer(s), Consultant(s), and shall be the stipulated sum of
$_____ dollars ($_____), payable in installments following the completion of each Design Phase and Construction Administration.

PRECONSTRUCTION FEE

Pre-Construction fee: estimating, permit, and bidding services to establish the cost of work plus design-builder's fee with a guaranteed maximum price. Includes publishing DD and CD sets (soft and hard copies: full and half size drawings, bound specifications), DPS review meetings and estimates for each design submission, and AHJ permitting process, as required. Publish final set, including AHJ changes, to DPS (soft and hard copies: full and half size drawings, bound specifications). Shall be the stipulated sum of
_____ dollars ($_____).

DESIGN-BUILDER'S FEE

The design-builder's fee shall be an amount equal to _____ percent (_____ %) of the Cost of Work. The design-builder's fee shall be applied to the posted project budget for calculating the design-builder's fee for method of award, section III item 12.

GENERAL CONDITIONS COST

The GENERAL CONDITIONS COST as defined by Exhibit G Cost of Work Matrix shall be an amount equal to

_____
($_____), which is equal to _____ percent (_____%) of the published project budget for the Construction Work. These are to be provided per proposer's schedule within RFP.

BOND COST

The design build payment & performance bond shall be an amount equal to _____(_____%) of the sum of the Direct Hard Costs (Published Construction Budget).

LABOR and EQUIPMENT RATES:

Provide labor and equipment rates for 2026, 2027, and 2028.